Change in Effective Control Application

Version 01.2019

Applicant	Name of Licensee: **198 WATERMAN AVENUE LLC** Name(s) of Parent Entity(ies):
Name of Facility:	**Eastgate Nursing & Rehabilitation Center**
Date of Submission	**August 9th, 2024**

All questions concerning this application should be directed to the Center for Health Systems Policy and Regulation at (401) 222-2788

Please have the appropriate individual attest to the following:

"I hereby certify that the information contained in this application is complete, accurate and true."

signed and dated by the President or Chief Executive Officer

signed and dated by Notary Public

MICHELLE C. GAUTREAU NOTARY PUBLIC STATE OF RHODE ISLAND

Table of Contents:

Question Number/Appendix	Page Number/Tab Index
Q1	Page Number 4-5 /Tab J
Q2	Page Number 5 /Tab
Q3	Page Number 5 /Tab
Q4	Page Number 5 /Tab
Q5	Page Number 5 /Tab
Q6 A	Page Number 6 /Tab
Q6 B	Page Number 6 /Tab
Q7	Page Number 6 /Tab
Q7 Appendix C	Page Number 6 /Tab
Q8	Page Number 6 /Tab A
Q9	Page Number 6 /Tab
Q10	Page Number 6 /Tab
Q11	Page Number 7 /Tab
Q12	Page Number 7 /Tab
Q13	Page Number 7 /Tab
Q14	Page Number 7 /Tab B
Q15	Page Number 7 /Tab C
Q16	Page Number 7 /Tab
Q17	Page Number 7 /Tab
Q18	Page Number 7-8 /Tab D
Q19	Page Number 8 /Tab
Q20 A	Page Number 8 /Tab
Q20 B	Page Number 8 /Tab
Q20 C	Page Number 8 /Tab
Q21	Page Number 8 /Tab
Q22	Page Number 8-9 /Tab E
Q23 A	Page Number 9 /Tab
Q23 B	Page Number 9 /Tab
Q23 C	Page Number 9 /Tab H
Q23 Appendix E	Page Number 9 /Tab
Q24	Page Number 9 /Tab B
Q25	Page Number 9 /Tab
Q26	Page Number 9 /Tab F
Q27	Page Number 10 /Tab
Q28	Page Number 10 /Tab G
Q29 Appendix A	Page Number 11-16 /Tab
Q29 Appendix D	Page Number 24 /Tab

Q29 Appendix F	Page Number 26-27 /Tab J, K
Q29 Appendix G	Page Number 28-29 /Tab C, J, L
Appendix B	Page Number 17-18 /Tab
Appendix C	Page Number 19-23 /Tab H
Appendix E	Page Number 25 /Tab I

1. Please provide an executive summary describing the nature and scope of the proposal. Additionally, please include the following: (1) identification of all parties, (2) description of the applicant and it's licensure track record, (3) the type of transaction proposed including description of the transaction and relevant costs, (4) summary of all transfer documents, (5) summary of the organizational structure of the applicant and its affiliates, and (6) whether the facility will be accredited.

Michael Bigney, as detailed in the purchase and sales agreement, has nominated the ownership group to be as follows:

- **Michael Bigney and related trusts 70%**
- **Kelly Arnold and related trust 10%**
- **Christopher Ryan and related trust 10%**
- **Stephanie Ryan 10%**

Please see Tab J which outlines the members of the ownership group and their respective ownership percentages.

Michael Bigney and the nominated ownership group ("Applicant"), is proposing to acquire full ownership interest in all six Rhode Island Health Concepts, Ltd. facilities currently managed by Health Concepts, Ltd. In addition to the affiliated facilities, the Applicant will also be acquiring Health Concepts, Ltd. All employees from Health Concepts, Ltd. including key management positions (operations, clinical, finance, purchasing, etc.) will be retained to ensure continued oversight for optimal compliance with state and federal regulations.

Stock sales allow a purchaser to buy a business as it exists. In this instance, the Applicant will be purchasing the management company (Health Concepts, Ltd.) for $8,000,000, and the Eastgate Nursing & Rehabilitation Center operating company (198 Waterman Avenue LLC) for $100,000 allowing the Applicant to acquire the equity positions that currently exists within both companies. The Applicant will step into the seller's ownership position with just a change of stockholders. All existing debt will transfer from the Seller to the Applicant. Additionally, new applications will not be necessary for licenses and permits. All licenses and/or permits that are assigned to the business remain with it in this stock sale.

There will be six CEC applications for the following Health Concepts facilities:

- **Bayberry Commons**
- **Eastgate Nursing & Rehabilitation Center**
- **Elmwood Nursing & Rehabilitation Center**
- **South Kingstown Nursing & Rehabilitation Center**
- **Village House Nursing & Rehabilitation Center**
- **West Shore Health Center**

Eastgate Nursing & Rehabilitation Center ("Eastgate") has 76 licensed beds, 68 of which are active. Patients/Residents are provided with short-term nursing and rehabilitation services as well as long-term care services in a home-like environment. There is no intention to make changes in the services provided.

<u>Background of Applicants</u>:
Michael Bigney obtained a Bachelor of Science in Business Administration with a concentration in accounting from Boston University, a program recognized by Bloomberg Business Week, Business Insider, and U.S. News & World Report. He is a co-owner of Home Health and Hospice Care of Nursing Placement based out of Pawtucket, RI and has been with the company for over 41 years. He is the co-owner of ProCare Physical Therapy Inc. and serves as the Chief Financial Officer for Health Concepts, Ltd. and the six nursing facilities they oversee. He has been a practicing CPA for 41 years in the state of Rhode Island. He is the immediate past president for the Rhode Island Partnership for Home Care.

Stephanie Ryan obtained her Nursing degree from Community College of Rhode Island, a Bachelor's degree from Providence College and a Master's degree in Health Services Administration from Salve Regina University. Stephanie has more than thirty years of clinical and managerial experience in various health care settings. She is also co-owner of Home Health and Hospice Care of Nursing Placement and has been with the company for close to 15 years. She is a co-owner of ProCare Physical Therapy Inc.

Kelly Arnold obtained her Bachelor of Science in Business Administration with a concentration in Healthcare from Salve Regina University. Kelly has over 20 years of clinical and managerial experience in the long term care setting. She has been with Health Concepts for close to 25 years serving as a Nursing Home Administrator in 3 of their facilities before becoming the Chief Operating Officer in 2017. She received her Nursing Home Administrators License in 1998. She is the current Board Chair of the Rhode Island Health Care Association.

Christopher Ryan obtained his Bachelor of Science in Computer Information Systems from Rhode Island College and Masters of Business Administration at Bryant University. Christopher has been with Health Concepts for close to 21 years working in the Information Technology department before serving as a Nursing Home Administrator and Director of Strategic Planning. He received his Nursing Home Administrators License in 2015.

2. Name and address of the applicant:

Name: **198 WATERMAN AVENUE LLC**	Telephone: **401-751-3800**
Address: **588 Pawtucket Ave, Pawtucket, RI**	Zip Code: **02860**

3. Name and address of facility (if different from applicant):

Name: **Eastgate Nursing & Rehabilitation Center**	Telephone: **401-431-2087**
Address: **198 Waterman Avenue East Providence, RI**	Zip Code: **02914**

4. Information of the President or Chief Executive Officer of the applicant:

Name: **Michael Bigney**	Telephone: **401-728-6500**
Address: **588 Pawtucket Ave, Pawtucket, RI**	Zip Code: **02860**
E-Mail: **mbigney@nursingplacement.com**	Fax: **401-728-6509**

5. Information for the person to contact regarding this proposal:

Name: **Michael Bigney**	Telephone: **401-728-6500**
Address: **588 Pawtucket Ave, Pawtucket, RI**	Zip Code: **02860**
E-Mail: **mbigney@nursingplacement.com**	Fax: **401-728-6509**

6. A. **EXISTING ENTITY:**

License category: **Skilled Nursing Facility**				
Name of Facility: **Eastgate Nursing & Rehabilitation Center**			License #: **LTC00779**	
Address: **198 Waterman Avenue East Providence, RI 02914**			Telephone: **401-431-2087**	
Type of Ownership: ___ Individual	___ Partnership	___ Corporation	**X** Limited Liability Co.	
Tax Status: **X** For Profit	___ Non-Profit			

B. **PROPOSED ENTITY:**

License category: **Skilled Nursing Facility**				
Name of Facility: **Eastgate Nursing & Rehabilitation Center**			License #: **LTC00779**	
Address: **198 Waterman Avenue East Providence, RI 02914**			Telephone: **401-431-2087**	
Type of Ownership: ___ Individual	___ Partnership	___ Corporation	**X** Limited Liability Co.	
Tax Status: **X** For Profit	___ Non-Profit			

7. Does this proposal involve a nursing facility? Yes **X** No___

- If response to Question 7 is 'Yes', please complete Appendix C.

8. Will the facility be operated under management agreement with any party? Yes **X** No ___

- If response to Question 8 is "Yes", please provide copies of that agreement.

See Tab A

9. Will the proposal involve the facility/ies providing healthcare services under contract with an outside party? Yes **X** No ___

- If response to Question 9 is "Yes", please identify and describe those services to be contracted out.
  - **Portable X-Ray**
  - **Physical, Occupational and Speech Therapy Services**
  - **Laboratory Services**
  - **Pharmacy Consultant and Medication Services**
  - **Psychiatric Services**
  - **Medical Director**
  - **Dietician**
  - **Ambulance Services**
  - **Quality Rehab Management - QRM**

10. Estimate the date (month and year) for the proposed transfer of ownership, if approved:

No later than 90 days after Department of Health approval.

11. Please provide a concise description of the services currently offered by the licensed entity and identify any services that will be added, terminated, expanded, or reduced and state the reasons therefore:

Eastgate has 76 licensed beds. Patients/Residents are provided with short-term nursing and rehabilitation services as well as long-term care services in a home-like environment. There is no intention to make changes in the services provided.

12. Please identify the long-term plans of the applicant with respect to the health care programs and health care services to be provided at the facility:

Eastgate has 76 licensed beds. Patients/Residents are provided with short-term nursing and rehabilitation services as well as long-term care services in a home-like environment. There is no intention to make changes in the services provided.

Long term plans include physical renovations such as building upgrades as needed.

13. Does the entity seeking licensure plan to participate in Medicare or Medicaid (Titles XVIII or XIX of the Social Security Act)?

MEDICARE: Yes **X** ___No___ MEDICAID: Yes **X** ___No___

- If response to Question 13 for either Medicare and/or Medicaid is 'No', please explain.

14. Please provide all appropriate signed legal transfer documents (i.e. purchase and sale agreement, affiliation agreement); **NOTE**: these documents must cause both parties to be legally bound.

See Tab B

15. Please provide organization charts of both agencies (existing entity and the applicant) for prior to transfer and post transfer, identifying all "parent" legal entities with direct or indirect ownership in or control, all "sister" legal entities also owned or controlled by the parent(s), and all "subsidiary" legal entities.

See Tab C

16. If the proposed owner, operator or director owned, operated or directed a health care facility (both within and outside Rhode Island) within the past three years, please demonstrate the record of that person(s) with respect to access of traditionally underserved populations to its health care facilities.

It has been and will continue to be the policy of the Applicant to provide skilled nursing services to all populations regardless of payer source or ability to pay. The existing facilities listed in 15 above serve a diverse population across the majority of the state with an average of 71% either Medicaid, Medicaid Pending or Hospice in 2023. Specialty services include Alzheimer Special Memory Care Units in five (5) of the facilities and Subacute Services in all six (6) facilities.

17. Please identify the proposed immediate and long-term plans of the applicant to ensure adequate and appropriate access to the program and health care services to be provided by the health care facility/ies to traditionally underserved populations.

Eastgate's current 76-beds serves the population of East Providence, Rhode Island and the surrounding communities of Providence Rhode Island. In 2023, Eastgate's resident population averaged approximately 73% on Medicaid/Medicaid Pending and Hospice services. It is certified as a Medicare and Medicaid provider. The Applicant will continue to offer the services for all existing patients without any interruption regardless of race, religion, socioeconomic status or payer source.

18. Please provide a copy of charity care policies and procedures and charity care application form.

As set forth in response to question 19, the applicant will provide medically necessary services to all patients without discrimination regardless of the patient's ability to pay. Health Concepts and the Applicants experience demonstrates that the vast majority of its facilities'' patients are covered by Medicare and Medicaid.

See Tab D

19. After the proposed change in effective control, will the facility/ies provide medically necessary services to patients without discrimination, including the patients' ability to pay for services? Yes **X** No___.

- If response to Question 23 is 'No', please explain.

20. Please identify and describe all instances **involving the applicant and/or its affiliates** and the status or disposition of each of the following within the past 3 years:

A. Citations, enforcement actions, violations, charges, investigations, or similar types of actions involving the applicant and/or its affiliates (including but not limited to actions brought forward by any governmental agency, accrediting agency, or similar type of an agency.);

There have been no citations, enforcement actions, violations, charges, investigations or any similar type of actions by applicant and/or its affiliates.

B. Civil proceedings (whether pending or which have resulted in a disposition or settlement) in any court of law, in which the applicant and/or its affiliates and/or any officers, directors, trustees, members, managing or general partners, or other senior management of the applicant and/or its affiliates has been a party to;

There have been no civil proceedings in any court of law by applicant and/or its affiliates.

C. Convictions and/or placement on probation for any criminal offences by any state, local or federal government of any officers, directors, trustees, members, managing or general partners, or other senior management of the applicant and/or its affiliates;

There have been no convictions and/or probation for criminal offences by applicant and/or its affiliates.

21. Please identify any planned actions of the applicant to reduce, limit, or contain health care costs and improve the efficiency with which health care services are delivered to the citizens of this state.

The Applicant will continue to promote inclusiveness within the community ensuring that all people regardless of race, ethnicity, color, religion, gender, disability, sexual orientation, age or other characteristics have access to our programs and services. Eastgate has and will continue to provide Skilled Nursing Services to the under-insured and under-served populations through their clinical programs to improve facility rehospitalizations and successful discharges to all regions of Rhode Island.

22. Please provide a copy of the Quality Assurance Policies (for the services) and a detailed explanation of how quality assurance for patient services will be implemented at the facility/ies by the applicant.

See Tab E

As with all Health Concepts facilities, Eastgate utilizes the services of TRIAD Health Care LLS to assist with quality improvement programs. Its QI consulting services are headed by Pamela Bibeault, RNC, MS, NHA, CLNC, CPHQ, CHC, DNS-CT, Principal. She and her staff provide ongoing QI consulting services through onsite visits, chart audits, etc. to assist in ensuring optimal compliance

with rules and regulations and enhancing quality of care and quality of life. Other Health Concepts staff, including the Chief Operating Officer, will be available to ensure that Eastgate continues to be able to provide high quality care and services to the patients and residents entrusted to its care. As previously stated, Health Concepts Corporate Office and staff are included in the purchase of the six (6) facilities.

23. Please provide a detailed description about the amount and source of the equity and debt commitment for this transaction. (**NOTE**: If debt is contemplated as part of the financing, please complete Appendix E). Additionally, please demonstrate the following:

A. The immediate and long-term financial feasibility of the proposed financing plan;

The total purchase price for the acquisition of Health Concepts, Ltd. and the six skilled nursing facilities is $10,000,000.00. The applicants have funded the "Commencement Date" phase of this transaction with a $2,550,000 cash infusion, representing a 25.50% equity position. The balance of the purchase price will be funded through acquisition debt.

As evidenced by the proforma set forth in Appendix A, there are adequate business resources to support the acquisition. Additionally, Michael Bigney, the majority shareholder in the ownership group, has adequate personal funds to further support this transaction.

B. The relative availability of funds for capital and operating needs; and

Please see 23A (above) for the details regarding the cash infusion and debt financing for this transaction. The proforma and the operating results support the applicant's ability to both finance the thirty-day expenses outlined in Appendix C, as well as demonstrating the sufficient funds necessary to operate the six skilled nursing facilities.

C. The applicant's financial capability.

The applicant's financial strength is outlined in the financial statements. The skilled nursing facilities have been operating in Rhode Island for decades and have established financial reserves during that period. Majority shareholder, Michael Bigney, will provide any additional financial resources to the company as necessary. Please refer to the attached letter from Barry Investment Advisors in Tab H.

24. Please provide legally binding evidence of site control (e.g., deed, lease, option, etc.) sufficient to enable the applicant to have use and possession of the subject property, if applicable.

See Tab B

25. If the facility is not-for-profit and/or affiliated with a not-for-profit, please provide written approval from the Rhode Island Department of Attorney General of the proposal.

N/A

26. Please provide each of the following documents applicable to the applicant's legal status:

·Certificate and Articles of Incorporation and By-Laws (for corporations)
·Certificate of Partnership and Partnership Agreement (for partnerships)
·Certificate of Organization and Operating Agreement (for limited liability corporations)

- If any of the above documents are proposed to be revised or modified in any way as a result of the implementation of the proposed change in effective control, please provide the present documents and the proposed documents and **clearly identify** the revisions and modifications.

See Tab F

27. If the applicant and/or one of its parent companies (or ultimate parent) is a publicly traded corporation, please provide copies of its most recent SEC 10K filing.

N/A

28. Please provide audited financial statements (which should include an income statement, balance sheet and cash flow statement) for the last three years for the applicant, and/or its ultimate parent, and for the existing facility.

198 WATERMAN AVENUE LLC d/b/a Eastgate Nursing & Rehabilitation Center is an established entity. Financial Statements for Eastgate are attached under Tab G.

29. All applicants must complete Appendix A, D, F and G.

APPENDIX A

All applicants must complete this Appendix.

1. Please indicate the financing mix for the capital cost of this proposal. **NOTE**: the Health Services Council's policy requires a minimum 20 percent equity investment in CEC projects.

Source	Amount	Percent	Interest Rate	Terms (Yrs.)
Equity*	$100,000.00	100%		
Debt**	$0.00	0%	0%	
Lease	$0.00	0%	0%	
TOTAL	**$100,000.00**	**100%**		

* Equity means non-debt funds contributed towards the capital cost related to a change in owner or change in operator of a healthcare facility which funds are free and clear of any repayment or liens against the assets of the proposed owner and/or licensee and that result in a like reduction in the portion of the capital cost that is required to be financed or mortgaged.

** If debt financing is indicated, please complete Appendix E.

2. Please identify the total number of FTEs (full time equivalents) and the associated payroll expense (with fringe benefits) for the facility.
NOTE: changes in payroll is due to benefit changes only. Increased 401(k) contribution by employer in FY: 2024
This data does not include Purchase Service (Agency).

	Past Three Fiscal Years						Budgeted Current Year	
	FY:2021		**FY:2022**		**FY:2023**		**FY:2024**	
PERSONELL (by major categories)	# of FTEs	Payroll W/Fringes	# of FTEs	Payroll W/Fringes	# of FTEs	Payroll W/Fringes	# of FTEs	Payroll W/Fringes
Medical Director	-	-	-	-	-	-	-	-
Physicians	-	-	-	-	-	-	-	-
Administrator	1	$ 145,372.12	1	$ 151,034.60	1	$ 157,559.35	1	$ 161,864.22
Director of Nursing	1	$ 133,929.32	1	$ 138,947.05	1	$ 143,240.46	1	$ 142,440.51
RNs	5.54	$ 483,029.02	7.78	$ 824,847.46	6.20	$ 795,976.17	6.39	$ 824,972.55
LPNs	4.55	$ 395,776.06	2.83	$ 271,176.13	4.13	$ 401,806.79	4.25	$ 372,322.64
Nursing Aides	20.48	$ 1,016,813.16	19.53	$ 1,047,846.17	21.90	$ 1,225,701.99	22.56	$ 1,250,696.78
PTs	1.91	$ 199,711.08	2.50	$ 264,220.25	3.10	$ 322,438.79	3.19	$ 298,122.02
OTs	2.09	$ 215,901.08	1.76	$ 174,598.50	2.69	$ 238,171.42	2.77	$ 218,128.37
Speech Therapists	0.54	$ 72,258.59	1.06	$ 129,138.68	1.02	$ 113,088.10	1.05	$ 93,768.61
Clerical	3.68	$ 240,149.66	3.60	$ 243,614.16	3.80	$ 258,214.92	3.91	$ 271,878.00
Housekeeping	3.66	$ 140,040.37	2.73	$ 132,310.31	3.58	$ 166,716.20	3.69	$ 183,660.07
Other: Activities	2.22	$ 115,066.70	2	$ 105,862.19	2.18	$ 120,217.73	2.25	$ 141,513.25
Other: Dietary	6.11	$ 286,773.50	6.57	$ 357,639.69	6.70	$ 387,102.68	6.90	$ 396,639.72
Other: Laundry	1.93	$ 73,952.17	2.00	$ 83,721.12	1.93	$ 83,816.14	1.99	$ 82,782.66
Other: Maintenance	1.82	$ 110,895.31	1.81	$ 115,639.34	1.78	$ 118,916.12	1.83	$ 131,855.77
Other: Social Services	2.26	$ 163,102.14	2.70	$ 190,151.60	2.70	$ 203,226.86	2.78	$ 205,237.35
Totals	**58.79**	**$ 3,792,770.28**	**58.87**	**$ 4,230,747.25**	**63.71**	**$ 4,736,193.72**	**65.56**	**$ 4,775,882.52**

	Projected First Three Fiscal Years (if approved)					
	FY:2025		**FY:2026**		**FY:2027**	
PERSONELL (by major categories)	Number of FTEs	Payroll W/Fringes	Number of FTEs	Payroll W/Fringes	Number of FTEs	Payroll W/Fringes
Medical Director	-	-	-	-	-	-
Physicians	-	-	-	-	-	-
Administrator	1	$ 164,292.18	1	$ 166,756.57	1	$ 169,257.91
Director of Nursing	1	$ 144,577.12	1	$ 146,745.77	1	$ 148,946.96
RNs	6.58	$ 837,347.14	6.58	$ 849,907.35	6.58	$ 862,655.96
LPNs	4.38	$ 377,907.48	4.38	$ 383,576.09	4.38	$ 389,329.73
Nursing Aides	23.23	$ 1,269,457.23	23.23	$ 1,288,499.09	23.23	$ 1,307,826.58
PTs	3.29	$ 302,593.85	3.29	$ 307,132.76	3.29	$ 311,739.75
OTs	2.85	$ 221,400.30	2.85	$ 224,721.30	2.85	$ 228,092.12
Speech Therapists	1.08	$ 95,175.14	1.08	$ 96,602.77	1.08	$ 98,051.81
Clerical	4.03	$ 275,956.17	4.03	$ 280,095.51	4.03	$ 284,296.95
Housekeeping	3.80	$ 186,414.97	3.80	$ 189,211.20	3.80	$ 192,049.36
Other: Activities	2.31	$ 143,635.95	2.31	$ 145,790.49	2.31	$ 147,977.35
Other: Dietary	7.11	$ 402,589.32	7.11	$ 408,628.16	7.11	$ 414,757.58
Other: Laundry	2.05	$ 84,024.40	2.05	$ 85,284.77	2.05	$ 86,564.04
Other: Maintenance	1.89	$ 133,833.61	1.89	$ 135,841.11	1.89	$ 137,878.73
Other: Social Services	2.87	$ 208,315.90	2.87	$ 211,440.63	2.87	$ 214,612.24
Totals	**67.47**	**$ 4,847,520.76**	**67.47**	**$ 4,920,233.57**	**67.47**	**$ 4,994,037.07**

3. Please complete the following table for the facility. Round all amounts to the nearest dollar.

NOTE: FY 2021/2022 includes CARES ACT FUNDING under "Other" revenue.
NOTE: FY 2023 includes Health Concepts debt forgiveness and Employee Retention Tax Credit in "Other" revenue.

	Past Three Fiscal Years			Budgeted Current Fiscal Year	Projected Three Fiscal Years (if approved)		
	FY:2021	**FY:2022**	**FY:2023**	**FY:2024**	**FY:2025**	**FY:2026**	**FY:2027**
REVENUES							
Net Patient Revenue	$ 5,507,011.99	$ 6,119,222.64	$ 7,550,886.89	$ 7,519,796.25	$ 7,670,192.18	$ 7,823,596.02	$ 7,980,067.94
Other: (_____)	$ 1,078,043.54	$ 209,995.84	$ 698,085.30	$ 29,321.34	$ 29,907.77	$ 30,505.92	$ 31,116.04
Total Revenue	$ 6,585,055.53	$ 6,329,218.48	$ 8,248,972.19	$ 7,549,117.59	$ 7,700,099.94	$ 7,854,101.94	$ 8,011,183.98
EXPENSES							
Payroll w/Fringes	$ 3,792,770.28	$ 4,230,747.25	$ 4,736,193.72	$ 4,775,882.52	$ 4,847,520.76	$ 4,920,233.57	$ 4,994,037.07
Bad Debt	$ 50,266.16	$ 11,499.79	$ 182,401.05	$ 21,070.59	$ 21,386.65	$ 21,707.45	$ 22,033.06
Supplies	$ 508,440.03	$ 447,308.50	$ 543,616.36	$ 501,295.41	$ 508,814.84	$ 516,447.06	$ 524,193.77
Office Expenses	$ 588,474.64	$ 624,004.24	$ 714,181.08	$ 705,405.21	$ 715,986.29	$ 726,726.08	$ 737,626.97
Utilities	$ 91,497.74	$ 92,645.17	$ 99,441.92	$ 111,166.11	$ 112,833.60	$ 114,526.11	$ 116,244.00
Insurance	$ 101,750.00	$ 194,745.00	$ 188,879.00	$ 179,412.00	$ 182,103.18	$ 184,834.73	$ 187,607.25
Interest	$ 55,395.76	$ 52,542.82	$ 50,781.53	$ 49,440.75	$ 50,182.36	$ 50,935.10	$ 51,699.12
Depreciation/Amortization	$ 105,035.00	$ 96,797.00	$ 89,615.00	$ 88,803.00	$ 90,135.05	$ 91,487.07	$ 92,859.38
Leasehold Expenses	$ 10,537.56	$ 8,711.55	$ 10,414.92	$ 13,520.55	$ 13,723.36	$ 13,929.21	$ 14,138.15
Other: Maintenance Expenses	$ 141,757.61	$ 185,892.65	$ 233,814.03	$ 173,969.37	$ 176,578.91	$ 179,227.59	$ 181,916.01
Other: Taxes	$ 356,420.79	$ 393,514.54	$ 458,337.42	$ 469,017.33	$ 476,052.59	$ 483,193.38	$ 490,441.28
Other: Contract Services	$ 534,956.39	$ 656,447.75	$ 684,043.83	$ 542,145.69	$ 500,277.87	$ 530,532.04	$ 566,910.02
Total Expenses	$ 6,337,301.96	$ 6,994,856.26	$ 7,991,719.86	$ 7,631,128.53	$7,695,595.46	$7,833,779.39	$ 7,979,706.08
OPERATING PROFIT/LOSS	$ 247,753.57	$ (665,637.78)	257,252.33	$ (82,010.94)	$ 4,504.48	$20,322.55	$ 31,477.90

4. Please provide Net Patient Revenues (dollar value and percentage) for the existing facility by completing the table below for the requested years.
Note: "Other" is not calculated within Total Net Patient Revenue.

	Past Three Fiscal Years (Actual)						Budgeted Current Year	
	FY:2021		**FY:2022**		**FY:2023**		**FY:2024**	
PAYOR SOURCE:	$	%	$	%	$	%	$	%
Medicare	$ 856,424.28	15%	$ 771,525.14	13%	1,121,878.86	15%	$ 689,973.87	9%
Medicaid	$ 3,103,823.99	56%	$ 3,390,861.40	55%	4,130,250.19	55%	$ 4,535,172.42	61%
Blue Cross	-	-	-	-	-	-	-	-
Commercial	$ 919,075.12	17%	$ 1,161,750.94	19%	1,126,970.14	15%	$ 1,217,530.17	16%
HMO's	-	-	-	-	-	-	-	-
Self-Pay	$ 623,812.43	11%	$ 647,745.06	11%	1,053,952.72	13%	$ 995,746.95	13%
Hospice	$ 3,876.17	1%	$ 147,340.10	2%	117,834.98	2%	$ 81,372.84	1%
Other:	$ 1,078,043.54	-	$ 209,995.84	-	698,085.30	-	$ 29,321.34	-
TOTAL Net Patient Revenue	$ 5,507,011.99	100%	$ 6,119,222.64	100%	7,550,886.89	100%	$ 7,519,796.25	100%
Charity Care*	-	%	-	%	-	%	-	%

	Projected First Three Operating Years (if approved)					
	FY:2025		**FY:2026**		**FY:2027**	
PAYOR SOURCE:	$	%	$	%	$	%
Medicare	$ 703,773.35	9%	$ 717,848.81	9%	$ 732,205.79	9%
Medicaid	$ 4,625,875.87	61%	$ 4,718,393.39	61%	$ 4,812,761.25	61%
Blue Cross		-		-		-
Commercial	$ 1,241,880.77	16%	$ 1,266,718.39	16%	$ 1,292,052.76	16%
HMO's		-		-		-
Self-Pay	$ 1,015,661.89	13%	$ 1,035,975.13	13%	$ 1,056,694.63	13%
Hospice	$ 83,000.30	1%	$ 84,660.30	1%	$ 86,353.51	1%
Other:	$ 29,907.77	-	$ 30,505.92	-	$ 31,116.04	-
TOTAL Net Patient Revenue	$ 7,670,192.18	100 %	$ 7,823,596.02	100 %	$ 7,980,067.94	100%
Charity Care*	-	%	-	%	-	%

*Charity Care does not include bad debt and is based on costs (not charges). For Home Nursing Care Providers, the statewide community standard shall be one percent (1%) of net patient revenue earned on an annual basis.

NOTE: TOTAL Net Patient Revenues should equal Net Patient Revenues identified in Appendix A, Table 3.

(TO BE COMPLETED BY THE APROPRIATE STATE AGENCY)

Appendix B

Rhode Island Department of Health
Center for Health Systems Policy and Regulation

Compliance Report

(Name of Applicant) _____ has applied for licensure as a healthcare facility in Rhode Island. As part of the regulatory requirements to determine the character, competence and other quality related information of the applicant, the Center for Health Systems Policy and Regulation is requesting the following information regarding the health care facilities operated by or affiliated with the applicant, as listed on the attached sheet.

Please answer the following questions.

1. Are the agencies/facilities currently licensed and in substantial compliance with all applicable codes, rules and regulations? Yes__ No__

If the answer to #1 is "NO", please identify the facility(ies) and briefly explain the licensure status.

2. Has there been any enforcement actions against these agencies/facilities in the past three (3) years? Yes__ No__

If the answer to #2 is "YES", please identify the facility(ies) and include any information relevant to those enforcement actions (reason for action, stipulation, fine, etc.). In addition, please furnish a brief description of the outcome of the most recent survey, including any deficiencies cited. Additional pages may be attached, if needed.

Reviewer's Name: _____ Title: _____
Department: _____ State: _____
Telephone_____ E-mail _____
Reviewer's Signature: _____ Date: _____

If you have any questions, please contact Paula Pullano at (401) 222-2788 or e-mail, Paula.Pullano@health.ri.gov. Please return the completed form within 15 days to Paula.Pullano@health.ri.gov or to the address below:

Rhode Island Department of Health
Center for Health Systems Policy and Regulation
3 Capitol Hill, Room 410
Providence, Rhode Island 02908

Thank you.
Attachment

Appendix B (CONT.)

Applicant, please provide the following information identifying each facility to the appropriate state agency as an attachment to the letter in the table below, use additional pages if necessary. Please make sure to identify yourself in the cover letter by filling in the blank for 'Name of Applicant'.

State	Facility Name, Address and Contact Information	License Number
RI	Nursing Placement, Inc. 588 Pawtucket Avenue Pawtucket, RI 02860	HNC 02423
RI	Nursing Placement Home Health Care Services, Inc. 588 Pawtucket Avenue Pawtucket, RI 02860	HNC 02299
RI	Nursing Placement Hospice & Palliative Care, LLC 588 Pawtucket Avenue Pawtucket, RI 02860	HSP 01641
	Michael Bigney can be contacted for all three entities at 401-728-6500	

Appendix C

Nursing Home Proposals

All change in effective control applications, which involve nursing homes, must be accompanied by responses to the questions posed herein.

1. Please provide the current patient census at the facility by payor source in the table below.
   Date of Census 05/22/2024, Licensed bed capacity 76

Payor Source	Number of Patients	Percent of Total
Medicaid	44	72%
Medicare	5	8%
Commercial	7	12%
Private Pay	5	8%
Veterans	0	0%
Other: (_____)	0	0%
TOTAL:	**61**	**100%**

2. Please complete the following Medicaid per diem worksheet for the facility.

	COSTS		REIMBURSEMENT		MAXIMUM RATE	
Expense	Current FY 20__	First FY 20___ Project Approved	Current FY 20__	First FY 20___ Project Approved	Current FY 20__	First FY 20___ Project Approved
Pass Through Cost Center	N/A	N/A	N/A	N/A	N/A	N/A
Fair Rental Cost Center	N/A	N/A	N/A	N/A	N/A	N/A
Direct Labor Cost Center	N/A	N/A	N/A	N/A	N/A	N/A
Other Operating Expenses	N/A	N/A	N/A	N/A	N/A	N/A
TOTAL:	N/A	N/A	N/A	N/A	N/A	N/A

PLEASE NOTE: The Applicant's understanding is that the new method of reimbursement for Medicaid Fee for Service no longer follows the above methodology. Medicaid Fee for Service is currently reimbursed under the Case Mix Adjusted System in Rhode Island and the rates that facilities are paid are included in the RUG schedule prepared by the Medicaid Office.

3. Please demonstrate that the applicant or proposed license holder shall have sufficient resources to operate the nursing facility at licensed capacity for thirty (30) days, evidenced by an unencumbered line of credit, a joint escrow account established with the Department, or a performance bond secured in favor of

the state or a similar form of security satisfactory to the Department.

See Tab H

Appendix C (CONT.)

4. Please complete the following itemization of projected utilization and net patient revenue.
NOTE: Per Diem Revenue amounts are rounded to two (2) decimals places for presentation purposes only. Rounded Total Revenue amounts are within $50 of actual calculations.

<-- FIRST FULL OPERATING YEAR 2025 -->			
PAYOR	**CEC APPROVED**	**CEC NOT APPROVED**	**DIFFERENCE**
MEDICAID:			
Per Diem Revenue	$ 294.04	$ 294.04	$0.00
Patient Days	# 15,732	# 15,732	0
Total Revenue	$ 4,625,875.87	$ 4,625,875.87	$0.00
MEDICARE:			
Per Diem Revenue	$ 740.04	$ 740.04	$0.00
Patient Days	# 951	# 951	0
Total Revenue	$ 703,773.35	$ 703,773.35	$0.00
COMMERCIAL:			
Per Diem Revenue	$ 681.98	$ 681.98	$0.00
Patient Days	# 1,821	# 1,821	0
Total Revenue	$ 1,241,880.77	$ 1,241,880.77	$0.00
PRIVATE PAY:			
Per Diem Revenue	$ 499.34	$ 499.34	$0.00
Patient Days	# 2,034	# 2,034	0
Total Revenue	$ 1,015,661.89	$ 1,015,661.89	$0.00
VETERANS:			
Per Diem Revenue			
Patient Days			
Total Revenue			
OTHER: (Hospice):			
Per Diem Revenue	$ 282.31	$ 282.31	$0.00
Patient Days	# 294	# 294	0
Total Revenue	$ 83,000.30	$ 83,000.30	$0.00
ANCILLARY			
TOTAL PATIENT REVENUE:	**$ 7,670,192.18**	**$ 7,670,192.18**	**$0.00**
TOTAL PATIENT DAYS:	**# 20,832**	**# 20,832**	**0**

Appendix C (CONT.)

5. Based on the format below, please provide a summary of the applicant's administrative and operational policies and procedures to provide individualized and resident-centered care, services, and accommodations, and a sense of peace, safety, and community, and clearly identify how the proposal would advance these areas:

a. Resident's physical environment:

i. Accommodations for privacy vs. congregate and common areas;

The existing facility provides a homelike environment. Residents are provided with privacy in private and shared-occupancy rooms. Common lounge areas provide opportunities for socializing, recreation and interaction.

ii. Choice and autonomy in personal space, fixtures, furniture;

Resident rooms are personalized and provide a real sense of home. Residents and their family members are encouraged to decorate the rooms with personal items, pictures, furniture and other items from home.

iii. Access to and involvement in decentralized services, such as, community kitchen(s), laundry, activities;

Kitchenettes are located throughout the facility. Afternoon snacks include, but are not limited to, cheese and crackers, cookies, fresh fruit, etc. Meals are served in a homelike environment including breakfast, lunch and dinner. There are seasonal menu changes. A full array of activities are offered including a formal, structured activities program as well as self-directed activities including personal time in their rooms watching television, reading books or magazines, listening to music visiting with friends and family, playing games, etc. Laundry services are provided by nursing facility.

iv. Access to outdoors and outdoor activities (e.g., sunrooms, patios, gardens and gardening);

There are lounge areas throughout the facility to provide opportunities for socialization, recreation and interaction. Residents have access to outdoor patio areas with an awning and a courtyard. Weather permitting, activities will allow for musical guests, entertainers, cookouts and other forms of daily entertainment.

b. Resident-centered systems of care:

i. Security systems and care delivery systems to foster autonomy, choice, and negotiated risk;

The facility protects residents by utilizing security systems that prevents high risk residents from exiting the facility without staff supervision. Resident

safety is of the utmost importance. All exits have door alarms that are tied to walkie talkies and alert the staff when opened. Lastly, residents have access to a call system that alerts staff when they need immediate assistance.

ii. Individualized daily/nightly scheduling (e.g., daily rhythm, going to bed, waking);

Residents are given choices as to their preferred times for waking in the morning, bathing, activities, going to bed, etc. The primary staffing model enhances the staff's knowledge of these preferences and ensures that these preferences are honored consistently.

iii. Dining flexibility (e.g., time, access to dining style and menu choice);

Residents are encouraged and able to convey their preferences related to dining times, likes and dislikes and menu selection on admission and throughout their stay at Eastgate. Afternoon snacks include but are not limited to cheese and crackers, cookies, fresh fruit, etc.

iv. Lifestyle/activities flexibility;

Residents are made aware of all structured and individual activity options offered at Eastgate. This is in addition to their personal preferences related to the in-room and informal recreational options (arts and crafts, television, music, games, puzzles, exercise and stretch activities, reading, etc.) Their choices and preferences are documented and incorporated into their plan of care to the greatest extent possible.

c. Workforce administration:

i. How do staffing schedules and assignments ensure consistent delivery of resident services and foster relationship building?

Eastgate uses consistent staff model with their primary residents. This model fosters relationship building between caregiver and resident, enables the staff to learn the individual's preferences and routines.

ii. Administrative status strategies for dealing with licensed staff turn-over (e.g. Registered nurses, Licenses Practical nurses, Nursing Assistants)

Eastgate enjoys a high level of staff retention. The applicant will be cognizant of this stability throughout the transition period and will ensure that all staff realize they are the foundation of the facility and its reputation. The Applicant will work with the existing nursing management and staff, to the extent possible, to ensure a smooth transition to ensure this continuity lasts long into the future operations of the facility.

Appendix D

Source of Funds

All applicants must complete this Appendix.

I. Please provide the total expenditures necessary to implement this proposal and allocate this amount to the sources of funds categories listed below:

TOTAL PROJECT COST: **$100,000.00***

SOURCE OF FUNDS	AMOUNT
a. Funded depreciation	$ _____
b. Other restricted funds (specify) _____	_____
c. Unrestricted funds (specify) _____	_____
d. Owner's equity	$100,000.00
e. Sale of stock/other equity	_____
f. Unrestricted donations or gifts	_____
g. Restricted donations or gifts	_____
h. Government grant (specify) _____	_____
i. Other non-debt funds (specify) _____	_____
j. Sub-Total Equity Funds	_____
k. Subsidized loan (e.g. FHA etc.) _____	_____
l. Tax-exempt bonds (specify) _____	_____
m. Conventional mortgage	_____
n. Lease or rental	_____
o. Other debt funds	_____
p. Sub-Total Debt Funds	_____
q. Total Source of Funds	**$100,000.00**

* should equal the response for line "q"

Appendix E

Debt Financing

All applicants proposing debt financing must complete this Appendix.

Applicants contemplating the incurrence of a financial obligation for full or partial funding of the proposal must complete and submit this appendix.

1. Please describe the proposed debt by completing the following:
   a.) type of debt contemplated — Conventional
   b.) term (months or years) — 20 years
   c.) principal amount borrowed — $1,250,000.00
   d.) probable interest rate — 7.5%
   e.) points, discounts, origination fees — $3,125
   f.) compensating balance or reserved fund — _____
   g.) likely security — real estate
   h.) disposition of property (if a lease is revoked) — _____
   i.) prepayment penalties or call features — _____
   j.) front end costs (e.g. underwriting spread, feasibility study, legal and printing expense, points etc.) — _____
   k.) debt service reserve fund — _____

2. If this proposal involves refinancing of existing debt, please indicate the original principal, the current balance, the interest rate, the years remaining on the debt and a justification for the refinancing contemplated.

Not Applicable

3. Please present a debt service schedule for the chosen method of financing, which clearly indicates the total amount borrowed and the total amount repaid per year. Of the amount repaid per year, the total dollars applied to principal and total dollars applied to interest must be shown.

See Tab I

Appendix F

Disclosure of Ownership and Control Interest

All applicants must complete this Appendix.

I. Please answer the following questions by checking either 'Yes' or 'No'. If any of the questions are answered 'Yes', please list the names and addresses of individuals or corporations.

A. Will there be any individuals (or organizations) having a direct (or indirect) ownership or control interest of 5 percent or more in the applicant, that have been convicted of a criminal offense related to the involvement of such persons or organizations in any of the programs established by Titles XVIII, XIX of the Social Security Act? Yes___ No_**X**_

B. Will there be any directors, officers, agents, or managers of the applicant (or facility) who have ever been convicted of a criminal offense related to their involvement in such programs established by Titles XVIII, XIX of the Social Security Act? Yes___ No_**X**_

C. Are there (or will there be) any individuals employed by the applicant (or facility) in a managerial, accounting, auditing, or similar capacity who were employed by the applicant's fiscal intermediary within the past 12 months (Title XVIII providers only)? Yes___ No_**X**_

D. Will there be any individuals (or organizations) having direct (or indirect) ownership interests, separately (or in combination), of 5 percent or more in the applicant (or facility)? (Indirect ownership interest is ownership in any entity higher in a pyramid than the applicant) Yes_**X**_ No___ (Note, if the applicant is a subsidiary of a "parent" corporation, the response is 'Yes')
See Tab J

E. Will there be any individuals (or organizations) having ownership interest (equal to at least 5 percent of the facility's assets) in a mortgage or other obligation secured by the facility? Yes___ No_**X**_

F. Will there be any individuals (or organizations) that have an ownership or control interest of 5 percent or more in a subcontractor in which the applicant (or facility) has a direct or indirect ownership interest of 5 percent or more. (Also, please identify those subcontractors.) Yes_**X**_ No___
See Tab J

G. Will there be any individuals (or organizations) having a direct (or indirect) ownership or control interest of 5 percent or more in the applicant (or facility), who have been direct (or indirect) owners or employees of a health care facility against which sanctions (of any kind) were imposed by any governmental agency? Yes_**X**_ No___
See Tab K

CMP of 6 Homes. No OSHA fines.

H. Will there be any directors, officers, agents, or managing employees of the applicant (or facility) who have been direct (or indirect) owners or employees of a health care facility against which any sanctions were imposed by any governmental agency? Yes___ No_**X**__

Appendix G

Ownership Information

All applicants must complete this Appendix

1. List all officers, members of the board of directors, stockholders, and trustees of the applicant and/or ultimate parent entity. For each individual, provide their home and business address, principal occupation, position with respect to the applicant and/or ultimate parent entity, and amount, if any, of the percentage of stock, share of partnership, or other equity interest that they hold.

See Tab L

2. For each individual listed in response to Question 1 above, list all (if any) other health care facilities or entities within or outside Rhode Island in which he or she is an officer, director, trustee, shareholder, partner, or in which he or she owns any equity or otherwise controlling interest. For each individual, please identify: A) the relationship to the facility and amount of interest held, B) the type of facility license held (e.g. nursing facility, etc.), C) the address of the facility, D) the state license #, E) Medicare provider #, F) any professional accreditation (e.g. JACHO, CHAP, etc.), and G) complete Appendix B 'Compliance Report' and submit it to the appropriate state agency.

See Tab C

3. If any individual listed in response to Question 1 above, has any business relationship with the applicant, including but not limited to: supply company, mortgage company, or other lending institution, insurance or professional services, please identify each such individual and the nature of each relationship.

See Tab J

4. Have any individuals listed in response to Question 1 above been convicted of any state or federal criminal violation within the past 20 years? Yes___ No_**X**_.

- If response to Question 4 is 'Yes', please identify each person involved, the date and nature of each offense and the legal outcome of each incident.

5. Please list all licensed healthcare facilities (in Rhode Island or elsewhere) owned, operated or controlled by any of the entities identified in response to Question 15 of the application. For each facility, please identify: A) the entity, applicant or principal involved, B) the type of facility license held (e.g. nursing facility, etc.), C) the address of the facility, D) the state license #, E) Medicare provider #, F) any professional accreditation (e.g. JACHO, CHAP, etc.), and G) complete Appendix B 'Compliance Report' and submit it to the appropriate state agency.

See Tab C

6. Have any of the facilities owned, operated or managed by the applicant and/or any of the entities identified in Question 5 above during the last 5-years had bankruptcies and/or were placed in receiverships?
Yes___ No__**X**_

- If response to Question 6 is 'Yes', please identify the facility and its current status.

Tab A

MANAGEMENT AGREEMENT

This Agreement is made and entered into as of _____ by and between 198 Waterman Avenue LLC (hereinafter called **"OWNER"),** and Health Concepts, Ltd., a Rhode Island corporation, (hereinafter called "**MANAGER**").

1. Introduction

1.1 OWNER desires to arrange for the management Eastgate Nursing & Rehabilitation Center, a 76 bed nursing facility located in East Providence, Rhode Island (hereinafter called the "**FACILITY),**

1.2 MANAGER'S shareholders are Michael Bigney, Stephanie Ryan, Kelly Arnold and Christopher Ryan.

1.3 MANAGER is in the business furnishing management and other services to nursing facilities in Rhode Island, as per Rhode Island, Executive Office of Health and Human Services, Principles of Reimbursement for Nursing Facilities, Centralized Home Office, providing centralized management, purchasing and accounting services.

2. Management Services

2.1 Except as otherwise provided herein, MANAGER shall provide management support needed for the operation of the Facility subject to the limitations set forth in Section 2.3 herein. See attached Organizational Chart of MANAGER

2.2 MANAGER's authority shall include, without limitation, the following:

a. Provide management support to the Administrator, who is licensed by the State of Rhode Island and employed by the facility;

b. Act as a liaison between Facility and outside State, Federal and Private entities, including legal counsel;

c. Arrange for contracts for the purchase of all medical supplies, dietary, office and other items required to operate the Facility;

d. Provide management review of costs of all departments of the Facility;

e. Provide continuous review of all operational aspects of the Facility;

f. Establish and maintain banking relationships for said Facility

including but not limited to bank financing if necessary;

g. Establish all accounting, bookkeeping, recordkeeping and reporting activities in accordance with accounting principles generally accepted in the United States of America; HUD regulations, if applicable and in accordance with Medicare and Medicaid;

h. Oversee, train and provide guidance to the bookkeeping staff at the Facility;

i. Design, implement, and maintain a system of internal control relevant to the preparation and fair presentation of financial statements that are free from material misstatement, whether due to fraud or error;

j. Review receivables with facility bookkeepers to ensure that claims are paid correctly and timely. Review and reconcile credit balances with the Facility;

k. Design measures that prevent, detect, and correct non-compliance with CMS' program requirements. Manage the corporate compliance program at the facility as well as the manager level;

l. Advise on all laws and regulations with respect to compliance requirements for licensure of the Facility;

m. Coordinate, develop and support resident assessment process in accordance with the requirements of the federal and state regulations, includes auditing and education of the RAI process;

n. Ensure the privacy, clinical training, and operation of the medical record software as well as other clinical software platforms. Audit and monitor the systems for accuracy and consistency of use;

o. Establish standardized personnel policies and procedures;

p. Oversee 401(k) administration;

q. Oversees employment law compliance and compliance to regulatory concerns;

r. Oversee benefit management and administration and employee-related databases;

s. Oversee self-insured and fully insured workers compensation programs;

t. Support and oversee the ongoing system of education, including mandatory education, at the facilities;

u. In collaboration with the facilities, assist in developing, implementing and monitoring relevant in-service training programs that meet identified areas in which training is necessary;

v. Plan, organize, and execute information and computing functions across the enterprise. Interface with internal and external customers to meets the needs of the organization;

w. Oversee and advise on environmental and life safety compliance in the nursing homes;

x. Design and oversee construction of facility physical plant, facility aesthetics;

y. Provide management review for all interior, exterior and equipment maintenance for the Facility;

z. Coordinate marketing plan and corporate branding.

2.3 Notwithstanding any other provision in this agreement, Manager shall not have the authority to (i) hire and fire the chief executive officer / administrator of the facility, (ii) maintain and control the books and records of the facility, (iii) dispose of assets and incur liabilities on behalf of the facility or (iv) adopt and enforce policies regarding the operation of the facility.

2.4 This agreement shall in no way alter, weaken, displace or modify the responsibility of the Facility or Owners of the Facility's direction and control. By entering into this agreement, the Facility does not delegate to the Manager any of the rights, duties or responsibilities vested in the facility's Owners or officers. All matters concerning medical or clinical care or requiring professional medical judgements shall remain the sole responsibility of the Facility or Facility's Medical Director. The Rhode Island licensed Administrator shall be responsible for overseeing the day-to-day operations of the facility, management of the Facility's resources, and administration of the Facility's regulatory compliance efforts. The paying of accounts payable, billing and collection of receivables remains at the facility level. All bank accounts remain under the control of the Facility.

.

3. *Interim Staffing*

Parties acknowledge that recruitment of key positions is sometimes difficult and the Facility may benefit from the use of interim staffing supplied by the Management Company. Parties further acknowledge that there are times when coverage is needed at the facility for vacation or medical leaves of key personnel. The Facility agrees to pay for such services upon prior approval and in addition to the fees provided for in this agreement. Such interim staffing will be billed on a monthly basis at the individual's current salary plus benefits.

4. *Statements and Reports; Certified Public Accountant*

4.1 MANAGER shall furnish, or cause to be furnished to OWNER (a) computerized operating and management statements within ten (10) days after the end of each month showing all income, expense, and cash flow, and (b) coordinate the filing of quarterly payroll tax returns within twenty-five (25) days after the end of each quarter, unless delayed by circumstances beyond its control.

4.2 MANAGER shall prepare or cause to be prepared for the Facility Medicare and Medicaid reports, budgets, internal financial reports, and MANAGER shall supervise the preparation of such other reports or statements as may be required by City, State and Federal laws and regulations. MANAGER shall maintain all record keeping procedures so as to meet all lender requirements. When requested by OWNER, MANAGER shall submit to OWNER for prior review any such report then (10) days before such report is filed with the proper city, state or federal agency. If OWNER does not notify MANAGER of any changes to such report within five days, then it shall be assumed OWNER has approved such report.

4.3 OWNER shall appoint and be liaison to independent certified public accountants to perform an annual audit of financial statements, if applicable, in accordance with auditing standards generally accepted in the United States of America and the standards applicable to financial audits contained in *Government Auditing Standards*, issued by the Comptroller General of the United States and electronically submit annual certified financial statements and all tax returns except payroll tax returns.

5. *Term of Agreement*

5.1 This Agreement shall be for a period of fifteen (15) years, commencing ____ and ending ____. In the event that neither party gives to the other

written notice prior to _____ then this Agreement shall automatically be renewed for an additional fifteen (15) year term upon the same terms and conditions herein,

5.2 At the termination date of this Agreement (or any extension thereof), OWNER hereby grants to MANAGER the right to employ directly or in any other nursing facility owned or managed by MANAGER all key and/or supervisory employees of the Facility, including but not limited to, the Administrator, any assistant Administrator or Co-Administrator, the Director of Nurses, and the Chef Any employee leaving the employ of OWNER at termination of this Agreement to then be employed by MANAGER as above shall give OWNER at least four (4) months written notice of termination.

6. *Compensation of Manager*

Management fees will be computed and paid according to HUD requirements, if applicable. As its compensation for providing services under this agreement, Owner shall pay to Manager, commencing as of _____ seven percent (7%) of net patient revenue. Compensation shall be due and payable by Owner to Manager on the twentieth (20th) day of each month for the services rendered in that month.

7. *Expenses*

Facility shall reimburse MANAGER for all proper, reasonable, and reimbursable out-of-pocket expenses incurred or paid by MANAGER in connection with performance under this Agreement, including, but not limited to, reproduction costs, telephone charges, and items which OWNER would normally purchase on its own, but which are purchased by MANAGER on behalf of OWNER, including but not limited to insurance, legal, advertising, clinical consulting, computer software and hardware. MANAGER shall request vendors of all items purchased for the Facility to bill the Facility directly on a net basis including any pro rata credits which may be due by virtue of pooled or joint purchases, recognizing that centralized billing may be a more cost effective approach. In these circumstances, the facility will be billed its proportionate share of the expenditure. The Facility shall promptly pay all such charges. MANAGER shall under no circumstances be required to advance any funds, or to obligate itself in any manner, to employees of OWNER or to third parties for of cm behalf of OWNER.

8. ***Insurance***

MANAGER will arrange for all insurance coverage normally in effect for the operation of a nursing facility, including but not limited to, hazard insurance , employee dishonesty coverage, general and professional liability, workers' compensation and cyber insurance. MANAGER will be named a co-insured under all liability and other insurance policies covering any phase of the operation of the Facility. All such insurance policies will be with reputable companies and in amounts reasonably satisfactory to MANAGER. MANAGER will work with insurance companies to resolve any claims in the most timely and cost effective way possible.

9. Representations and Warranty of OWNER

OWNER hereby represents and warrants as follows:

9.1 That OWNER is a duly formed Rhode Island corporation and is in compliance with all applicable Federal, State and local laws and regulations.

10. ***Representations and obligation of MANAGER***

Based upon all representations and warranties of OWNER as set forth in this Agreement, and on condition that OWNER fulfills and continues to fulfill all such representations and warranties on a timely basis, MANAGER hereby represents as follows:

10.1 That MANAGER is a duly formed Rhode Island Corporation and is in compliance with all applicable Federal, State and local laws and regulations.

11. ***Other Activities***

OWNER acknowledges that MANAGER is engaged in the business of owning, operating and advising nursing facilities some of which may be in the geographical area of the Facility. MANAGER may continue all such activities and may at some time in the future acquire, advise or manage other such facilities in the geographic area of the Facility provided that it will in no way favor any of such other facilities over the Facility.

12. ***Disputes***

Any controversy or claim arising out of or relating to this Agreement shall be settled by arbitration conducted in Rhode Island, in accordance with the rules then obtaining of the American Arbitration Association and judgment upon the award rendered by the arbitrators may be entered in any court, federal or state.

13. ***Notices***

Notices required or permitted to be given hereunder shall be in writing and shall be deemed sufficient only if sent by United States registered or certified mail, return receipt requested, postage prepaid, as follows:

If to OWNER:
198 Waterman Avenue LLC
d/b/a Eastgate Nursing & Rehabilitation Center
588 Pawtucket Avenue
Pawtucket, Rhode Island 02860

If to MANAGER:
Health Concepts, Ltd.
588 Pawtucket Avenue
Pawtucket, Rhode Island 02860

or at such other addresses as the respective parties designated by written notice.

14. ***Parties Bound and Benefited: Assignment; Subcontracts***

This Agreement shall bind the parties hereto, their successors and assigns. This Agreement is solely for the benefit of OWNER and MANAGER, their successors and assigns; no other person or entity shall acquire or have any right under or by virtue of this Agreement; and MANAGER shall have no obligation or liability to any person or-entity other than OWNER in connection with this Agreement or the providing of services hereunder.

15. ***Miscellaneous***

This Agreement contains the complete understanding of the parties and incorporates all prior agreements, oral or written. Any modification of this Agreement shall be ineffective unless made in writing and signed by both parties. The headings used before the various paragraphs of this Agreement are for ease of reference only and do not constitute parts of this Agreement. If any provision of this Agreement shall be declared invalid or unenforceable, the remaining terms of this Agreement shall not be affected

thereby. This Agreement shall be governed by and construed in accordance with the laws of the State of Rhode Island applicable to contracts made and to be performed therein in conformity with Executive Office of Health and Human Services Regulations and if applicable, HUD Regulatory Agreement or any other federal/state requirements. "Upon request of HUD or OWNER, MANAGER will make available to HUD, at a reasonable time and place, its records and records of identity-of-interest companies which relate to goods and services charged to the project. Records and information will be sufficient to permit HUD to determine the services performed, the dates the services were performed, the location at which the services were performed, the time consumed in providing the services, the charges made for materials, and the per-unit and total charges levied for said services." The OWNER agrees to request such records within seven (7) days of receipt of HUD's request to do so.

Upon the written request of the Secretary of Health and Human Services or the Comptroller General or any of their duly authorized representatives, the Manager and the Facility will make available those contracts, books, documents, and records necessary to verify the nature and extent of the costs of providing services under this Agreement. Such inspection shall be available up to four (4) years after the rendering of such services. If the Manager carries out any of the duties of this Agreement through a subcontract with another party at a value of Ten Thousand Dollars ($10,000) or more over a 12-month period with a related individual or organization, the Manager agrees to include this requirement in any such subcontract. This section is included pursuant to and is governed by the requirements of Public Law 96-499, 952 (1861)(v)(1) of the Social Security Act and the regulations promulgated thereunder. No attorney-client, accountant-client or other legal privilege will be deemed to have been waived by the Manager by virtue of this Agreement.

In the event of non-compliance with any of the aforesaid, then said parties to this agreement shall have ninety (90) days to cure said non-compliance.

16. ***Severability Clause***

Wherever possible each provision of this agreement shall be interpreted in such manner as to be effective and valid under applicable law. Should any portion of this agreement be declared invalid for any reason in any jurisdiction, such declaration shall have no effect upon the remaining portions of this agreement. Furthermore, the entirety of this agreement shall continue in full force and effect in all other jurisdictions and said remaining portions of this agreement shall continue in full force and effect in the subject jurisdiction as if this agreement had been executed with the

invalid portions thereof deleted.

IN WITNESS WHEREOF, OWNER, by its duly authorized general partner/officer, and MANAGER, by its duly authorized officer, have executed Agreement in multiple originals as of .

198 Waterman Avenue LLC

_____ **BY:**_____

WITNESS
Christopher Ryan

Michael Bigney, President

HEALTH CONCEPTS, LTD.

_____ **BY:**_____

WITNESS
Christopher Ryan

Michael Bigney, President

Tab B

AGREEMENT

Re: Sale of Health Concepts, Ltd., and related skilled nursing facilities to Michael Bigney,

Based upon the ongoing discussions between the undersigned parties and the information that they have exchanged during these discussions, Michael Bigney ("Bigney"), or a Nominee owned and controlled by Michael Bigney (together with Bigney, the "Buyer"), is proposing to acquire ownership interest in Health Concepts, Ltd. ("Health Concepts") and the affiliated Skilled Nursing Facilities, and associated real estate with each Skilled Nursing Facility ("Ancillary Properties"), as more fully outlined on Exhibit A, attached hereto and incorporated herein (collectively, the "Facilities"). The structure of the proposed transaction is in the form of stock / membership / partnership / individual interest transfers, in a manner and upon the terms and conditions as more fully outlined below.

1. Description - Sellers, as outlined on Exhibit A (collectively, the "Seller"), and Buyer agree that the stock / membership / partnership / individual interests being acquired by Buyer shall include all ownership interests in Health Concepts and the Facilities.

2. Commencement Date: The Commencement Date for the transaction contemplated by the Seller and Buyer shall be January 1, 2024 (the "Commencement Date").

3. Purchase Price – The Purchase Price shall be Ten Million and 00/100 ($10,000,000.00) Dollars payable to Seller for the stock / membership / partnership / individual interests in Health Concepts and the Facilities. The Seller and Buyer shall mutually agree on the allocations of the Purchase Price. From the Commencement Date until the transaction has been consummated (the "Consummation Date", as defined below), the Buyer shall have sole operational financial responsibility and shared management responsibility with the CEO and COO of Health Concepts, and Buyer timely shall make any requisite monetary contributions to fund cash flow to cover the operations of Health Concepts and the Facilities, such to be made and reconciled as needed ("Cash Flow Contribution"). The Seller and Buyer agree that Health Concepts and the Facilities shall operate in the same or substantially similar manner as they have been operating, and such Cash Flow Contributions by Buyer, if any, will be carried on the books of Health Concepts as a loan to Buyer, payable, interest only payments, at five (5%) percent per annum, commencing thirty (30) days after the Cash Flow Contributions are made to Health Concepts by Buyer. Additionally, in the event any principal payment is made to Buyer towards any Cash Flow Contribution loan, then, in that event a principal payment of the same amount will be made towards the Health Concepts loan payable, current balance approximately Five Hundred Thousand 00/100 ($500,000.00) Dollars (the "Ryan loan"), to David M. Ryan, Trustee, of the David M. Ryan Trust – 2018 and the Sally J. Ryan Trust – 2018. Further, Buyer and Seller have acknowledged that the Ryan loan had an original due amount of approximately Four Million Five Hundred Thousand and 00/100 ($4,500,000.00) Dollars on the Health Concepts books and records to Seller, but that Seller has agreed, as of December 31, 2023, to convert Four Million and 00/100 ($4,000,000.00) Dollars of the Ryan loan to equity. At the Consummation Date, the Ryan loan, shall be considered paid in full. In the event the transaction contemplated herein is not completed, not due to any fault or

omission of the Buyer, then, in that event, Health Concepts and/or Seller, at the sale of Health Concepts, shall return to Buyer the following: i] any remaining Cash Flow Contributions with all unpaid accrued interest from the date of last payment at the rate of five (5%) percent per annum; ii) the Two Million Five Hundred Fifty Thousand and 00/100 ($2,550,000.00) Dollars paid to Seller, payable with interest at the rate of five (5%) percent, from the date that the transaction is not going forward, i.e. a needed approval is not received; iii] any payments made by Buyer to Seller on the Two Million Four Hundred Fifty Thousand and 00/100 ($2,450,000.00) Dollar Promissory Note identified in paragraph 4, below, with interest at the rate of five (5%) percent per annum, from the date that the transaction is not going forward, i.e. a needed approval is not received, and, as well, the Promissory Note shall be forgiven; and iv] any payments made by Buyer to Seller on the Two Million Five Hundred Thousand and 00/100 ($2,500,000.00) Dollar Promissory Note identified in paragraph 6, below, with interest at the rate of five (5%) percent per annum, from the date that the transaction is not going forward, i.e. a needed approval is not received, and, as well, the Promissory Note shall be forgiven Contemporaneously with said sale and the payments to Buyer from the sale proceeds as outlined above, and which payments shall be made to Buyer prior to any other distributions by Health Concepts, Buyer shall return to Health Concepts the Buyer's Forty-Nine (49%) Percent of the Health Concepts stock, which payments shall be the limit of Buyer's interest in the sale proceeds. Additionally, Seller agrees that in the event of any such sale, Seller shall allocate to Health Concepts sufficient amounts necessary to make the payments above. Additionally, David M. Ryan, or his designee, shall reimburse Health Concepts monthly, in advance of payroll dates, for the salary expense of David M. Ryan, Sally J. Ryan, Kevin S. Ryan, and Terry Carragher, who shall remain on the Health Concepts payroll until the Consummation Date. During said period, each individual named, David M. Ryan, Sally J. Ryan, Kevin S. Ryan, and Terry Carragher, if allowed by law, shall waive any worker's compensation claims that they can make upon Health Concepts and further, each individual shall execute such document as is needed, concurrent with the execution of this Agreement, necessary to accomplish such waiver.

4. Purchase Phase One: Upon the Commencement Date, Seller shall transfer to Buyer Forty-Nine (49%) Percent of the Health Concepts stock, such transfer to be subject to approval by Bank Rhode Island, which holds a security interest in Health Concepts. The Purchase Price allocation to be paid by Buyer to Seller is Five Million and 00/100 ($5,000,000.00) Dollars, such payment to be in the form of Two Million Five Hundred Fifty Thousand and 00/100 ($2,550,000.00) Dollars cash, and a Promissory Note payable from Buyer to Seller in the principal amount of Two Million Four Hundred Fifty Thousand and 00/100 ($2,450,000.00) Dollars at Five Percent (5%) interest payable over a period of one hundred twenty (120) months at the rate of Twenty-five Thousand Nine Hundred Eighty-six and 05/100 ($25,986.05) Dollars per month until paid in full. Such Promissory Note shall be secured by Buyer's stock in Health Concepts and personal guarantee of Bigney and Buyer. Upon payment and transfer of Health Concepts stock, Michael Bigney shall be appointed as Chief Financial Officer of Health Concepts. Bigney shall work with the Chief Operating Officer and Chief Executive Officer and shall provide financial direction at Health Concepts, subject to the advice of Seller. It is agreed by Seller and Buyer, during the time period from the Commencement Date to the Consummation Date that Michael Bigney cannot be

removed from his role as CFO of Health Concepts except for cause, which includes Michael Bigney: (i) being arrested for, or found guilty of, or entering a plea of nolo contendre to, any criminal act under applicable law, dishonesty, embezzlement, or fraud, or conspiracy to commit the same; (ii) conducting himself such that there has been material negligence in the performance of his duties for Health Concepts; or (iii) any conduct by Michael Bigney which could be materially harmful to the business, interests, or reputation of Health Concepts and Facilities.

5. Purchase Phase Two: The Consummation Date to complete the transaction shall be a date mutually agreeable by the Seller and Buyer, but no later than Ninety (90) days after the Buyer has received the following approvals for the transfer of ownership of Health Concepts and the Facilities as contemplated by the Seller and Buyer from: (a) the mortgagees of Health Concepts and the Facilities - U.S. Housing and Urban Development and Bank Rhode Island, such approvals, must include discharge of any and all personal guarantees of David M. Ryan, Sally J. Ryan, and Kevin S. Ryan, (b) the Rhode Island Department of Health, and (c) any and all other requisite federal, state, and local regulatory approvals for Buyer to own and operate Health Concepts and the Facilities. Upon the Consummation Date, the Seller shall transfer to the Buyer the remaining Fifty-One Percent (51%) of the Health Concepts stock and One Hundred Percent (100%) of the stock / membership / partnership / individual interests, as applicable, of the Facilities. The Purchase Price allocation to be paid by Buyer to Seller to consummate the transaction is Five Million and 00/100 ($5,000,000.00) Dollars, such payment to be in the form cash. In the event that, after due diligent, complete, and timely effort, Buyer is unable to obtain financing necessary to make the Five Million and 00/100 ($5,000,000.00) Dollars payment associated with the Purchase Phase Two, then, in that event, Buyer will pay Seller Two Million Five Hundred Thousand and 00/100 ($2,500,000.00) Dollars in cash, and the remainder, Two Million Five Hundred Thousand and 00/100 ($2,500,000.00) Dollars in the form of a Promissory Note payable from Buyer to Seller, at Five (5%) Percent interest, payable over a period of sixty (60) months at the rate of Fifty Thousand and 00/100 ($50,000.00) Dollars per month, such Promissory Note to be secured by Health Concepts and the Facilities, and personally guaranteed by Bigney and Buyer. Additionally, the Consummation Date and the transaction proceeding to consummation is conditioned upon the Buyer not being in default of any of the provisions of this Agreement, the Purchase Phase One, and / or any of the Promissory Notes.

6. Existing Payables of Facilities to Health Concepts: Seller and Buyer agree that there is currently amounts owed by the Facilities to Health Concepts of approximately Fifteen Million Five Hundred Thousand and 00/100 ($15,500,000.00) Dollars as currently represented in the balance sheets of the Facilities ("Health Concept Receivables"), an amount which Seller and Buyer recognize and acknowledge fluctuates, and which amount Seller and Buyer agree shall be paid as follows: i] Buyer shall pay Seller a total of Five Million Five Hundred Thousand and 00/100 $5,500,000.00) Dollars for the Health Concept Receivables which shall be paid by Buyer to Seller as follows:. i) At Consummation Date, Buyer shall execute a Promissory Note to Seller in the principal amount of Three Million and 00/100 ($3,000,000.00) Dollars, with interest at the rate of two (2%) percent per annum, with a balloon payment in ten (10) years, payable monthly at the rate of Five Thousand and 00/100 ($5,000.00) Dollars per month until paid in full (the "AP1

Promissory Note"), and, additionally, which AP1 Promissory Note may be extended by Buyer for a period of five (5) years with notice from Buyer to Seller at least ninety (90) days prior to the maturity date of said AP1 Promissory Note, provided any other Promissory Note made pursuant to the Agreement is not in default. In the event that Buyer shall extend the AP1 Promissory Note for a period of five (5) years, then, in that event, the AP1 Promissory Note shall be revised such that the remaining unpaid principal and accrued interest is amortized over the five (5) year extended period and payable, with interest, at the rate of two (2%) percent per annum over said sixty (60) month period until paid in full; and ii) At Commencement Date, Buyer shall execute a second Promissory Note to Seller in the principal amount of Two Million Five Hundred Thousand and 00/100 ($2,500,000.00) Dollars, with interest at the rate of five (5%) percent per annum, payable monthly, for a period of ten (10) years, payments in the amount of Twenty-six Thousand Five Hundred Sixteen and 38/100 ($26,516.38) Dollars per month until paid in full (the "AP2 Promissory Note"). Said AP2 Promissory Note shall contain a provision that, upon the latter of the deaths of David M. Ryan and Sally J. Ryan, but not before six (6) months after the Consummation Date, whichever is later, the balance of the AP2 Promissory Note shall be forgiven, provided the AP1 Promissory Note, the AP2 Promissory Note, and / or any other Promissory Notes made pursuant to the Agreement is not then currently in default. Upon the payments contained herein, the Health Concepts Receivables shall be considered paid in full. Such AP1 Promissory Note and AP2 Promissory Note shall be secured by Health Concepts and the Facilities and personally guaranteed by Bigney and Buyer. Additionally, the Seller and Buyer agree that the full Employee Retention Credit ("ERC") shall be recorded and made as a distribution payable from Health Concepts and the Facilities to David M. Ryan, Trustee, of the David M. Ryan Trust – 2018 and the Sally J. Ryan Trust – 2018. Such provisions shall survive the Consummation Date. Seller and Buyer acknowledge that the Health Concepts Receivables Promissory Notes herein may be in the form of Promissory Notes from the Facilities to Health Concepts, in which case said Promissory Notes shall be assigned to Seller, specifically the David M. Ryan, Trustee, of the David M. Ryan Trust – 2018 and the Sally J. Ryan Trust – 2018, and/or Kevin S. Ryan Irrevocable Trust – 2020.

7. Insurance: Additionally, from the Commencement Date and continuing after the Consummation Date for a period of not less than four (4) years, Buyer, at Buyer's expense, shall ensure that the requisite general and professional liability insurance coverages, including but not limited to all other additional insurances as currently in place for Health Concepts and the Facilities, and associated owners, directors, officers, employees, agents, and representatives, are maintained in full force and effect upon the same, or equally comparable, policy terms, coverages, and manner as they are now. Buyer shall provide Seller confirmation of the same at least annually or upon the request of Seller. Such provision shall survive the Consummation Date.

8. Default: If Buyer defaults under this Agreement prior to the Consummation Date, which shall include a material misrepresentation by the Buyer or Buyer's failure to materially comply with any of its obligations set forth in this Agreement, after the provision of notice by Seller and twenty (20) days opportunity to cure said default by Buyer, the Seller may terminate this

Agreement and in such event the Seller shall have the right to the return of the Health Concepts stock, and the Buyer without delay shall transfer said stock, and any and all payments made by Buyer shall be forfeited, such to be considered as liquidated damages. This is the Seller's sole and exclusive remedy in equity and at law. The parties hereto agree that this is a fair and reasonable measure of Seller's damages in the event of a default by Buyer hereunder prior to Consummation. Upon default of the Seller, the Buyer may pursue any and all remedies available to it at law or equity, or in the alternative, the Buyer may demand specific performance of the Agreement.

9. Confidentiality: Unless otherwise provided under applicable law, each party agrees to keep this Agreement and the discussions concerning the transaction strictly confidential, subject to the right of each party to provide such information to its attorneys, accountants, bankers and other financial representatives, and government regulators as is necessary and appropriate to assist them in completing the proposed transaction.

10. Costs and Expenses: Each party hereto shall bear and pay all costs and expenses (including, without limitation, finder's or broker's fees or commissions and attorneys' fees) incurred by it in connection with the transactions contemplated by this Agreement regardless of whether the proposed transaction is consummated.

11. Construction: This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns. The terms "Seller" and "Buyer" whenever used herein and any pronoun referring thereto shall be construed in the singular, plural, masculine, feminine or neuter in accordance with the way the Agreement is executed whenever the context shall require. The parties hereto, severally declare that this Agreement contains the entire agreement between and among the parties and that it is subject to no understandings, conditions, or representations other than those expressly stated, and that Rhode Island law shall apply to its construction and interpretation. This Agreement has been executed in one or more counterparts and each shall be deemed to be an original. If two or more persons are named herein as Seller or Buyer, their obligations hereunder shall be joint and several. All references to time periods shall be counted in calendar days.

12. Further Assurances: The Seller and Buyer each agrees to work together in the spirit of cooperation and good faith to consummate the transaction contemplated, and each agree to take such actions and to execute and deliver such other documents, instruments, and affidavits as may reasonably be required to effectuate and complete the transaction as contemplated herein by the Seller and Buyer.

13. Applicable Law: All questions concerning the construction, validity, and interpretation of this Agreement and the performance of the obligations imposed by this Agreement shall be governed by the internal law, not the law of conflicts, of the State of Rhode Island.

14. Exclusivity Period. Seller agrees, on behalf of itself and its stockholders, officers, directors, affiliates and representatives, for a period commencing on the date this letter is

countersigned by Seller and ending on the earlier of; i] the date that Buyer is denied any of the needed approvals from any governmental agencies or the Consummation Date, not to directly or indirectly participate in, solicit, encourage, assist, initiate discussions with, engage in negotiations with, provide any information to, or enter into or perform any confidentiality agreement or other agreement or transaction with, any person other than Buyer relating to any possible transaction with Seller, including, without limitation, any joint venture with Seller, any acquisition of Seller, its capital stock or any significant assets of Seller or any investment in Seller. If Seller or any of its stockholders, affiliates or subsidiaries receive an offer or expression of interest to make an offer from a third party, they will promptly notify Buyer of its terms and the identity of the third party.

15. Further Documents: Seller and Buyer agree to work together to file and execute any such documents, etc., that are needed in order for Buyer to obtain the necessary approvals from Government agencies. Upon submission of an application from Buyer to Seller, Seller shall return the application to Buyer, executed by Seller within seven (7) days receipt from Buyer.

16. Nursing Placement Hospice & Palliative Care, LLC: Concurrent with the Consummation Date, David Ryan shall convey to Buyer his forty (40%) percent ownership in Nursing Placement Hospice & Palliative Care, LLC.

17. Broad Street Properties: Buyer and Seller agree that from the Commencement Date Health Concepts shall only be obligated to remain in the two (2) premises at 359 Broad Street, Providence, Rhode Island and 371 Broad Street, Providence, Rhode Island for a period which is the earlier of: i) the sale of either or both properties; or ii) six (6) months from the Commencement Date, or June 30, 2024. At such time Health Concepts shall be permitted to vacate said premises and any responsibility of Health Concepts to pay rent or other expenses for either property, shall cease.

18. Prior Transaction: Buyer and Seller acknowledge a prior purchase transaction which did not consummate, and there is existing a deposit related to said prior purchase transaction that is being held in purchaser's title escrow company in the amount of One Million Five Hundred Thousand and 00/100 ($1,500,000.00) Dollars. Seller has represented to Buyer that said purchaser defaulted on said purchase transaction and, therefore, has forfeited said deposit. However, said purchaser has disagreed with said conclusion and has refused to allow the title escrow company to release the deposit. The disposition of said deposit is still in dispute. Accordingly, Seller and Buyer agree said interest in said deposit shall be assigned by Health Concepts and the Facilities to David M. Ryan, Trustee, of the David M. Ryan Trust - 2018 and the Sally J. Ryan Trust - 2018, and/or Kevin S. Ryan Irrevocable Trust – 2020, and that any related expenses, including but not limited to, any and all attorney's fees, related to the deposit and its disposition shall not be apportioned to Health Concepts and/or Buyer, but rather shall be the responsibility of and paid for by, David M. Ryan.

19. 59 West Shore Road: The Seller, by and through West Shore Properties, LLC ("WSP"), and Buyer agree regarding the real property located at 59 West Shore Road, Warwick, Rhode Island (the "59 West Shore Property") that WSP, in conjunction with the transaction of Health Concepts and the Facilities upon the Consummation Date, shall transfer WSP to Buyer upon Buyer's

assumption of the outstanding mortgage with Bank Rhode Island, and release of any associated personal guarantees of David M. Ryan, Sally J. Ryan, and Kevin S. Ryan, and the cash payment to WSP of Seventy-Five Thousand and 00/100 ($75,000.00) Dollars.

20. Payments: Buyer and Seller agree that upon the payments contained herein, that any and all other debt on the books and records of either the Facilities and/or Health Concepts to or from Seller as the same is shown on Exhibit "A" shall be considered paid in full. Stated another way, once all payments are made hereunder, there shall be no further payments due to Seller from Buyer for either the purchased Facilities and/or Health Concepts.

IN WITNESS WHEREOF, the undersigned have duly executed this Agreement by persons legally entitled to do so as of the day and year first set forth above.

SELLER:

Health Concepts Ltd.

David M. Ryan, Trustee
The David M. Ryan Trust - 2018

D. M. Ryan POA for Sally J. Ryan

David M. Ryan, Trustee
The Sally J. Ryan Trust - 2018

Village House Convalescent Home, Inc.
d/b/a Village House Nursing & Rehabilitation Center

David M. Ryan, Trustee
The Kevin S Ryan Irrevocable Trust - 2020

Village House Convalescent Home Associates LLC

David M. Ryan, Trustee
The Kevin S Ryan Irrevocable Trust 2020

Elmwood Health Center, Inc.
d/b/a Elmwood Health Center

David M. Ryan, Trustee
The Kevin S Ryan Irrevocable Trust 2020

David M. Ryan

David M. Ryan

Elmwood Avenue Realty, LLC

David M. Ryan, Manager

Burrillville Health Center Associates Limited Partnership d/b/a Bayberry Commons

David M. Ryan, Trustee, General Partner
David M. Ryan Trust - 2018

Warwick Health Centre, Inc.
d/b/a West Shore Health Center

David M. Ryan, Trustee
The Kevin S Ryan Irrevocable Trust – 2020

Allen's Health Center, Inc.
d/b/a South Kingstown Nursing & Rehabilitation Center

David M. Ryan, Trustee
The Kevin S Ryan Irrevocable Trust – 2020

198 Waterman Avenue LLC
d/b/a Eastgate Nursing & Rehabilitation Center

David M. Ryan, Trustee
The Kevin S Ryan Irrevocable Trust – 2020

Ryan Finance, LLC

David M. Ryan, Manager

Kevin S. Ryan, individually, as beneficiary of the Kevin S. Ryan Irrevocable Trust – 2020, and as member and manager of the above-stated limited liability companies

West Shore Properties, LLC

David M. Ryan, Manager

Sally J. Ryan

Sally J. Ryan

BUYER:

Michael Bigney

1:30

KSR signature
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198 Waterman Avenue LLC
d/b/a Eastgate Nursing & Rehabilitation Center

David M. Ryan, Trustee
The Kevin S Ryan Irrevocable Trust 2020

Ryan Finance, LLC

David M. Ryan, Manager

Kevin S. Ryan, individually, as beneficiary of the Kevin S. Ryan Irrevocable Trust – 2020, and as member and manager of the above-stated limited liability companies

West Shore Properties, LLC

EXHIBIT A

1. Health Concepts Ltd.

2. Village House Convalescent Home, Inc.
   d/b/a Village House Nursing & Rehabilitation Center

   a. Village House Convalescent Home Associates LLC – Holds Real Estate

      Property Address: 70 Harrison Avenue, Newport, RI

3. Elmwood Health Center, Inc.
   d/b/a Elmwood Health Center

   a. David M. Ryan – Holds Real Estate

   b. Elmwood Avenue Realty, LLC – Holds Real Estate

      Property Addresses: 225 Elmwood Avenue, Providence, RI – AP 44 AL415
      235 Elmwood Avenue, Providence, RI – AP 44 AL 414
      217 Elmwood Avenue, Providence, RI – AP 44 AL 697
      10 Bellevue Avenue, Providence, RI -- AP 44 AL 696
      12 Bellevue Avenue, Providence, RI – AP 44 AL 695
      149-151 Peace Street, Providence, RI AP 44 AL 461

4. Burrillville Health Center Associates Limited Partnership
   d/b/a Bayberry Commons

      Property Address: 181 Davis Drive, Burrillville, RI

5. Warwick Health Centre, Inc.
   d/b/a West Shore Health Center

      Property Address: 109 West Shore Road, Warwick, RI

6. Allen's Health Center, Inc.
   d/b/a South Kingstown Nursing & Rehabilitation Center

      Property Address: 2115 South County Trail, South Kingstown, RI

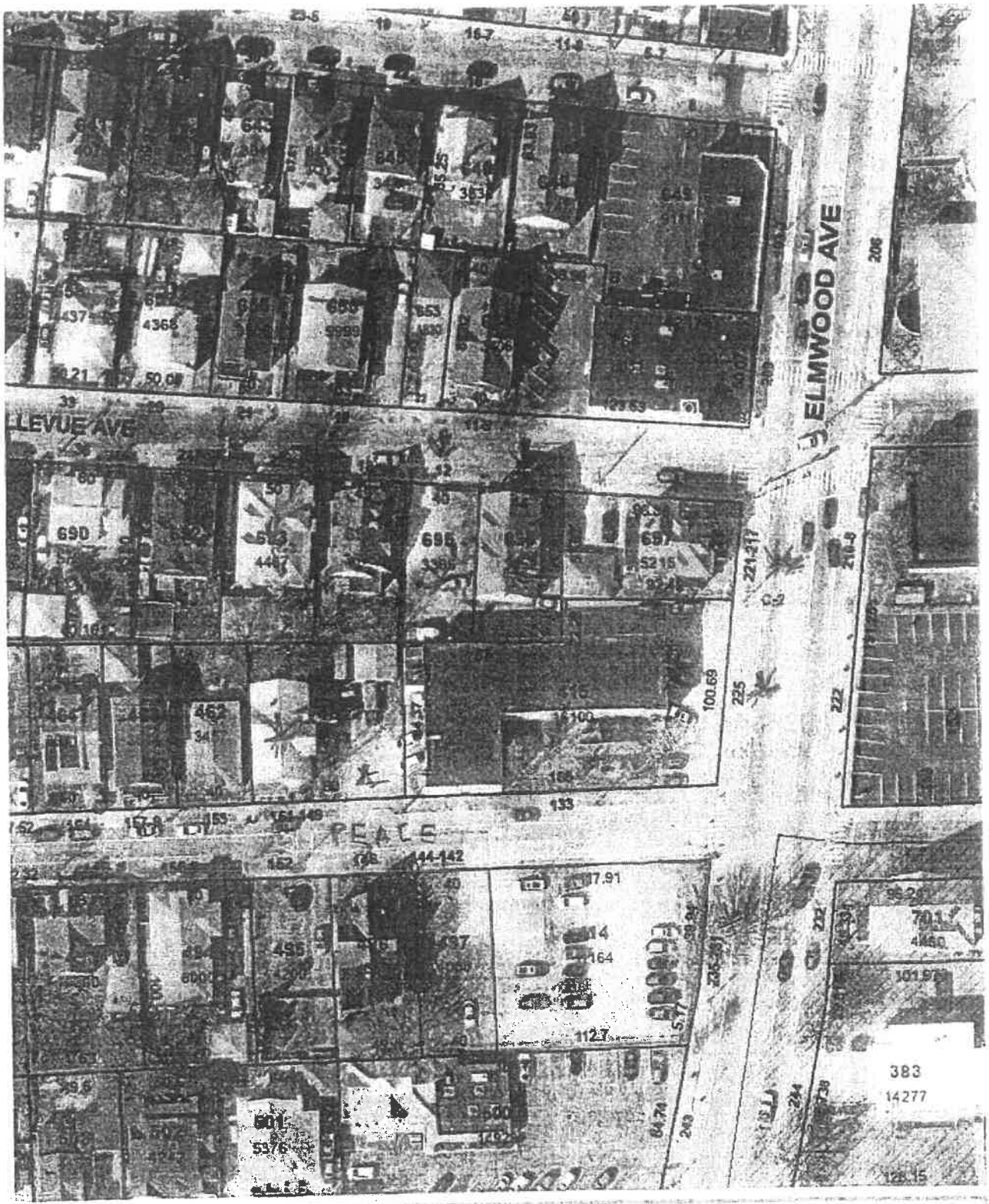
7. 198 Waterman Avenue LLC
   d/b/a Eastgate Nursing & Rehabilitation Center

a. Ryan Finance, LLC – Holds Parking Lot 192 Waterman Ave.

Property Addresses: 192 Waterman Avenue, East Providence, RI
198 Waterman Avenue, East Providence, RI

8. West Shore Properties, LLC

Property Address: 59 West Shore Road, Warwick, RI



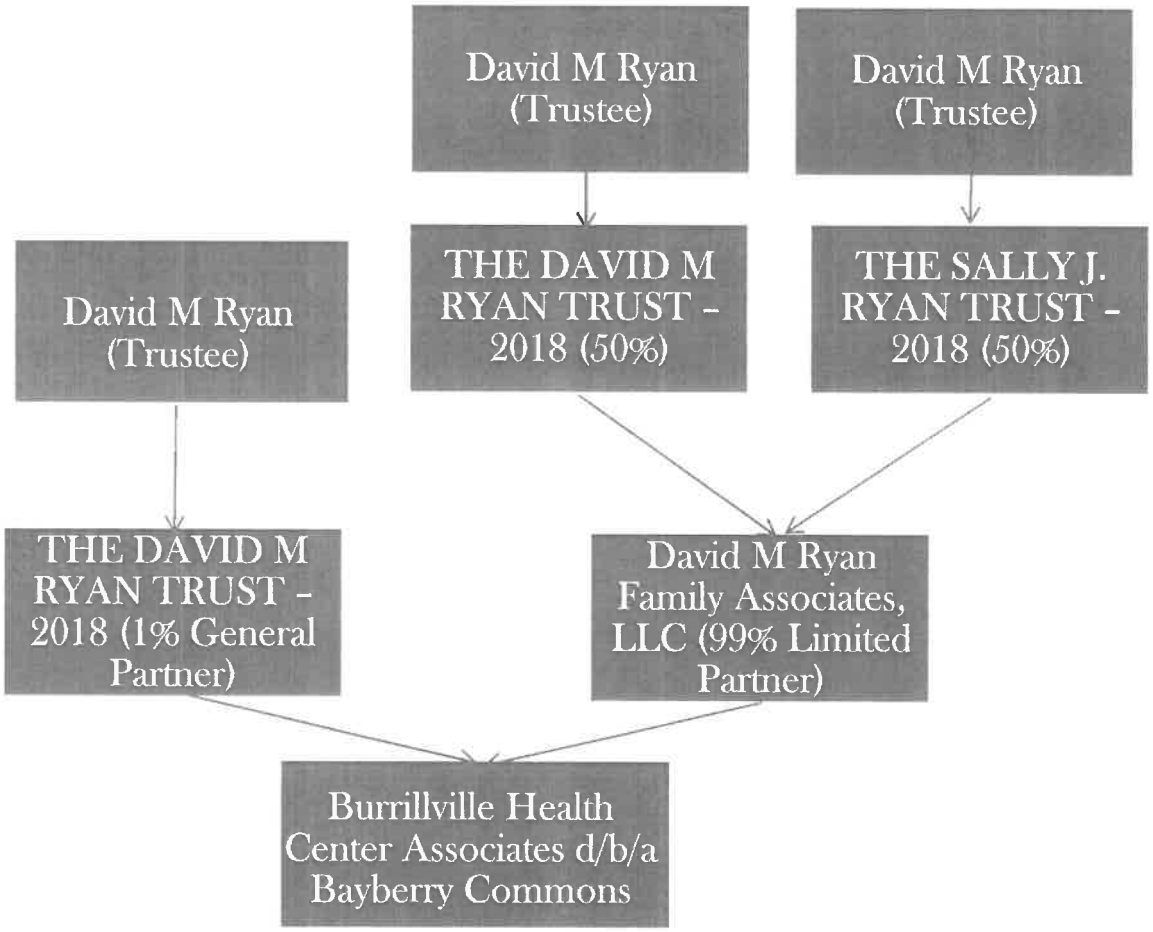
PROVIDENCE, RHODE ISLAND

PROVIDENCE: THE CREATIVE CAPITAL

Tab C

Question 15
Tab C
Existing Facility

Bayberry Commons Organizational Chart



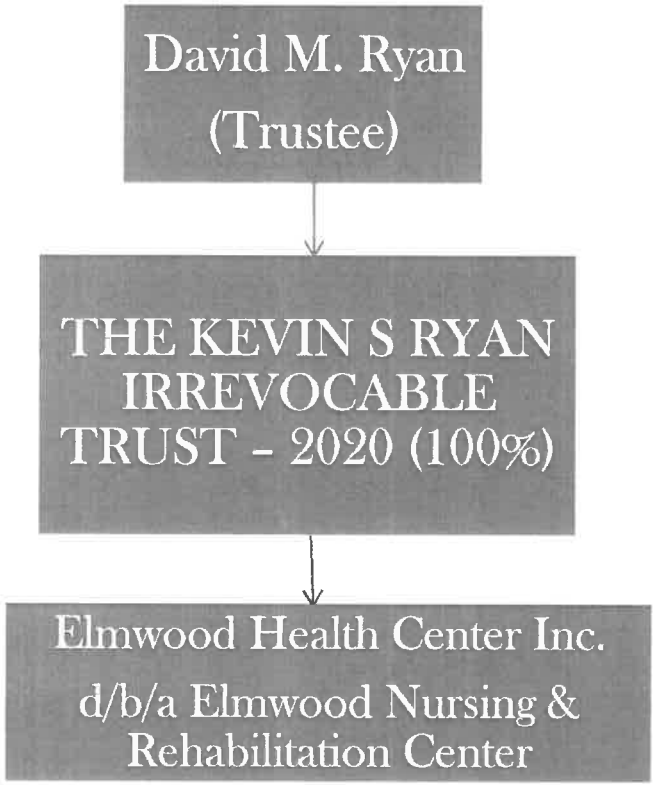
Question 15
Tab C
Existing Facility

Eastgate Nursing Organizational Chart



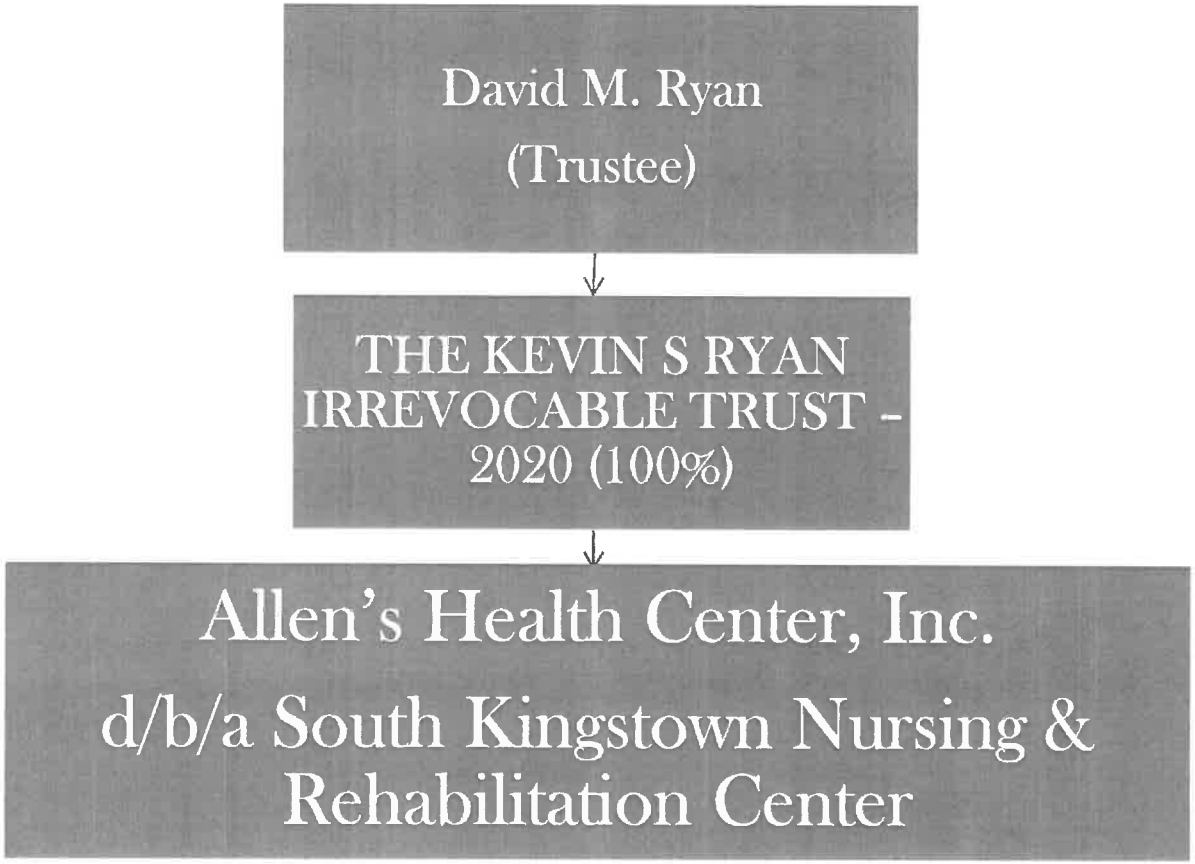
Question 15
Tab C
Existing Facility

Elmwood Health Center Organizational Chart



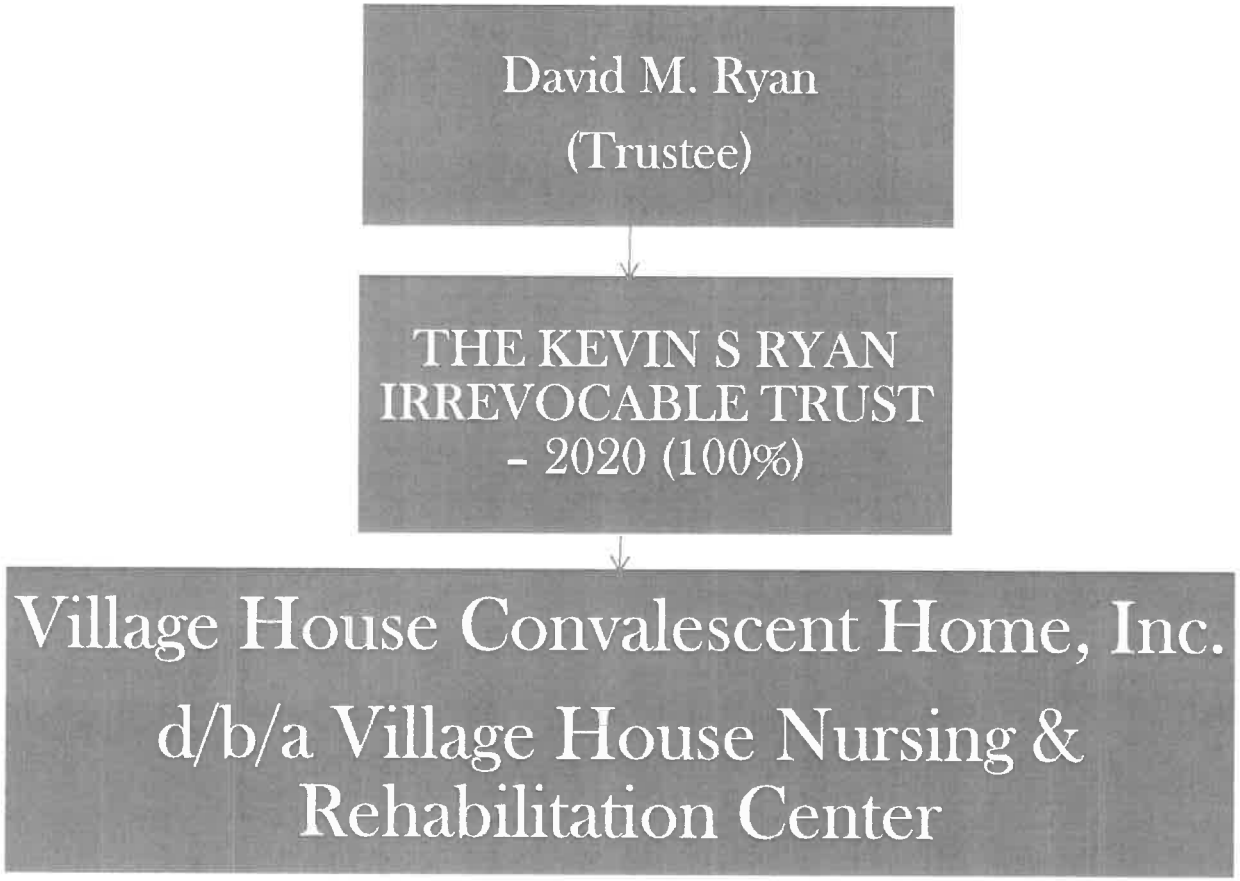
Question 15
Tab C
Existing Facility

South Kingstown Organizational Chart



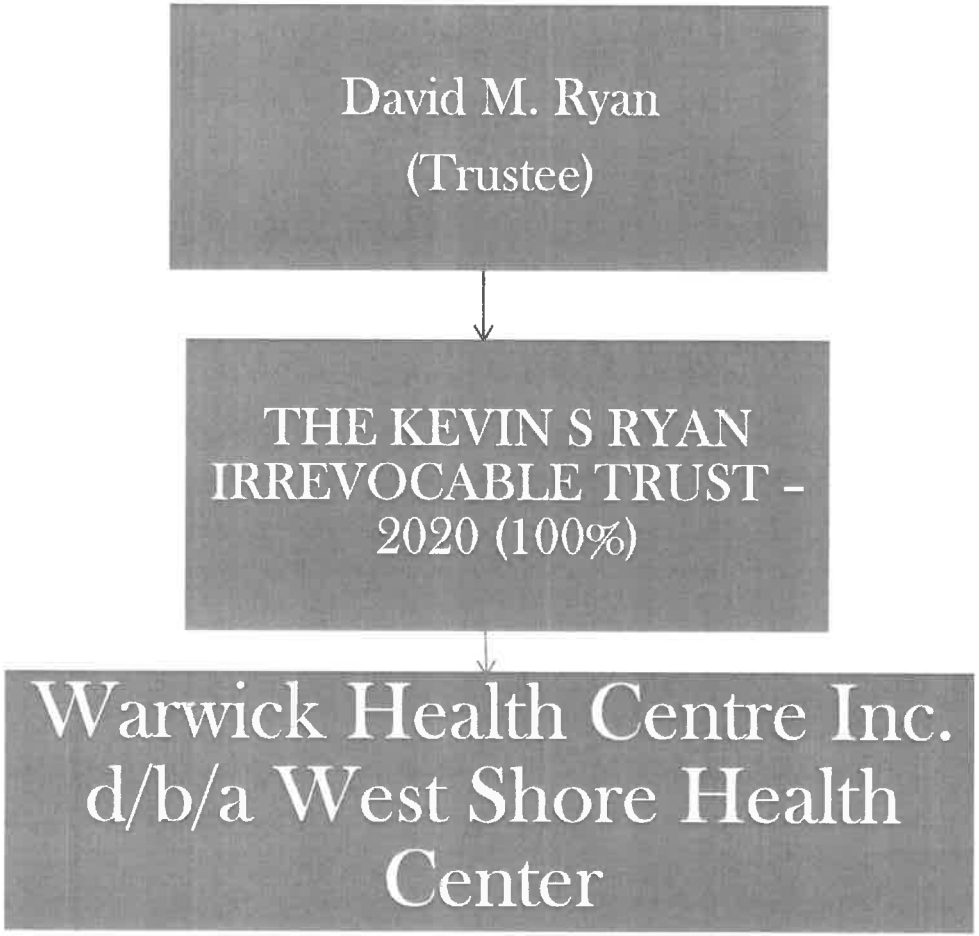
Question 15
Tab C
Existing Facility

Village House Organizational Chart



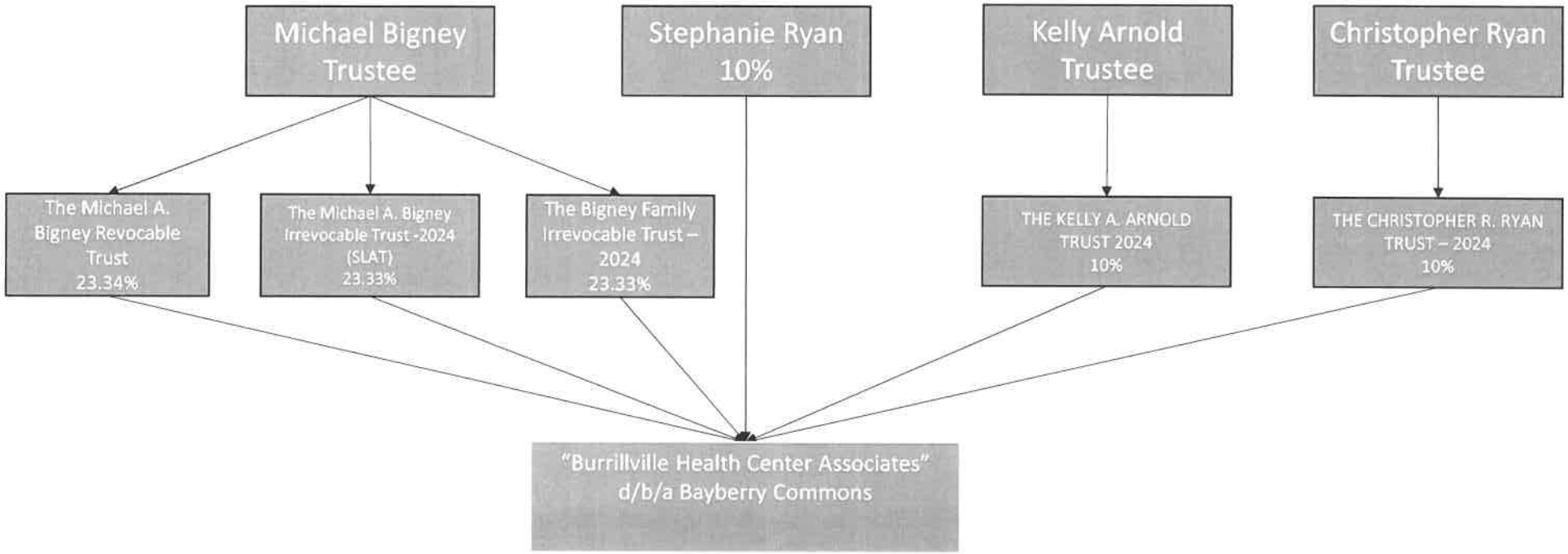
Question 15
Tab C
Existing Facility

West Shore Organizational Chart



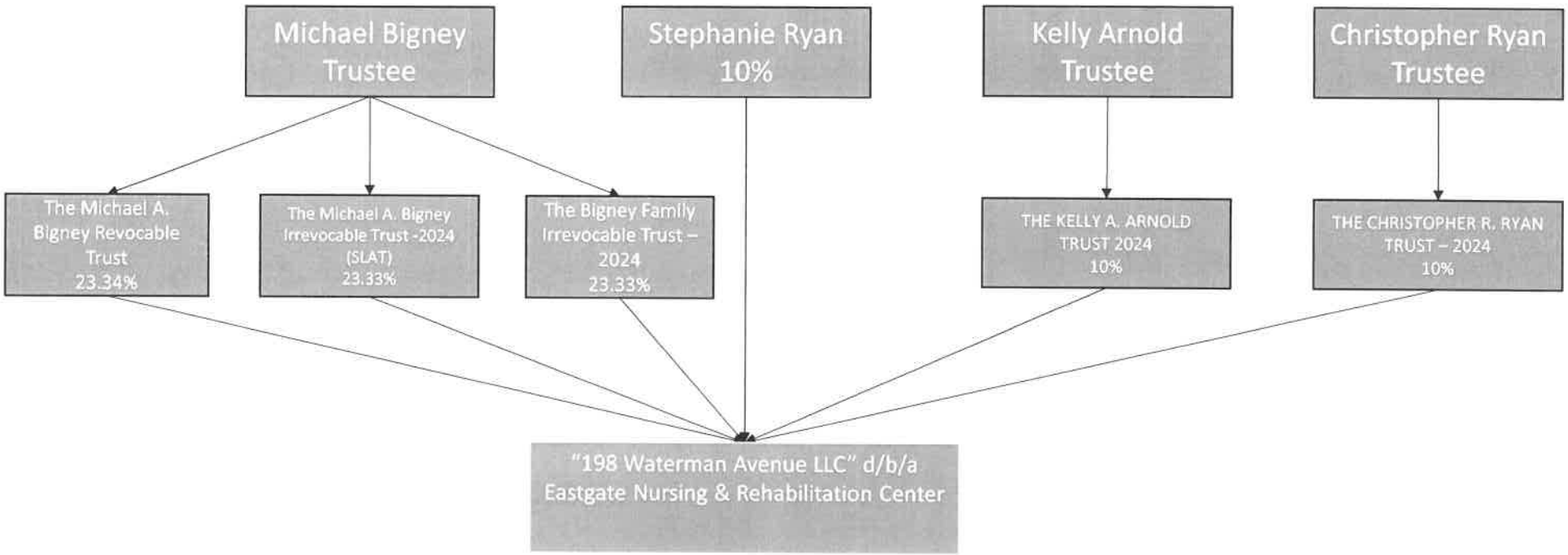
"Bayberry Commons"
CEC Application
Question 15
Tab C

Organizational Chart - Applicant



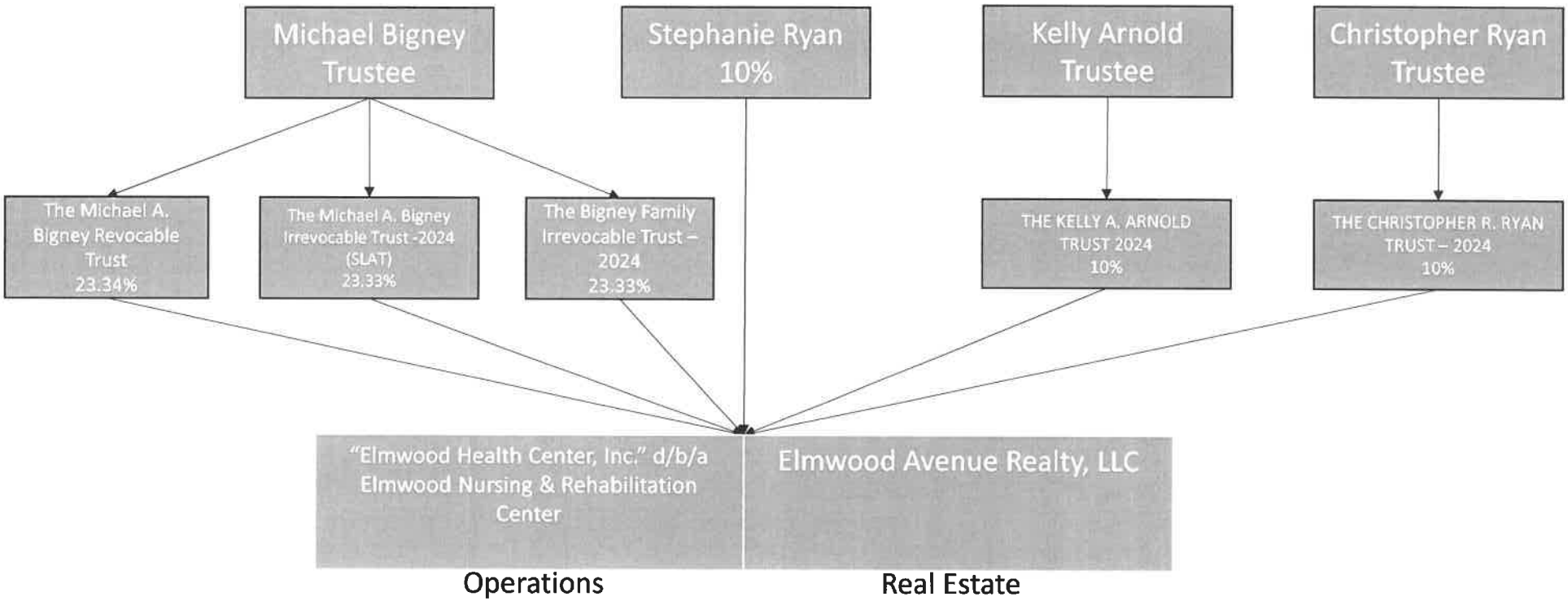
"Eastgate Nursing & Rehabilitation Center"
CEC Application
Question 15
Tab C

Organizational Chart - Applicant



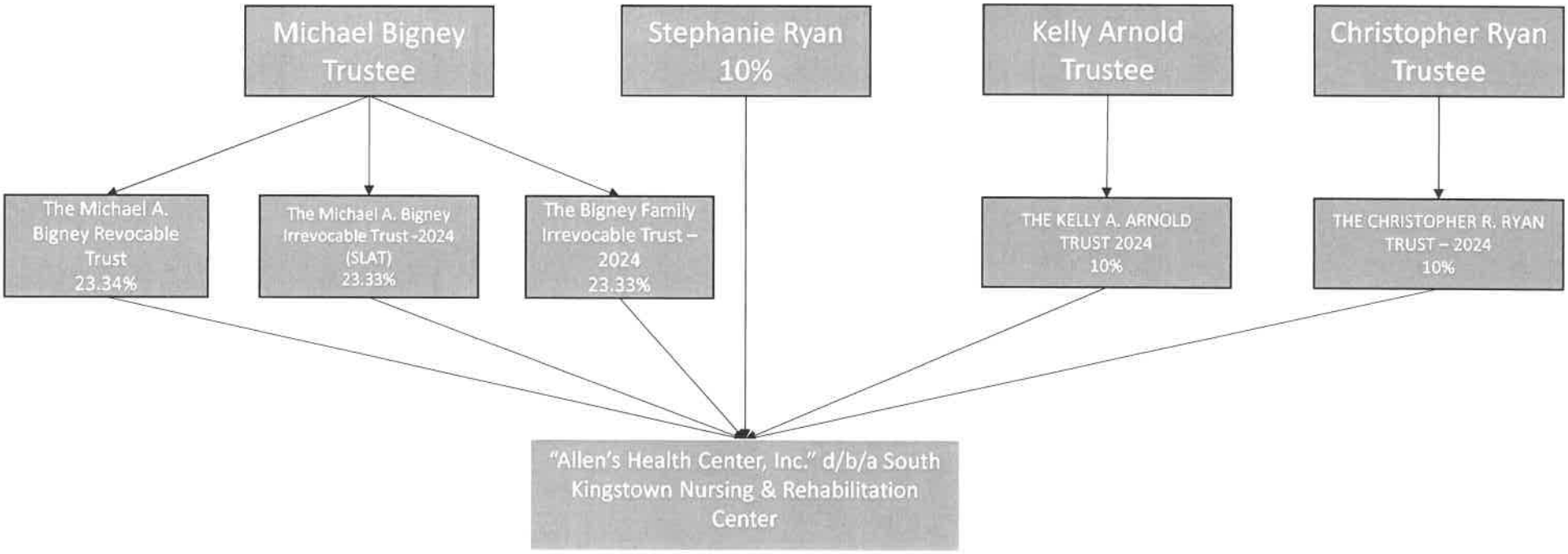
"Elmwood Nursing & Rehabilitation Center"
CEC Application
Question 15
Tab C

Organizational Chart - Applicant



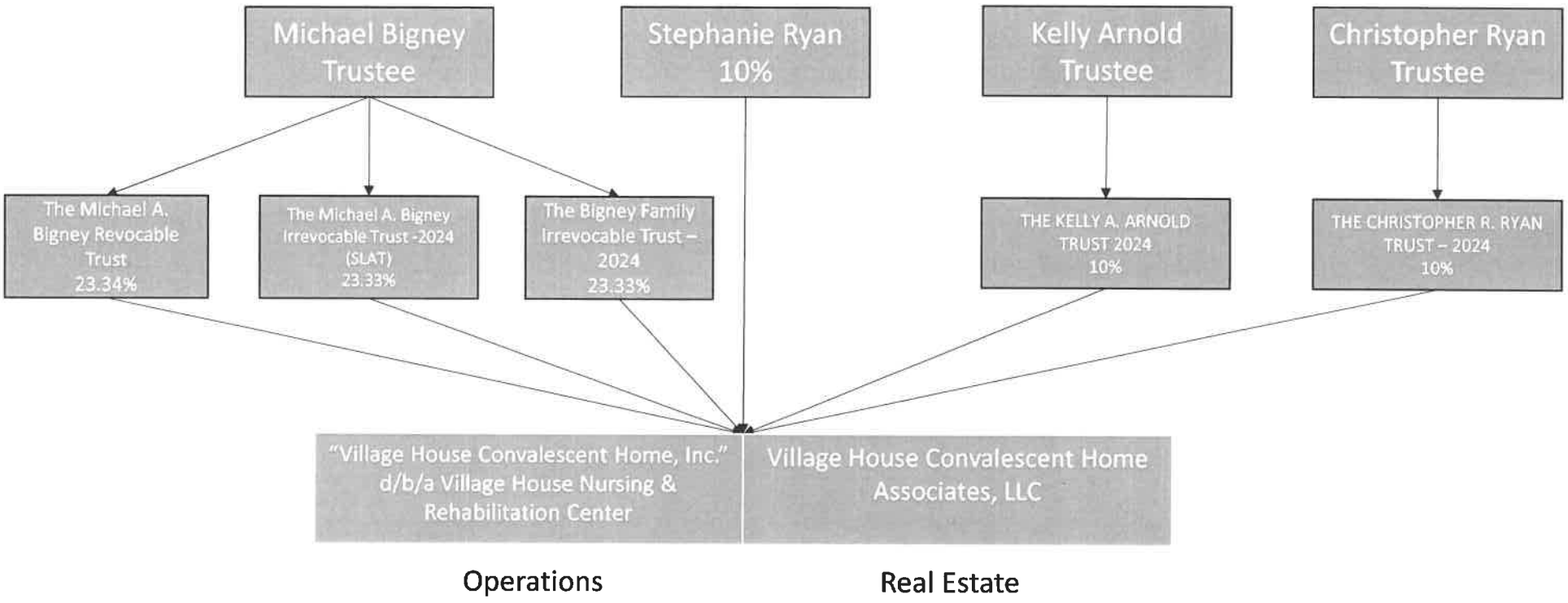
"South Kingstown Nursing & Rehabilitation Center"
CEC Application
Question 15
Tab C

Organizational Chart - Applicant



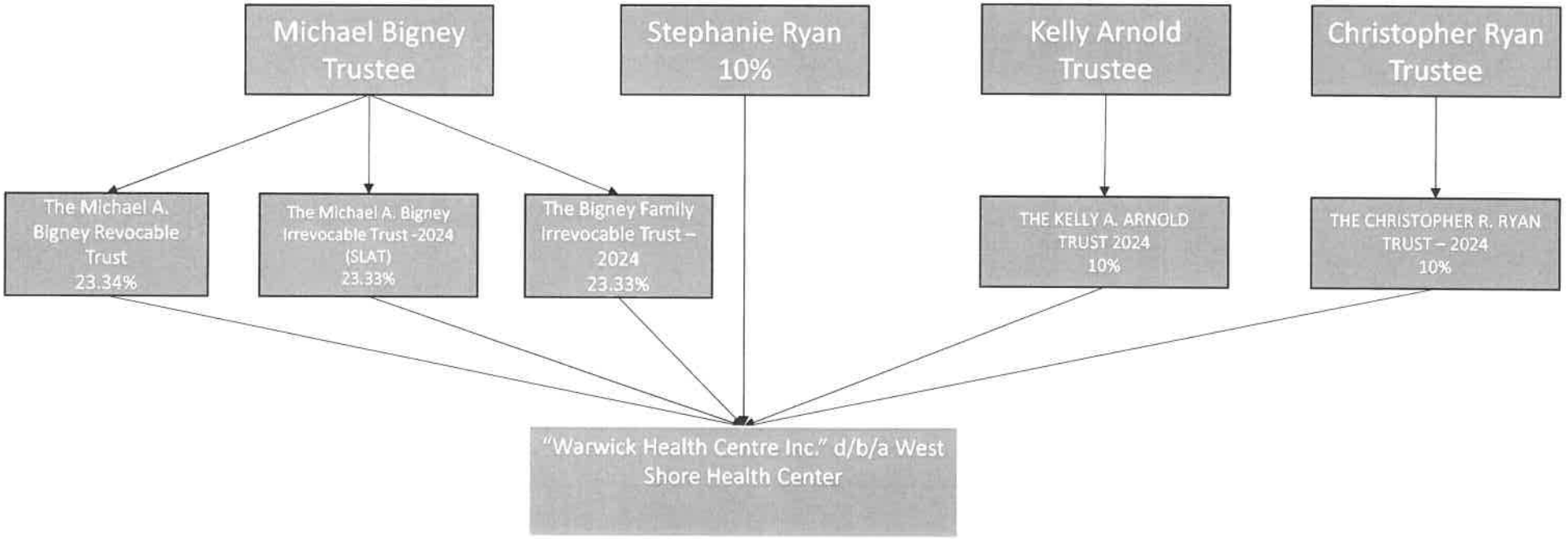
"Village House Nursing & Rehabilitation Center"
CEC Application
Question 15
Tab C

Organizational Chart - Applicant



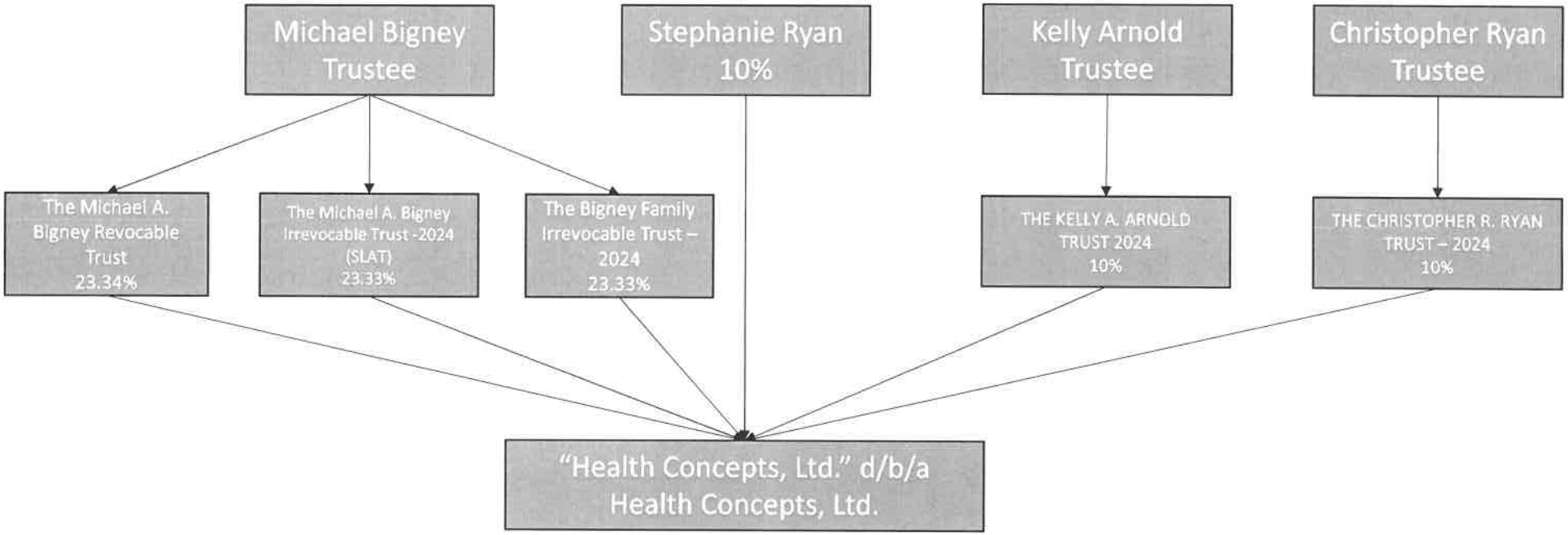
"West Shore Health Center"
CEC Application
Question 15
Tab C

Organizational Chart - Applicant



"Health Concepts, Ltd."
CEC Application
Question 15
Tab C

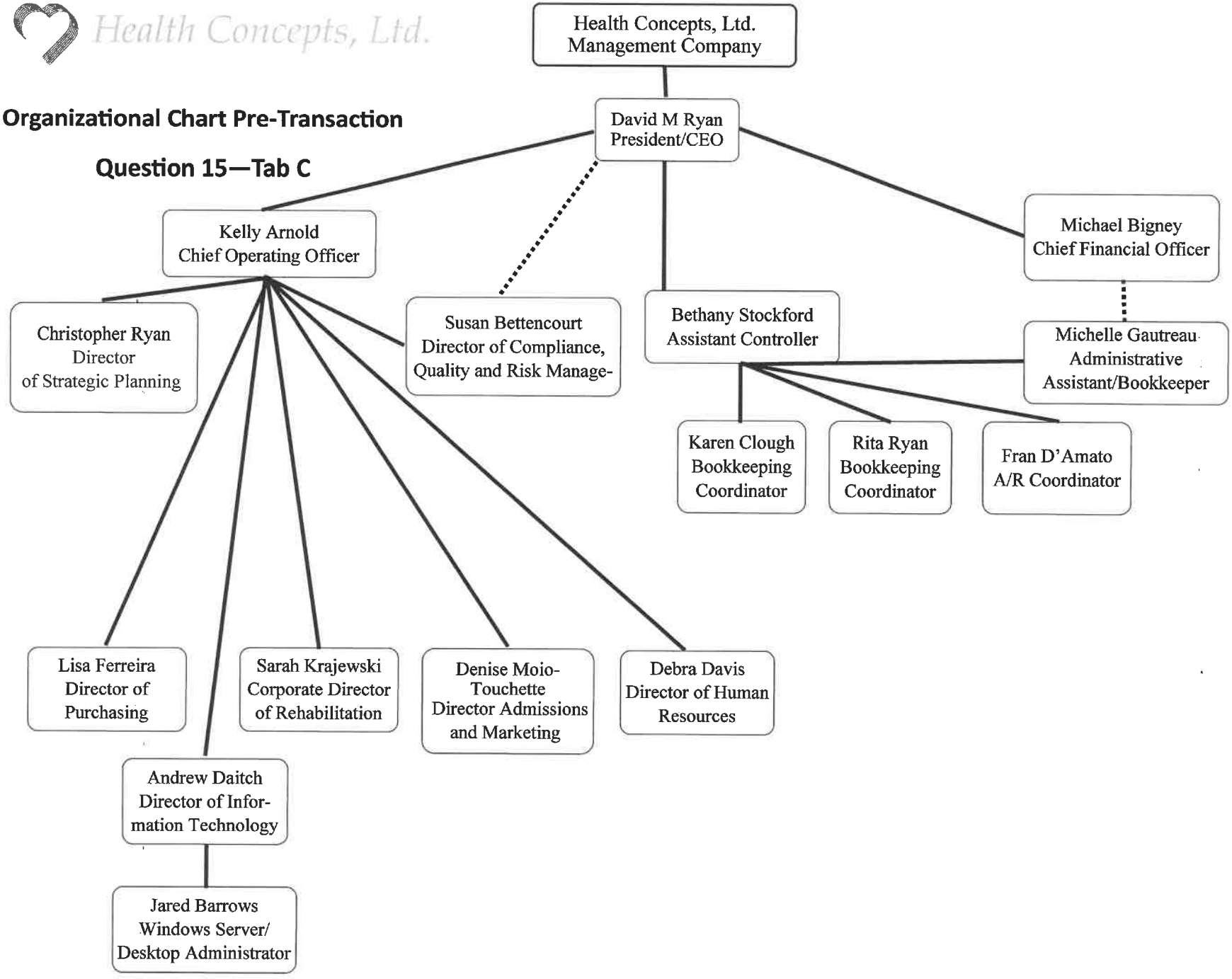
Organizational Chart - Applicant



Health Concepts, Ltd.

Organizational Chart Pre-Transaction

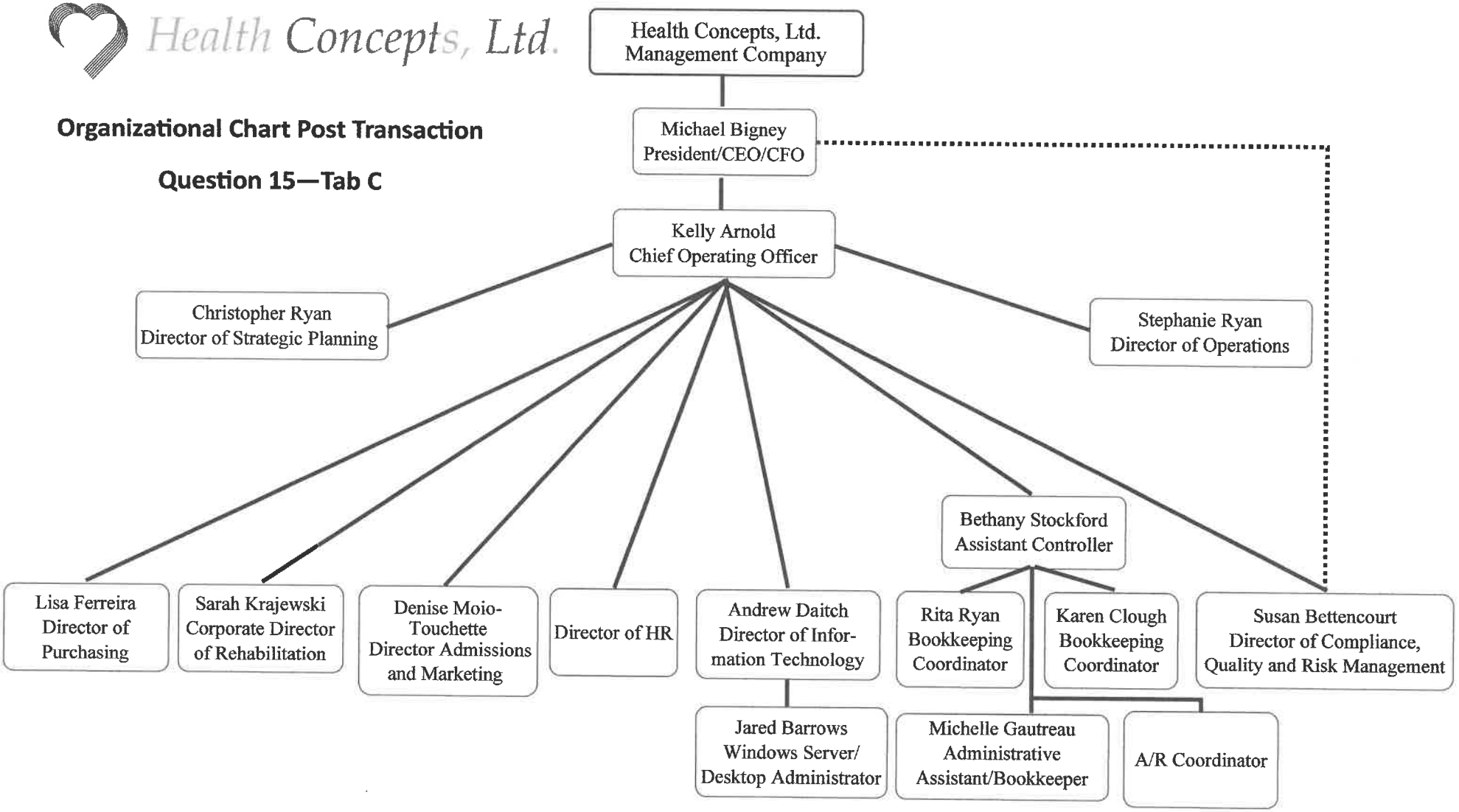
Question 15—Tab C



Health Concepts, Ltd.

Organizational Chart Post Transaction

Question 15—Tab C



Tab D

198 Waterman Avenue LLC
Charity Care Policy

It is the policy of 198 Waterman Avenue LLC LLC ("Eastgate Nursing & Rehabilitation Center") to provide medically necessary services to all patients without discrimination, regardless of the patients' ability to pay. It is Eastgate Nursing & Rehabilitation Center's experience that the vast majority of its residents are covered by Medicare and Medicaid. Eastgate Nursing & Rehabilitation Center will work in good faith with patients to establish an alternative payor source when another payor source is no longer available. Eastgate Nursing & Rehabilitation Center will not withhold, discontinue care, or discharge the patient while an application for an alternative payor source (such as Medicaid) is pending.

Tab E

Eastgate Nursing & Rehabilitation Center
Quality Assurance Performance Improvement
QAPI PLAN 2024

PURPOSE

The QAPI Plan has been established in order to fulfill Eastgate Nursing & Rehabilitation Center's (Eastgate) responsibility and accountability for assessment and improvement in the quality of care and services provided to residents, families, staff, and the community served. There is a planned, systematic, and ongoing quality improvement process designed to objectively monitor and evaluate the quality of resident care and to pursue opportunities for organizational improvement.
QAPI is a process designed to systematically assess and improve important functions and work processes and their outcomes. Quality must be continuously evaluated and improved in order to meet the needs of our residents and community.

OBJECTIVES

1. Establish, maintain, support, and document evidence of an ongoing QAPI program that includes effective mechanisms for monitoring and evaluating resident care and for appropriate response to findings.

2. Assist individual departments in improving care and identifying problems through the use of ongoing performance improvement projects (PIPs or indicators). This is to be done by focusing on identification, analysis and resolution of problems that affect the residents of the facility.

3. Evaluate the results of action taken by individual departments and maximize the efficient use of resources available within the facility.

4. Centralize and expand the scope of present quality improvement activities into a more comprehensive program.

5. Direct improvement efforts at processes, not individuals.

DESIGN AND SCOPE

QAPI activities will be integrated and coordinated among departments within the facility; they will be designed to minimize duplication of effort; and will be cost-effective. All departments will be included in the QAPI process as it relates to their efforts toward quality care and services and quality of life. Those contracted services providing services to residents shall also be evaluated in this process. The QAPI program addresses clinical care, quality of life, resident choice, and care transitions. Resident safety and high quality are the goals of our program while assuring the resident's voice (for autonomy) is respected.

GOVERNANCE AND LEADERSHIP

The Administrator shall have the ultimate responsibility for the assurance of a flexible, comprehensive, and integrated QAPI program. The Administrator will also assure the QAPI program is in compliance with applicable state, federal, and local regulations and will report QI activities and outcomes to the governing body. The Quality Improvement (or QAPI) Coordinator is responsible to oversee all departmental QI processes. All QAPI activities are coordinated through the QI/QAPI committee. The QAPI Coordinator shall attend, chair, and plan all QAPI meetings.

The QAPI Coordinator will assist various committees and departments in development of indicators (or Performance Improvement Projects (PIPs)); including criteria and assessment of important aspects of care and services. The QAPI Coordinator will also assume responsibility for preparing year-end reports and summarizing facility-wide activities and outcomes.

FEEDBACK, DATA SYSTEMS AND MONITORING

PIPs (quality indicators) will be chosen based on those elements, which measure facility-wide functions, involving high-volume, high risk and/or problem-prone activities.
The development of PIPs (indicators) will also be based upon feedback received from the following data sources. These considerations include but are not limited to:

- Direct observations of the QAPI Committee
- Input from residents, families, staff, and other customers
- Accident/Incident reports
- Infection Control reports
- Consultant Services/reports
- Monthly Department Head meetings
- QI/QM Reports; Facility Indicator Profile Report
- Nursing Home Compare Outcomes Report
- Survey Results

Root-Cause-Analysis (RCA) is conducted for any sentinel events or adverse events; an action plan will be implemented based on the results of the RCA.

PERFORMANCE IMPROVEMENT PROJECTS (PIPs)

Implementation of the QAPI program will be the responsibility of the QAPI Committee. The committee will be responsible for assuring that activities are directed toward the maintenance of quality care and the resolution of problems that have the potential for improvement. The QAPI Committee (vendors included) will meet no less than quarterly (however, the facility committee will meet monthly) and shall maintain records of the meeting activities. The committee will also assure that appropriate actions are implemented to eliminate or reduce identified problems to the greatest degree possible.

1. Individual departments will be responsible for monitoring and evaluating the aspect of resident care they provide as well as participating in interdisciplinary teams for those indicators that will be facility wide. Each year, the QAPI calendar shall include, but not be limited to monitoring and evaluating the following systems within these departments:
    - Nursing
        - Wound Care; Prevention and Treatment
        - Medication Administration
        - Safety; Falls, Accidents, Incidents, Unusual Occurrences (i.e. unexpected deaths).
        - Weights; Nutrition and Dehydration
        - Significant Clinical Changes (i.e. physical, mental, and psychological).
        - Grievances (resident and family) and abuse allegations.
        - *Our clinical PIPs (indicators) for 202s include; monitoring and reducing re-hospitalizations, reducing off-label use of antipsychotic drugs, reducing falls, antibiotic stewardship and executing infection prevention and control policies and practices to allow for optimal outcomes.*

    - Activities
    - Dietary
    - Housekeeping and Laundry
    - Medical
    - Social Services
    - Rehabilitation
    - Pharmacy
    - Dental

2. Facility-wide indicators may include such areas as:
    - Staff turnover, recruitment, and retention efforts.
    - Safety issues (related to residents and employees, visitors).
    - Other areas as identified based upon outcomes and feedback from those served.
    - *Our human resource indicator this year is customer/employee satisfaction and staff stability.*

SYSTEMATIC ANALYSIS AND SYSTEMIC ACTION

The QAPI Program shall be implemented and monitored by the QAPI Committee. The QI Committee shall consist of: Administrator, Director of Nursing, Medical Director, Social Worker, Infection Preventionist, and all department heads including a representative from dietary services (or their designee). The QI Committee may also include representatives from our contracted services (i.e. lab, pharmacy…).

All members of the QAPI Committee will utilize a formal and consistent methodology for planning, designing, measuring, assessing, and improving organizational performance and resident outcomes. Our methodology will be the FOCUS, PDCA Model with an emphasis on the cause and effect diagram when determining root case of any adverse outcome.

GOALS (2024)

- Continue to educate all staff to the QI Process.
- Identify opportunities for improvement throughout the organization; departmental and facility-wide.
- Enlist interdisciplinary team members to join QI teams in order to work through the FOCUS, PDCA methodology.
- Full implementation of the INTERACT Program and SBAR.
- Enhance nurses' skills set/competencies.
- Create a culture of safety and risk management program; Team STEPPS.
- Optimize IC& P Program to allow for best outcomes.

The QAPI Plan and goals will be reviewed and revised no less than annually.

Effective Date: January 2024

Approved By: _____, *NHA*

_____ *Medical Director*

Reviewed/Revised: Date: 1/5/2015, 12/9/2015, 12/31/16, 1/2/18, 1/4/21, 12/31/21, 1/2/2023 1/29/2024

Tab F

198 WATERMAN AVENUE, LLC

d/b/a EASTGATE NURSING & REHABILITATION CENTER

CONSENT ACTION BY MEMBERS

IN LIEU OF SPECIAL MEETING

The undersigned, being the Members representing all of the capital values of the ownership interests of 198 Waterman Avenue, LLC d.b.a. Eastgate Nursing & Rehabilitation Center, do hereby consent to the following resolutions which were deemed to be adopted by a vote at a meeting duly called and held on the ___ day of _____ 2024.

RESOLVED: That the following individuals shall be the officers of the company to take office effective as of _____, 2024 and hold such office until their successors are duly elected and qualified;

Michael A. Bigney	President
Kelly A. Arnold	Vice-President
Christopher R. Ryan	Treasurer
Stephanie Ryan	Secretary;

FURTHER RESOLVED: That the Operating Agreement attached hereto is the current Operating Agreement of the Company and is hereby reaffirmed and ratified.

IN WITNESS WHEREOF, the undersigned have executed this Consent on the ___ day of _____ 2024.

The Michael A. Bigney
Revocable Trust
Member

By _____, Trustee
Michael A. Bigney
Trustee

The Michael A. Bigney
Irrevocable Trust – 2024
Member

By _____, Trustee
Michael A. Bigney
Trustee

The Bigney Family
Irrevocable Trust – 2024
Member

By _____, Trustee
Michael A. Bigney
Trustee

The Kelly A. Arnold
Trust – 2024
Member

By _____
Kelly A. Arnold
Trustee

The Christopher R. Ryan
Trust – 2024
Member

By _____
Christopher R. Ryan
Trustee

_____
Stephanie Ryan
Member



LIMITED LIABILITY COMPANY

OPERATING AGREEMENT

Wyatt A. Brochu, Esquire
Ruggiero Brochu
Twenty Centerville Road
Warwick, Rhode Island 02886

TABLE OF CONTENTS

Explanatory Statement

Section I. Defined Terms

Section II. Formation and Name; Office; Purpose; Term
- 2.1. Organization
- 2.2. Name of the Company
- 2.3. Purpose
- 2.4. Term
- 2.5. Registered Office
- 2.6. Resident Agent
- 2.7. Members

Section III. Members; Capital; Capital Accounts
- 3.1. Initial Capital Contributions
- 3.2. No Additional Capital Contributions
- 3.3. No Interest on Capital Contributions
- 3.4. Return of Capital Contributions
- 3.5. Form of Return of Capital
- 3.6. Capital Accounts
- 3.7. Loans

Section IV. Profit, Loss and Distributions

Section V. Management: Rights, Powers and Duties
- 5.1. Management
- 5.2. Meetings of and Voting by Members
- 5.3. Personal Services
- 5.4. Duties of Parties
- 5.5. Liability and Indemnification
- 5.6. Power of Attorney

Section VI. Transfer of Interests and Withdrawals of Members
- 6.1. Transfers
- 6.2. Voluntary Withdrawal
- 6.3. Involuntary Withdrawal

Section VII. Dissolution, Liquidation and Termination of the Company
- 7.1. Events of Dissolution
- 7.2. Procedure for Winding Up and Dissolution
- 7.3. Filing of Articles of Cancellation

Section VIII. Books, Records, Accounting and Tax Election

8.1. Bank Accounts
8.2. Books and Records
8.3. Annual Accounting Period
8.4. Reports
8.5. Tax Matters Partner
8.6. Tax Elections
8.7. Title to Company Property

Section IX. General Provisions

9.1. Assurances
9.2. Notifications
9.3. Specific Performance
9.4. Complete Agreement
9.5. Applicable Law
9.6. Section Titles
9.7. Binding Provisions
9.8. Jurisdiction and Venue
9.9. Terms
9.10. Separability of Provisions
9.11. Counterparts
9.12. Estoppel Certificate

Exhibits

Exhibit A. List of Members, Capital and Percentages
Exhibit B. Articles of Organization

198 WATERMAN AVENUE, LLC - OPERATING AGREEMENT

This Limited Liability Company Operating Agreement (Agreement) is entered into this _____ day of _____, in the year 2011, by and between the members: David M. Ryan and Sally J. Ryan, husband and wife, both of the Town of Jamestown, State of Rhode Island, and Kevin S. Ryan, of the City of Pawtucket, State of Rhode Island, the signatories hereto.

EXPLANATORY STATEMENT

Whereas, the above named signatories hereto have organized and have agreed to operate a limited liability company in accordance with the terms and subject to the conditions set forth in this Agreement.

NOW, THEREFORE, for good and valuable consideration, the signatories, intending legally to be bound by this Agreement, agree as follows:

SECTION I: DEFINED TERMS

The following capitalized terms shall have the meanings specified in this Section I. Other terms are defined in the text of this Agreement; and, throughout this Agreement, those terms shall have the meanings respectively ascribed to them.

"**Act**" means the Rhode Island Limited Liability Company Act, as amended.

"**Agreement**" means this Limited Liability Company Operating Agreement, as amended from time to time.

"**Capital Account**" means the account to be maintained by the Company for each Interest Holder in accordance with the following provisions:

(i) an Interest Holder's Capital Account shall be credited with the Interest Holder's Capital Contributions, the amount of any Company liabilities assumed by the Interest Holder (or which are secured by Company property distributed to the Interest Holder), the Interest Holder's distributive share of Profit, and any item in the nature of income or gain specially allocated to such Interest Holder pursuant to the provisions of *Section* IV; and

(ii) an Interest Holder's Capital Account shall be debited with the amount of money and the fair market value of any Company property distributed to the Interest Holder, the amount of any liabilities of the Interest Holder assumed by the Company (or which are secured by property contributed by the Interest Holder to the Company), the Interest Holder's distributive share of Loss, and any item in the nature of expenses or losses specially allocated to the Interest Holder pursuant to the provisions of *Section* IV.

If any Interest is transferred pursuant to the terms of this Agreement, the transferee shall succeed to the Capital Account of the transferor to the extent the Capital Account is attributable to the transferred Interest.

"Capital Contribution" means the total amount of cash and the fair market value of any other assets contributed to the Company by a Member, net of liabilities assumed or to which the assets are subject.

"Capital Proceeds" means the gross receipts received by the Company from a Capital Transaction.

"Capital Transaction" means any transaction not in the ordinary course of business which results in the Company's receipt of cash or other consideration other than Capital Contributions, including, without limitation, proceeds of sales or exchanges or other dispositions of property not in the ordinary course of business, financings, re-financings, condemnations, recoveries of damage awards and insurance proceeds.

"Cash Flow" means all cash funds derived from operations of the Company (including interest received on reserves), without reduction for any non-cash charges, but less cash funds used to pay current operating expenses and to pay or establish reasonable reserves for future expenses, debt payments, capital improvements and replacements as determined by the President. Cash Flow shall not include Capital Proceeds but shall be increased by the reduction of any reserve previously established.

"Code" means the Internal Revenue Code of 1986, as amended, or any corresponding provision of any succeeding law.

"Company" means the limited liability company formed in accordance with this Agreement.

"Interest" means a Person's share of the Profits and Losses of, and the right to receive distributions from, the Company.

"Interest Holder" means any Person who holds an Interest, whether as a Member or as an un-admitted assignee or transferee of a Member.

"Involuntary Withdrawal" means, with respect to any Member, the occurrence of any of the following events:

(i) the Member makes an assignment for the benefit of creditors;

(ii) the Member files a voluntary petition of bankruptcy;

(iii) the Member is adjudged bankrupt or insolvent or there is entered against the Member an order for relief in any bankruptcy or insolvency proceeding;

(iv) the Member files a petition seeking for the Member any reorganization, arrangement, composition, readjustment, liquidation, dissolution or similar relief under any statute, law or regulation;

(v) the Member seeks, consents to, or acquiesces in, the appointment of a trustee for, receiver for or liquidation of the Member or of all or any substantial part of the Member's properties;

(vi) the Member files an answer or other pleading admitting or failing to contest the material allegations of a petition filed against the Member in any proceeding described in Subsections (i) through (v);

(vii) any proceeding against the Member seeking reorganization, arrangement, composition, readjustment, liquidation, dissolution or similar relief under any statute, law or regulation, continues for one hundred twenty (120) days after the commencement thereof, or the appointment of a trustee, receiver or liquidator for the Member or all or any substantial part of the Member's properties without the Member's agreement or acquiescence, which appointment is not vacated or stayed for one hundred twenty (120) days or, if the appointment is stayed, for one hundred twenty (120) days after the expiration of the stay during which period the appointment is not vacated;

(viii) if the Member is an individual, the Member's death or adjudication by a court of competent jurisdiction as incompetent to manage the Member's person or property;

(ix) if the Member is acting as a Member by virtue of being a trustee of a trust, the termination of the trust;

(x) if the Member is a partnership or limited liability company, the dissolution and commencement of winding up of the partnership or limited liability company;

(xi) if the Member is a corporation, the dissolution of the corporation or the revocation of its charter; or

(xii) if the Member is an estate, the distribution by the fiduciary of the estate's entire interest in the Company.

"**Managers/Officers**" means the Persons designated as such in Section V.

"**Member**" means each Person signing this Agreement and any Person who subsequently is admitted as a member of the Company.

"**Membership Rights**" means all of the rights of a Member in the Company, including a Member's: (i) Interest; (ii) right to inspect the Company's books and records; (iii) right to participate in the management of and vote on matters coming before the Company; and (iv) unless this Agreement or the Articles of Organization provide to the contrary, right to act as an agent of the Company.

"**Negative Capital Account**" means a Capital Account with a balance of less than zero.

"**Percentage**" means, as to a Member, the percentage set forth after the Member's name on Exhibit A, as amended from time to time, and as to an Interest Holder who is not a Member, the Percentage of the Member whose Interest has been acquired by such Interest Holder, to the extent the Interest Holder has succeeded to that Member's Interest.

"**Person**" means and includes a natural person, partnership, limited partnership, domestic or foreign limited liability company, trust, estate, business-corporation, non-business-corporation or other association.

"**President**" means the Person designated as such in Section V

"**Positive Capital Account**" means a Capital Account with a balance greater than zero.

"**Regulation**" means the income tax regulations, including any temporary regulations, from time to time promulgated under the Code.

"**Secretary of State**" means the Secretary of State of Rhode Island.

"**Transfer**" means, when used as a noun, any voluntary sale, hypothecation, pledge, assignment, attachment or other transfer, and, when used as a verb, means, voluntarily to sell, hypothecate, pledge, assign or otherwise transfer.

"**Voluntary Withdrawal**" means a Member's disassociation with the Company by means other than by a Transfer or an Involuntary Withdrawal.

SECTION II: FORMATION AND NAME: OFFICE: PURPOSE: TERM

2.1. Organization. The parties hereto have organized a limited liability company pursuant to the Act and, for that purpose, have caused Articles of Organization, in the form attached as Exhibit B, to be executed and filed for record with the Secretary of State.

2.2. Name of the Company. The name of the Company is "**198 Waterman Avenue, LLC**". The Company may do business under that name and under any other name or names upon which the Members elect. If the Company does business under a name other than that set forth in its Articles of Organization, then the Company shall file with the Secretary of State a trade name certificate / fictitious business name statement, or any other documents, as required by law.

2.3. Purpose. The Company is organized to own and operate a skilled nursing facility and to develop such property or interests therein in any manner, and to do any and all lawful things necessary, convenient or incidental to that purpose; and to transact any/all lawful business for which the limited liability company may be organized under the laws of the State of Rhode Island.

2.4. Term. The term of the Company began upon the acceptance of the Articles of Organization by the Secretary of State on February 16, 2011, and shall continue in perpetual

existence unless sooner terminated pursuant to *Section* VII of this Agreement.

2.5. Registered Office. The registered office of the Company in the State of Rhode Island shall be located at 359 Broad Street, Providence, Rhode Island 02907, or at any other place within the State of Rhode Island, which the Members elect.

2.6. Resident Agent. The name and address of the Company's official resident agent in the State of Rhode Island shall be Terry A. Carragher, 359 Broad Street, Providence, Rhode Island 02907, or such other person within the State of Rhode Island, which the Members elect.

2.7. Members. The name, present mailing address (business address), taxpayer identification number and Percentage Ownership of each Member are set forth on the Membership Register, in the form Exhibit A, attached hereto and incorporated herein.

SECTION III: MEMBERS; CAPITAL; CAPITAL ACCOUNTS

3.1. Initial Capital Contributions. Upon the execution of this Agreement, each Member, if the Member has not already done so, shall contribute cash or property to the Company in the amounts respectively set forth on the Membership Register, Exhibit A (Contribution).

3.1.1 For all purposes the Membership Percentages shall be according to the percentages listed on the Membership Register, Exhibit A.

3.2. No Additional Capital Contributions. No additional capital contributions are required. No Member shall be required to contribute any additional capital to the Company, and no Member shall have any personal liability for any obligation of the Company.

3.3. No Interest on Capital Contributions. Interest Holders shall not be paid interest on their Capital Contributions.

3.4. Return of Capital Contributions. Except as otherwise provided in this Agreement, no Interest Holder shall have the right to receive the return of any Capital Contribution.

3.5. Form of Return of Capital. If an Interest Holder is entitled to receive a return of a Capital Contribution, the Interest Holder shall not have the right to receive anything but Cash in return of the Interest Holder's Capital Contribution.

3.6. Capital Accounts. A separate Capital Account shall be maintained for each Interest Holder.

3.7. Loans. Any Member may, at any time, make or cause a loan to be made to the Company in any amount and on those terms upon which the Company and the Members agree.

SECTION IV: PROFIT, LOSS AND DISTRIBUTIONS (PROPOSED)

4.1. Distributions of Cash Flow. Cash Flow for each taxable year of the Company shall be distributed to the Interest Holders in proportion to their Percentages no later than seventy-five (75) days after the end of the taxable year.

4.2. Allocation of Profit or Loss. After giving effect to the special allocations set forth in *Section* 4.3 for any taxable year of the Company, Profit or Loss shall be allocated to the Interest Holders in proportion to their Percentages.

4.3. Regulatory Allocations [set forth any provisions required pursuant to advice of tax counsel].

4.4. Liquidation and Dissolution.

4.4.1. If the Company is liquidated, the assets of the Company shall be distributed to the Interest Holders in accordance with the balances in their respective Capital Accounts, after taking into account the allocations of Profit or Loss pursuant to *Section* 4.2, if any, and distributions, if any, of cash or property pursuant to *Section* 4.1.

4.4.2. No Interest Holder shall be obligated to restore a Negative Capital Account.

4.5. General.

4.5.1. Except as otherwise provided in this Agreement, the timing and amount of all distributions shall be determined by the Members.

4.5.2. The Company Assets may be distributed in kind to the Interest Holders, and those shall be valued on the basis of their fair market value. Unless the Members otherwise agree, the fair market value of the assets shall be determined by an independent appraiser who shall be selected by the Members. The Profit or Loss for each unsold asset shall be determined as if the asset had been sold at its fair market value, and the Profit or Loss shall be allocated as provided in *Section* 4.2 and shall be properly credited or charged to the Capital Accounts of the Interest Holders prior to the distribution of the assets in liquidation pursuant to *Section* 4.4.

4.5.3. All Profit and Loss shall be allocated, and all distributions shall be made to the Persons shown on the records of the Company to have been Interest Holders as of the last day of the taxable year for which the allocation or distribution is to be made. Notwithstanding the foregoing, unless the Company's taxable year is separated into segments, if there is a Transfer or an Involuntary Withdrawal during the taxable year, the Profit and Loss shall be allocated between the original Interest Holder and the successor on the basis of the number of days each was an Interest Holder during the taxable year; provided, however, the Company's taxable year shall be segregated into two or more segments in order to account for Profit, Loss or proceeds attributable to any extraordinary non-recurring items of the Company.

4.5.4. The Members are hereby authorized, upon the advice of the Company's tax counsel, to amend this *Article* IV to comply with the Code.

SECTION V: MANAGEMENT: RIGHTS, POWERS AND DUTIES

5.1. Management. The Members have elected that the Company be managed by the Members as stated in the Articles of Organization. Additionally, the Members elect that Terry A. Carragher shall be appointed as a Manager, to serve at the pleasure of the Members. The Managers shall be designated with the following Officer Titles and with such authority to act in the stead of the Member/Managers, subject to the Articles of Organization and this Operating Agreement, as provided below.

5.1.1. President. A President shall manage the Company. The Member/Manager, David M. Ryan, is hereby designated and appointed to serve as the President of the Company.

5.1.2. General Powers. The President shall have full, exclusive and complete discretion, power and authority, subject in all cases to the other provisions of this Agreement and the requirements of applicable law, to manage, control, administer and operate the business and affairs of the Company for the purposes herein stated, and to make all decisions affecting such business and affairs, including, without limitation, for Company purposes, the power to:

5.1.2.1. acquire by purchase, lease or otherwise, any real or personal property, tangible or intangible;

5.1.2.2. construct, operate, maintain, finance and improve, and to sell, convey, assign, mortgage or lease any real estate and any personal property;

5.1.2.3. sell, dispose, trade or exchange Company assets in the ordinary course of the Company's business;

5.1.2.4. enter into agreements and contracts and to give receipts, releases and discharges;

5.1.2.5. purchase liability and other insurance to protect the Company's properties and business;

5.1.2.6. borrow money for and on behalf of the Company, and, in connection therewith, execute and deliver instruments authorizing the confession of judgment against the Company.

5.1.2.7. execute or modify leases with respect to any part or all of the assets of the Company;

5.1.2.8. prepay, in whole or in part, refinance, amend, modify or extend

any mortgages or deeds of trust that may affect any asset of the Company and in connection therewith to execute for and on behalf of the Company any extensions, renewals or modifications of such mortgages or deeds of trust;

5.1.2.9. execute any and all other instruments and documents which may be necessary or in the opinion of the President desirable to carry out the intent and purpose of this Agreement, including, but not limited to, documents whose operation and effect extend beyond the term of the Company;

5.1.2.10. make any and all expenditures which the President, in its sole discretion, deems necessary or appropriate in connection with the management of the affairs of the Company and the carrying out of its obligations and responsibilities under this Agreement, including, without limitation, all legal, accounting and other related expenses incurred in connection with the organization and financing and operation of the Company;

5.1.2.11. enter into any kind of activity necessary to, in connection with or incidental to the accomplishment of the purposes of the Company; and

5.1.2.12. invest and reinvest Company reserves in short-term instruments or money market funds.

5.1.3. Vice President. A Vice President shall manage the Company as provided herein. The Members/Managers, Sally J. Ryan and Kevin S. Ryan, are hereby designated and appointed to serve as Vice Presidents of the Company. The Vice Presidents, respectively, shall, in the absence, unavailability, or disability of the President, perform the duties and exercise the powers of the President, and shall perform such other duties and have such other powers as the President or the Members may from time to time assign.

5.1.4. Treasurer. A Treasurer shall have charge and custody of, and be responsible for, all funds and interests of the Company. The Member/Manager, David M. Ryan, is hereby designated and appointed to serve as the Treasurer of the Company. The Treasurer also shall be responsible to deposit all funds to the credit of the Company in such banks or financial institutions as shall be selected in accordance with this Agreement; to disburse the funds of the Company under the general control of the Members or President; to receive, and give receipts for, moneys due and payable to the company from any source whatsoever; to render statements of the financial condition of the Company at all meetings of the Members and/or Officers, and a full financial report at the annual Meeting of Members; and to render such further financial statements to the Members or President as they may require respectively concerning the financial condition of the Company and any transactions of the Treasurer. The Treasurer shall have charge of the books and records of accounts of the Company and shall at all times keep complete and accurate records of assets, liabilities, capital, and the transactions of the Company; and in general perform all the duties incident to the Office of Treasurer and such other duties as from time to time may be assigned to the Treasurer by the Members or the President.

5.1.5. Secretary. A Secretary shall have charge and custody of, and be responsible for, keeping the minutes of the proceedings of the Members and Officers in one or more books

provided for that purpose; see that all notices are duly given; be custodian of the corporate records, other than financial records; have general charge of the Membership Register of the Company; and in general perform all duties incident to the Office of the Secretary and such other duties as from time to time the Members or the President may assign. The Manager, Terry A. Carragher, is hereby designated and appointed to serve as the Secretary of the Company. The Secretary shall, in the absence, unavailability, or disability of the President and the Vice Presidents, perform the duties and exercise the powers of the President, and shall perform such other duties and have such other powers as the President or the Members may from time to time assign.

5.1.6. Extraordinary Transactions. Notwithstanding anything to the contrary in this Agreement, the President or other Officer shall not undertake any of the following without the majority approval of the Members:

5.1.6.1. any transaction of one hundred thousand dollars ($100,000.00) or more, or any Capital Transaction;

5.1.6.2. the Company's lending more than $10,000 of its money on any one occasion;

5.1.6.3. the admission of additional Members to the Company;

5.1.6.4. the Company's engaging in business in any jurisdiction which does not provide for the registration of limited liability companies; and

5.1.7. Limitation on Authority of Members.

5.1.7.1. No Member is an agent of the Company solely by virtue of being a Member, and no Member has authority to act for the Company solely by virtue of being a Member.

5.1.7.2. Any Member who takes any action or binds the Company in violation of this Section 5.1 shall be solely responsible for any loss and expense incurred by the Company as a result of the unauthorized action and shall indemnify and hold the Company harmless with respect to the loss or expense.

5.1.8. Removal of Managers/Officers. The Members, with or without cause, at any time and from time to time and for any reason, may remove the Manager, or Member/Manager then acting and elect a new Manager or Member / Manager.

5.2. Meetings of and Voting by Members.

5.2.1. A meeting of the Members may be called at any time by any Member. Meetings of Members shall be held at the Company's principal place of business. Not less than ten (10) nor more than ninety (90) days before each meeting, the Person calling the meeting shall give written notice of the meeting to each Member entitled to vote at the meeting. The notice

shall state the time, place and purpose of the meeting. Notwithstanding the foregoing provisions, each Member who is entitled to notice waives notice if before or after the meeting the Member signs a waiver of the notice which is filed with the records of Members' meetings, or is present at the meeting in person or by proxy. Unless this Agreement provides otherwise, at a meeting of Members, the presence in person or by proxy of Members holding not less than fifty-one percent (51%) of the Percentages then held by Members constitutes a quorum. A Member may vote either in person or by written proxy signed by the Member or by his duly authorized attorney-in-fact.

5.2.2. Except as otherwise provided in this Agreement, the affirmative vote of Members holding fifty-one percent (51%) or more of the Percentages then held by Members shall be required to approve any matter coming before the Members.

5.2.3. In lieu of holding a meeting, the Members may vote or otherwise take action by a written instrument indicating the consent of Members holding a majority of the Percentages then held by Members. Provided, however, that with respect to: (1) the dissolution and winding up of the Company, (2) the sale, exchange, lease, mortgage, pledge or other transfer of all or substantially all of the assets of the Company, and (3) the merger or consolidation of the Company with another partnership, limited partnership, corporation, trust, LLC, estate, association or other entity, the Members may vote or otherwise take action by a written instrument indicating consent of all Members entitled to vote. If action is taken without a meeting upon written consent of less than all of the Members entitled to vote, prompt notice of such action shall be given to all Members who would have been entitled to vote upon the action if a meeting of Members were held.

5.2.4. Except as otherwise provided in this Agreement, wherever the Act requires unanimous consent to approve or take any action, that consent shall be given in writing and, in all cases, shall mean, rather than the consent of all Members, the consent of Members holding fifty-one percent (51%) or more of the Percentages then held by Members.

5.3. Personal Services.

5.3.1. No Member shall be required to perform services for the Company solely by virtue of being a Member. Unless approved by the President, no Member shall perform services for the Company or be entitled to compensation for services performed for the Company.

5.3.2. Unless approved by Members holding 51% of the Percentages then held by Members, the Managers/Officers shall not be entitled to compensation for services performed for the Company. However, upon substantiation of the amount and purpose thereof, the Managers/Officers shall be entitled to reimbursement for expenses reasonably incurred in connection with the activities of the Company.

5.4. Duties of Parties.

5.4.1. Each Member shall devote such time to the business and affairs of the

Company as is necessary to carry out the Member's duties set forth in this Agreement.

5.4.2. Except as otherwise expressly provided in Section 5.4.3, nothing in this Agreement shall be deemed to restrict in any way the rights of any Member, or of any Affiliate of any Member, to conduct any other business or activity whatsoever, and no Member shall be accountable to the Company or to any other Member with respect to that business or activity even if the business or activity competes with the Company's business. The organization of the Company shall be without prejudice to the Members' respective rights (or the rights of their respective Affiliates) to maintain, expand or diversify such other interests and activities and to receive and enjoy profits or compensation there from. Each Member waives any rights the Member might otherwise have to share or participate in such other interests or activities of any other Member or the Member's Affiliates.

5.4.3. Each Member understands and acknowledges that the conduct of the Company's business may involve business dealings and undertakings with Members and their Affiliates. In any of those cases, those dealings and undertakings shall be at arm's length and on commercially reasonable terms.

5.5. Liability and Indemnification.

5.5.1. The Members or Managers/Officers shall not be liable, responsible or accountable, in damages or otherwise, to any Member or to the Company for any act performed by the Member or Managers/Officers with respect to Company matters, except for fraud, gross negligence, willful misconduct or an intentional breach of this Agreement.

5.5.2. The Company shall indemnify the Members or Managers/Officers for any act performed with respect to Company matters by the Members or Managers/Officers within the scope of the authority conferred on the Members or Managers/Officers by this Agreement, except for fraud, gross negligence or an intentional breach of this Agreement. The Company shall promptly notify the Members whenever the Company for any act, matter, or thing, whatsoever, has indemnified any Member or Manager/Officer.

5.6. Power of Attorney.

5.6.1. Grant of Power. Each Member constitutes and appoints the President as the Member's true and lawful attorney-in-fact ("Attorney-in-Fact"), and in the Member's name, place and stead, to make, execute, sign, acknowledge and file:

5.6.1.1. one or more articles of organization;

5.6.1.2. all documents (including amendments to articles of organization) which the Attorney-in-Fact deems appropriate to reflect any amendment, change or modification of this Agreement;

5.6.1.3. any and all other certificates or other instruments required to be filed by the Company under the laws of the State of Rhode Island or of any other state or jurisdiction, including, without limitation, any certificate or other instruments necessary in order for

the Company to continue to qualify as a limited liability company under the laws of the State of Rhode Island;

5.6.1.4. one or more fictitious or trade name certificates; and

5.6.1.5. all documents which may be required to dissolve and terminate the Company and to cancel its articles of organization.

5.6.2. Irrevocability. The foregoing power of attorney is irrevocable and is coupled with an interest, and, to the extent permitted by applicable law, shall survive the death or disability of a Member. It also shall survive the Transfer of an Interest, except that if the transferee is admitted as a Member, this power of attorney shall survive the delivery of the assignment for the sole purpose of enabling the Attorney-in-Fact to execute, acknowledge and file any documents needed to effectuate the substitution. Each Member shall be bound by any representations made by the Attorney-in-Fact acting in good faith pursuant to this power of attorney, and each Member hereby waives any and all defenses that may be available to contest, negate or disaffirm the action of the Attorney-in-Fact taken in good faith under this power of attorney.

5.7. Arbitration of Deadlock. If any vote is required on any matter under this Agreement, and there are neither sufficient votes to approve nor disapprove of the matter, then either party may require that the matter be submitted to arbitration in accordance with the rules of the American Arbitration Association.

SECTION VI: TRANSFER OF INTERESTS AND WITHDRAWALS OF MEMBERS

6.1. Transfers.

6.1.1. No Member may Transfer all, or any portion of, or any interest or rights in, the Membership Rights owned by the Member, and no Interest Holder may Transfer all, or any portion of, or any interest or rights in, any Interest. Each Member hereby acknowledges the reasonableness of this prohibition in view of the purposes of the Company and the relationship of the Members. The Transfer of any Membership Rights or Interests in violation of the prohibition contained in this *Section* 6.1 shall be deemed invalid, null and void, and of no force or effect. Any Person to whom Membership Rights are attempted to be transferred in violation of this *Section* 6.1 shall not be entitled to vote on matters coming before the Members, participate in the management of the Company, act as an agent of the Company, receive distributions from the Company, or have any other rights in or with respect to the Membership Rights.

6.2. Voluntary Withdrawal. No Member shall have the right or power to Voluntarily Withdraw from the Company, except as otherwise provided by this Agreement. Upon a vote of the Members approving a Voluntary Withdrawal, the withdrawing Member shall execute a Voluntary Withdrawal Agreement and Release Agreement satisfactory to the Company.

6.3. Involuntary Withdrawal. Immediately upon the occurrence of an Involuntary Withdrawal, the successor of the Withdrawn Member shall thereupon become an Interest Holder

but shall not become a Member, and shall have all the rights of an Interest Holder.

SECTION VII: DISSOLUTION, LIQUIDATION, AND TERMINATION OF THE COMPANY

7.1. Events of Dissolution. The Company shall be dissolved upon the happening of any of the following events:

7.1.1. when the period fixed for its duration in *Section* 2.4 has expired;

7.1.2. upon the unanimous written agreement of the Members; or

7.1.3. upon the sale of all or substantially all the assets of the Company; or

7.1.4. the entry of a decree of judicial dissolution.

7.2. Procedure for Winding Up and Dissolution. If the Company is dissolved, the remaining Members shall wind up its affairs. On winding up of the Company, the assets of the Company shall be distributed first, to creditors of the Company, including Interest Holders who are creditors, in satisfaction of the liabilities of the Company, and then to the Interest Holders in accordance with *Section* 4.4.

7.3. Filing of Certificate of Cancellation. Upon the completion of the winding up of the affairs of the Company, the Members shall promptly file a Articles of Dissolution with the office of the Secretary of State.

SECTION VIII: BOOKS, RECORDS, ACCOUNTING, AND TAX ELECTIONS

8.1. Bank Accounts. All funds of the Company shall be deposited in a bank account or accounts opened in the Company's name. The Members shall determine the institution or institutions at which the accounts will be opened and maintained, the types of accounts, and the Persons who will have authority with respect to the accounts and the funds therein.

8.2. Books and Records. The Secretary shall keep or cause to be kept complete and accurate books and records of the Company and supporting documentation of the transactions with respect to the conduct of the Company's business. The books and records shall be maintained in accordance with generally accepted accounting principles and shall be available at the Company's principal office for examination by any Member or the Member's duly authorized representative at any and all reasonable times during normal business hours for any purpose related to such Member's interest as a Member.

8.3. Annual Accounting Period. The annual accounting period of the Company shall be its taxable year. The Company's taxable year shall be selected by the Members, subject to the requirements and limitations of the Code.

8.4. Reports. Within seventy-five (75) days after the end of each taxable year of the Company, the Members shall cause to be sent to each Person who was a Member at any time

during the taxable year then ended a complete accounting of the affairs of the Company for the taxable year then ended. In addition, within seventy five (75) days after the end of each taxable year of the Company, the Members shall cause to be sent to each Person who was an Interest Holder at any time during the taxable year then ended, that tax information concerning the Company which is necessary for preparing the Interest Holder's income tax returns for that year. At the request of any Member, and at the Member's expense, the Members shall cause an audit of the Company's books and records to be prepared by independent accountants for the period requested by the Member.

SECTION IX: GENERAL PROVISIONS

9.1. Assurances. Each Member shall execute all such certificates and other documents and shall do all such filing, recording, publishing, and other acts as the Members deem appropriate to comply with the requirements of the Act for the formation and operation of the Company and to comply with any laws, rules and regulations relating to the acquisition, operation, or holding of the property of the Company.

9.2. Notifications. Any notice, demand, consent, election, offer, approval, request, or other communication (collectively, a "notice") required or permitted under this Agreement must be in writing and either delivered personally or sent by certified or registered mail, postage prepaid, return receipt requested. A notice must be addressed to an Interest Holder at the Interest Holder's last known address on the records of the Company. A notice to the Company must be addressed to the Company's principal office. A notice delivered personally will be deemed given only when acknowledged in writing by the person to whom it is delivered. A notice that is sent by mail will be deemed given three (3) business days after it is mailed. Any party may designate, by notice to all of the others, substitute addresses or addressees for notices; and, thereafter, notices are to be directed to those substitute addresses or addressees.

9.3. Complete Agreement. This Agreement constitutes the complete and exclusive statement of the agreement among the Members. It supersedes all prior written and oral statements, including any prior representation, statement, condition, or warranty. Except as expressly provided otherwise herein, this Agreement may not be amended without the written consent of all of the Members.

9.4. Applicable Law. All questions concerning the construction, validity, and interpretation of this Agreement and the performance of the obligations imposed by this Agreement shall be governed by the internal law, not the law of conflicts, of the State of Rhode Island.

9.5. Section Titles. The headings herein are inserted as a matter of convenience only, and do not define, limit, or describe the scope of this Agreement or the intent of the provisions hereof.

9.6. Binding Provisions. This Agreement is binding upon, and inures to the benefit of, the parties hereto and their respective heirs, executors, administrators, personal and legal

representatives, successors, and permitted assigns.

9.7. Jurisdiction and Venue. The parties to this Agreement consent to the exclusive jurisdiction of the courts of, and the exclusivity of arbitration in, the State of Rhode Island.

9.8. Terms. Common nouns and pronouns shall be deemed to refer to the masculine, feminine, neuter, singular, and plural, as the identity of the Person may in the context require.

9.9. Separability of Provisions. Each provision of this Agreement shall be considered separable; and if, for any reason, any provision or provisions herein are determined to be invalid and contrary to any existing or future law, such invalidity shall not impair the operation of or affect those portions of this Agreement which are valid.

9.10. Counterparts. This Agreement may be executed simultaneously in two or more counterparts, each of which shall be deemed an original, and all of which, when taken together, constitute one and the same document. The signature of any party to any counterpart shall be deemed a signature to, and may be appended to, any other counterpart.

9.11. Specific Performance. The parties recognize that irreparable injury will result from a breach of any provision of this Agreement and that money damages will be inadequate to fully remedy the injury. Accordingly, in the event of a breach or threatened breach of one or more of the provisions of this Agreement, any party who may be injured (in addition to any other remedies which may be available to that party) shall be entitled to one or more preliminary or permanent orders (i) restraining and enjoining any act which would constitute a breach or (ii) compelling the performance of any obligation which, if not performed, would constitute a breach.

9.12. Jurisdiction and Venue. Any suit involving any dispute or matter arising under this Agreement may only be brought in the United States District Court for the District of Rhode Island or any Rhode Island State Court having jurisdiction over the subject matter of the dispute or matter. All Members hereby consent to the exercise of personal jurisdiction by any such court with respect to any such proceeding.

9.12. Estoppel Certificate. Each Member shall, within five (5) days after written request by the President, deliver to the requesting Person a certificate stating, to the Member's knowledge, that: (a) this Agreement is in full force and effect; (b) this Agreement has not been modified except by any instrument or instruments identified in the certificate; and (c) there is no default hereunder by the requesting Person, or if there is a default, the nature and extent thereof. If the certificate is not received within that five-day period, the President shall execute and deliver the certificate on behalf of the requested Member, without qualification, pursuant to the power of attorney granted in Section 5.6.

Exhibit A

MEMBERSHIP REGISTER

Name, Address, and Taxpayer I.D. Number of each Member	Amount of Property Contributed	Percentage Interest
DAVID M. RYAN 101 MELROSE AVENUE JAMESTOWN, RI 02835 SS# _____-_____-_____	_____	Thirty-Three One-Third Percent
SALLY J. RYAN 101 MELROSE AVENUE JAMESTOWN, RI 02835 SS# _____-_____-_____	_____	Thirty-Three One-Third Percent
KEVIN S. RYAN 124 VARNUM AVENUE PAWTUCKET, RI 02860 SS# _____-_____-_____	_____	Thirty-Three One-Third Percent

IN WITNESS WHEREOF, on this 7 day of June 2011 each party has read the above and has executed, or caused this Agreement to be executed, under seal as of the date set forth.

David M. Ryan

Witness

Sally J. Ryan

Witness

Kevin S. Ryan

Witness

RI SOS Filing Number: 201175046020 Date: 02/16/2011 10:32 AM

Filing Fee: $150.00

ID Number: _____

STATE OF RHODE ISLAND AND PROVIDENCE PLANTATIONS
Office of the Secretary of State
Corporations Division
148 W. River Street
Providence, Rhode Island 02904-2615

LIMITED LIABILITY COMPANY

ARTICLES OF ORGANIZATION

Pursuant to the provisions of Chapter 7-16 of the General Laws of Rhode Island, 1956, as amended, the following Articles of Organization are adopted for the limited liability company to be organized hereby:

1. The name of the limited liability company is:

   198 Waterman Avenue, LLC

2. The address of the limited liability company's resident agent in Rhode Island is:

   359 Broad Street (Street Address, not P.O. Box) **Providence** (City/Town), RI **02907** (Zip Code)

   and the name of the resident agent at such address is **Terry A. Carragher** (Name of Agent)

3. Under the terms of these Articles of Organization and any written operating agreement made or intended to be made, the limited liability company is intended to be treated for purposes of federal income taxation as:

   (Check one box only)

   ☑ a partnership *or* ☐ a corporation *or* ☐ disregarded as an entity separate from its member

4. The address of the principal office of the limited liability company if it is determined at the time of organization:
   Address of Principal Office is Not Determined At Time of Organization

   (If not determined, so state)

5. The limited liability company has the purpose of engaging in any lawful business, and shall have perpetual existence until dissolved or terminated in accordance with Chapter 7-16, unless a more limited purpose or duration is set forth in paragraph 6 of these Articles of Organization.

RECEIVED
2011 FEB 16 AM 10:32
SECRETARY OF STATE
CORPORATIONS DIV

FILED
FEB 16 2011
By 137452
DS 10:32

Form No. 400
Revised: 09/06

6. Additional provisions, if any, not inconsistent with law, which the members elect to have set forth in these Articles of Organization, including, but not limited to, any limitation of the purposes or duration for which the limited liability company is formed, and any other provision which may be included in an operating agreement:

See Article Sixth, Attached Hereto and Incorporated herein

7. Management of the Limited Liability Company:

A. The limited liability company is to be managed ☐ by its members. ***(If you have checked this box, go to item no. 8.)***

or

B. The limited liability company is to be managed ☑ by one (1) or more managers. ***(If the limited liability company has managers at the time of the filing of these Articles of Organization, state the name and address of each manager.)***

Manager	Address
David M. Ryan	**359 Broad Street, Providence, RI 02907**
Sally J. Ryan	**359 Broad Street, Providence, RI 02907**
Kevin S. Ryan	**359 Broad Street, Providence, RI 02907**
Terry A. Carragher	**359 Broad Street, Providence, RI 02907**

8. The date these Articles of Organization are to become effective, if later than the date of filing, is:

Articles of Organization Effective Upon Filing

(not prior to, nor more than 30 days after, the filing of these Articles of Organization)

Name and Address of Authorized Person:
Terry A. Carragher
359 Broad Street
Providence, RI 02907

Under penalty of perjury, I declare and affirm that I have examined these Articles of Organization, including any accompanying attachments, and that all statements contained herein are true and correct.

Date: 12-10-20

Signature of Authorized Person

STATE OF RHODE ISLAND AND PROVIDENCE PLANTATIONS

Office of the Secretary of State
Corporations Division
148 W. River Street
Providence, Rhode Island 02904-2615

LIMITED LIABILITY COMPANY

ARTICLES OF ORGANIZATION ATTACHMENT

198 Waterman Avenue, LLC

SIXTH: Additional provisions not inconsistent with law, which the Members elect to have set forth in the Articles of Organization.

I. A Managers/Officers of the limited liability company shall not be personally liable to the limited liability company or to its Members for monetary damages for breach of any duty provided for in Section 17 of the Rhode Island Limited Liability Company Act, as amended (Act), except for (i) liability for breach of the manager's duty of loyalty to the limited liability company or its members, (ii) liability for acts or omissions not in good faith or which involve intentional misconduct or a knowing violation of law, (iii) liability imposed pursuant to the provisions of Section 32 of the Act, or (iv) liability for any transaction from which the manager derived an improper personal benefit, unless said transaction was with the informed consent of the members or a majority of the disinterested managers.

II. The Members of the limited liability company may include provisions in the limited liability company's operating agreement, or the Managers may authorize agreements to be entered into with each member, manager, officer, agent, or employee, past or present, of the limited liability company (Indemnified Person), for the purpose of indemnifying an Indemnified Person in the manner and to the extent permitted by the Act.

III. The Members of the limited liability company have chosen to act exclusively through one or more Managers, which may be designated as Officer(s): a president, and one or more vice presidents, a treasurer, and a secretary.

IV. Any Member, Manager, or Officer shall not and does not have authority to perform any acts that involve the sale, transfer, or assignment of the assets or any interests of the limited liability company with a value of or more than one hundred thousand dollars ($100,000.00), or committing or obligating the limited liability company to one hundred thousand dollars ($100,000.00) or more, unless the Member, Manager, or Officer obtains express written

authority by company resolution or consent from the Members entitled to vote or consent thereon.

V. The Member(s) of the limited liability company may establish classes or series of membership rights and interests.

Signature of Terry A. Carragher, Authorized Person

12-10-12
Date

State of Rhode Island and Providence Plantations

A. Ralph Mollis

Secretary of State

STATE OF RHODE ISLAND AND PROVIDENCE PLANTATIONS

I, A. RALPH MOLLIS, Secretary of State of the State of Rhode Island and Providence Plantations, hereby certify that this document, duly executed in accordance with the provisions of Title 7 of the General Laws of Rhode Island, as amended, has been filed in this office on this day:

February 16, 2011 10:32 AM

A. RALPH MOLLIS

Secretary of State

59224-3-586668

Tab G

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2021

	YTD Total	Per Diem
Income		
Income from Operations		
Income from Nursing Services		
40010 - PRIVATE PAY	543,940.00	29.64
40011 - OTHER LIKE MEDICAID	66,940.00	3.65
40015 - MANAGED CARE	586,850.00	31.97
40017 - OPTUM SKILLED CAPITATION	53,100.00	2.89
40019 - MEDICAID PENDING	100,450.00	5.47
40020 - FEDERAL MEDICARE SKILLED	420,960.00	22.94
40030 - MEDICAID	4,020,990.00	219.08
40032 - HOSPICE	4,030.00	0.22
40033 - C/A HOSPICE	(153.83)	(0.01)
40034 - C/A PRIVATE	(940.00)	(0.05)
40035 - C/A MEDICAID	(968,667.19)	(52.78)
40037 - C/A MANAGED CARE	163,550.88	8.91
40038 - C/A MEDICARE	382,268.41	20.83
40039 - C/A OTHER LIKE MEDICAID	(16,291.00)	(0.89)
40041 - C/A MEDICAID PENDING	(13,042.57)	(0.71)
40060 - C/A MANAGED CARE COPAY WITH MEDICIAD BACKUP	(4,099.38)	(0.22)
40069 - RETRO INCOME - CURRENT YEAR	(971.63)	(0.05)
40102 - PRESCRIPTION DRUGS MANAGED CARE	109,301.62	5.96
40103 - C/A PRESCRIPTION DRUGS MANAGED CARE	(109,301.62)	(5.96)
40104 - DRUGS MEDICARE B MONOCLONAL ANTIBODY TREATMENT	1,857.60	0.10
40114 - PRESCRIPTION DRUGS MEDICAID	10,995.60	0.60
40117 - PRESCRIPTION DRUGS MEDICARE	125,145.70	6.82
40118 - C/A PRESCRIPTION DRUGS MEDICARE	(125,145.70)	(6.82)
40119 - C/A PRESCRIPTION DRUGS MEDICAID	(10,995.60)	(0.60)
40120 - NURSING SUPPLIES PRIVATE	530.72	0.03
40125 - NURSING SUPPLIES MEDICAID	387.62	0.02
40126 - C/A NURSING SUPPLIES MEDICAID	(387.62)	(0.02)
40141 - OCCUPATIONAL THERAPY MEDICARE A	197,904.60	10.78
40142 - OCCUPATIONAL THERAPY MEDICARE B	40,814.30	2.22
40143 - C/A OCCUPATIONAL THERAPY MEDICARE A	(197,904.60)	(10.78)
40144 - C/A OCCUPATIONAL THERAPY MEDICARE B	(26,087.55)	(1.42)
40145 - OCCUPATIONAL THERAPY MEDICAID	3,192.92	0.17
40146 - C/A OCCUPATIONAL THERAPY MEDICAID	(3,192.92)	(0.17)
40200 - OCCUPATIONAL THERAPY MANAGED CARE	75,118.54	4.09
40201 - C/A OCCUPATIONAL THERAPY MANAGED CARE	(75,118.54)	(4.09)
40202 - OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM	62,530.00	3.41
40203 - C/A OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM	(53,690.00)	(2.93)
40204 - OCCUPATIONAL THERAPY BC/BS	32,500.00	1.77
40205 - C/A OCCUPATIONAL THERAPY BC/BS	(16,250.00)	(0.89)
40206 - OCCUPATIONAL THERAPY OTHER INSURANCE	11,973.66	0.65
40207 - C/A OCCUPATIONAL THERAPY OTHER INSURANCE	(6,802.55)	(0.37)
40210 - PHYSICAL THERAPY MANAGED CARE	79,251.80	4.32

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2021

	YTD Total	Per Diem
40211 - C/A PHYSICAL THERAPY MANAGED CARE	(79,251.80)	(4.32)
40212 - PHYSICAL THERAPY UNITED HEALTH/OPTUM	59,020.00	3.22
40213 - C/A PHYSICAL THERAPY UNITED HEALTH/OPTUM	(46,280.00)	(2.52)
40214 - PHYSICAL THERAPY BC/BS	48,620.00	2.65
40215 - C/A PHYSICAL THERAPY BC/BS	(24,375.00)	(1.33)
40216 - PHYSICAL THERAPY OTHER INSURANCE	9,273.24	0.51
40217 - C/A PHYSICAL THERAPY OTHER INSURANCE	(5,253.43)	(0.29)
40220 - SPEECH THERAPY MANAGED CARE	32,340.10	1.76
40221 - C/A SPEECH THERAPY MANAGED CARE	(32,340.10)	(1.76)
40222 - SPEECH THERAPY UNITED HEALTH/OPTUM	22,360.00	1.22
40223 - C/A SPEECH THERAPY UNITED HEALTH/OPTUM	(16,380.00)	(0.89)
40224 - SPEECH THERAPY BC/BS	18,460.00	1.01
40225 - C/A SPEECH THERAPY BC/BS	(9,230.00)	(0.50)
40226 - SPEECH THERAPY OTHER INSURANCE	1,250.42	0.07
40227 - C/A SPEECH THERAPY OTHER INSURANCE	(713.98)	(0.04)
40301 - PHYSICAL THERAPY MEDICARE A	192,331.46	10.48
40302 - PHYSICAL THERAPY MEDICARE B	84,326.60	4.59
40303 - C/A PHYSICAL THERAPY MEDICARE A	(192,331.46)	(10.48)
40304 - C/A PHYSICAL THERAPY MEDICARE B	(52,441.49)	(2.86)
40305 - PHYSICAL THERAPY MEDICAID	4,303.18	0.23
40306 - C/A PHYSICAL THERAPY MEDICAID	(4,303.18)	(0.23)
40310 - OPTUM THERAPY CAPITATION	34,025.00	1.85
40331 - SPEECH THERAPY MEDICARE A	60,037.36	3.27
40332 - SPEECH THERAPY MEDICARE B	10,931.48	0.60
40333 - C/A SPEECH THERAPY MEDICARE A	(60,037.36)	(3.27)
40334 - C/A SPEECH THERAPY MEDICARE B	(6,205.07)	(0.34)
40336 - C/A HMO THERAPY B COPAY WITH MEDICAID BACKUP	(1,933.74)	(0.11)
40337 - LAB FEES MEDICARE A	11,478.02	0.63
40338 - C/A LAB FEES MEDICARE A	(11,478.02)	(0.63)
40430 - LAB FEES MANAGED CARE	16,665.06	0.91
40431 - C/A LAB FEES MANAGED CARE	(16,665.06)	(0.91)
40440 - X-RAY MANAGED CARE	15,666.12	0.85
40441 - C/A X-RAY MANAGED CARE	(15,666.12)	(0.85)
40590 - X-RAY MEDICARE A	11,100.70	0.60
40591 - C/A X-RAY MEDICARE A	(11,100.70)	(0.60)
42202 - NURSING SUPPLIES UNITED HEALTH/OPTUM	14,820.74	0.81
42203 - C/A NURSING SUPPLIES UNITED HEALTH/OPTUM	(14,820.74)	(0.81)
42216 - AMBULANCE OPTUM	1,140.00	0.06
42217 - C/A AMBULANCE OPTUM	(570.00)	(0.03)
Total Nursing Service Income	5,512,313.90	300.33

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2021

	YTD Total	Per Diem
Operating Expenses		
Pass Through Items		
54424 - INSURANCE ALL OTHER	101,750.00	5.54
54501 - PERSONAL PROPERTY TAX - TANGIBLE, VEHICLE AND FIRE	17,237.89	0.94
54511 - REAL ESTATE TAXES	38,947.63	2.12
55132 - GAS	19,781.00	1.08
55142 - ELECTRIC	42,872.78	2.34
Total Pass Through Items	220,589.30	12.02
Other Property Related Expenses		
54463 - INTEREST & FINANCE CHARGES	93.24	0.01
54473 - INTEREST - NOTES & L/P	6,156.76	0.34
54523 - INTEREST MORTGAGE	49,145.76	2.68
54543 - LEASE OF EQUIPMENT	10,537.56	0.57
54563 - DEPRECIATION BUILDING	49,068.00	2.67
54573 - DEPRECIATION BUILDING IMPROVEMENTS	35,838.00	1.95
54583 - DEPRECIATION EQUIPMENT	8,609.00	0.47
54663 - DEPRECIATION MOTOR VEHICLES	11,520.00	0.63
Total Other Property Related Expenses	170,968.32	9.32
Direct Labor Expenses		
54155 - MEDICAL DIRECTOR	14,400.00	0.78
54405 - PAYROLL TAXES - FICA	169,287.25	9.22
54415 - PAYROLL TAXES - RI DES	17,301.57	0.94
54416 - PAYROLL TAXES - FUTA	3,403.56	0.19
54425 - INSURANCE WORKER'S COMPENSATION	55,978.77	3.05
54714 - PENSION PLAN EXPENSE	51,060.29	2.78
54715 - HEALTH INSURANCE	321,136.59	17.50
54735 - GROUP LIFE INSURANCE	1,485.00	0.08
54775 - OTHER EMPLOYEE BENEFITS	12,782.02	0.70
55214 - SALARIES - DIETARY	227,637.95	12.40
55315 - SALARIES - LAUNDRY	58,702.50	3.20
55425 - SALARIES - HOUSEKEEPING	111,162.65	6.06
55435 - SALARIES - MAINTENANCE	88,027.59	4.80
56074 - P/S CNA	136,079.06	7.41
56084 - P/S LPN	82,372.01	4.49
56094 - SALARIES - RN	289,462.23	15.77
56104 - SALARIES - LPN	314,163.10	17.12
56114 - SALARIES - CNA	652,719.82	35.56
56124 - P/S RN	199,190.97	10.85
56164 - SALARIES - RN OBRA	93,961.40	5.12
56215 - SALARIES - MED TECH	154,416.35	8.41
56254 - SALARIES - DNS	106,311.76	5.79
56325 - SALARIES - PHYSICAL THERAPY MEDICAID	2,151.59	0.12
56554 - P/S - OBRA	10,951.46	0.60

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2021

	YTD Total	Per Diem
57154 - SALARIES - OCCUPATIONAL THERAPY MEDICAID	1,596.49	0.09
57310 - SALARIES - SOC SERV CERT	129,468.87	7.05
57515 - SALARIES - ACTIVITIES	91,338.80	4.98
Total Direct Labor Expenses	3,396,549.65	185.06
Other Operating Expenses		
54105 - P/S - ADMINISTRATION	6,023.38	0.33
54109 - HEALTH INSURANCE - MANAGEMENT	49,671.04	2.71
54115 - SALARIES - ADMINISTRATOR	93,401.94	5.09
54215 - SALARIES - OTHER ADMINISTRATIVE	190,628.41	10.39
54255 - OFFICE SUPPLIES	13,533.72	0.74
54256 - BANK SERVICE CHARGE	796.09	0.04
54265 - COMMUNICATIONS	19,954.64	1.09
54275 - TRAVEL & MOTOR VEHICLES	759.63	0.04
54285 - CONVENTIONS OUT OF STATE	1,747.68	0.10
54286 - EDUCATION AND SEMINARS IN STATE	1,020.76	0.06
54295 - ADVERTISING - HELP WANTED	2,995.90	0.16
54305 - LICENSES & DUES	6,209.85	0.34
54334 - HOME OFFICE LABOR AND ALL OTHER	168,228.00	9.17
54355 - COMPUTERIZED PAYROLL & DATA PROCESSESSING	109,259.69	5.95
54365 - ACCOUNTING AND AUDITING FEES	32,800.00	1.79
54495 - MISCELLANEOUS EXPENSE	122.06	0.01
54515 - SALES & USE TAX	37.46	0.00
55155 - WATER & SEWERAGE	28,843.96	1.57
55165 - MAINTENANCE SUPPLIES	16,437.10	0.90
55185 - P/S MAINTENANCE & REPAIRS	32,538.98	1.77
55195 - MAINTENANCE CONTRACTS	36,610.74	1.99
55196 - HAZARDOUS WASTE	800.00	0.04
55224 - RAW FOOD	123,641.42	6.74
55234 - DIETARY CONSULTANT	22,892.00	1.25
55294 - DIETARY SUPPLIES	14,790.97	0.81
55325 - LINEN & BEDDING	171.19	0.01
55395 - LAUNDRY SUPPLIES	18,599.21	1.01
55495 - HOUSEKEEPING SUPPLIES	24,032.60	1.31
56240 - SUPPLEMENTS	9,160.83	0.50
56244 - NURSING SUPPLIES HOUSE	69,434.62	3.78
56294 - NURSING SUPPLIES MEDICAID	193.81	0.01
56334 - OXYGEN HOUSE	1,176.73	0.06
56434 - PAYROLL TAXES - MANAGEMENT	23,893.01	1.30
56444 - OTHER BENEFITS - MANAGEMENT	7,946.19	0.43
56454 - INSURANCE WORKER'S COMPENSATION - MANAGEMENT	566.75	0.03
57125 - PHARMACY CONSULTANT	6,196.50	0.34
57585 - ACTIVITIES SUPPLIES	3,767.57	0.21
57595 - ACTIVITIES OTHER	6,698.81	0.36
Total Other Operating Expenses	1,145,583.24	62.42

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2021

	YTD Total	Per Diem
Provider Assessment		
50470 - PROVIDER ASSESSMENT - PRIVATE	82,133.19	4.47
50471 - PROVIDER ASSESSMENT - MEDICARE	47,001.17	2.56
50472 - PROVIDER ASSESSMENT - MEDICAID	170,663.45	9.30
Total Provider Assessment	299,797.81	16.33
Non-Medicaid Expenses		
54266 - MOBILE/CELL PHONE	291.96	0.02
56264 - NURSING SUPPLIES PRIVATE	2,764.88	0.15
56274 - NURSING SUPPLIES MEDICARE A	5,715.49	0.31
56285 - NURSING SUPPLIES UNITED HEALTH/OPTUM	975.66	0.05
56287 - NURSING SUPPLIES MANAGED CARE	1,147.04	0.06
56301 - SALARIES - PHYSICAL THERAPY MANAGED CARE	38,563.42	2.10
56303 - SALARIES - PHYSICAL THERAPY OTHER INSURANCE	1,555.36	0.08
56306 - SALARIES - PHYSICAL THERAPY BC/BS	9,392.04	0.51
56307 - SALARIES - PHYSICAL THERAPY UNITED HEALTH/OPTUM B	11,655.46	0.64
56310 - SALARIES - PHYSICAL THERAPY HOUSE/INDIRECT	57,044.74	3.11
56315 - SALARIES - PHYSICAL THERAPY MEDICARE A	27,528.64	1.50
56316 - SALARIES - PHYSICAL THERAPY MEDICARE B	10,637.42	0.58
56354 - AMBULANCE MEDICAID	1,248.68	0.07
56375 - AMBULANCE MANAGED CARE	5,184.17	0.28
57116 - SALARIES - OCCUPATIONAL THERAPY HOUSE/INDIRECT	83,430.69	4.55
57117 - SALARIES - SPEECH THERAPY HOUSE/INDIRECT	19,173.22	1.04
57126 - SALARIES - OCCUPATIONAL THERAPY MEDICARE A	24,519.17	1.34
57127 - SALARIES - OCCUPATIONAL THERAPY MEDICARE B	4,946.94	0.27
57128 - SALARIES - OCCUPATIONAL THERAPY MANAGED CARE	37,191.72	2.03
57129 - SALARIES - OCCUPATIONAL THERAPY OTHER INSURANCE	1,409.72	0.08
57131 - SALARIES - OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM B	11,631.37	0.63
57132 - SALARIES - OCCUPATIONAL THERAPY BC/BS B	6,654.03	0.36
57156 - SALARIES - SPEECH THERAPY MEDICARE A	9,230.43	0.50
57157 - SALARIES - SPEECH THERAPY MEDICARE B	2,169.78	0.12
57158 - SALARIES - SPEECH THERAPY MANAGED CARE	15,697.39	0.86
57159 - SALARIES - SPEECH THERAPY OTHER INSURANCE	239.77	0.01
57161 - SALARIES - SPEECH THERAPY UNITED HEALTH/OPTUM	6,163.27	0.34
57162 - SALARIES - SPEECH THERAPY BC/BS	4,684.29	0.26
57175 - P/S SPEECH THERAPY MEDICARE A	1,360.00	0.07
57176 - P/S SPEECH THERAPY MEDICARE B	436.89	0.02
57179 - P/S SPEECH THERAPY MANAGED CARE	340.00	0.02
57192 - X-RAY MANAGE CARE	7,833.06	0.43
57193 - LAB FEES MANAGE CARE	8,332.53	0.45
57206 - THERAPY ADMINISTRATIVE FEE	18,810.00	1.02
57207 - LAB FEES MEDICARE A	5,739.01	0.31
57228 - PRESCRIPTION DRUGS MANAGED CARE	54,650.81	2.98
57235 - PRESCRIPTION DRUGS MEDICARE	62,572.85	3.41

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2021

	YTD Total	Per Diem
57237 - X-RAY MEDICARE A	5,550.35	0.30
57242 - AMBULANCE MEDICARE A	7,825.70	0.43
57245 - DRUGS MEDICARE B MONOCLONAL ANTIBODY TREATMENT	396.00	0.02
57252 - AMBULANCE PRIVATE & OTHER	214.00	0.01
57259 - PAYROLL TAXES - THERAPY	32,201.13	1.75
57260 - HEALTH INSURANCE - THERAPY	12,938.42	0.70
57261 - OTHER BENEFITS - THERAPY	9,173.88	0.50
57262 - INSURANCE WORKER'S COMPENSATION - THERAPY	8,770.05	0.48
Total Non-Medicaid Expenses	637,991.43	34.76
Non-reimbursable Expenses		
51499 - BAD DEBT EXPENSE	50,266.16	2.74
54125 - SALARIES - ADMINISTRATOR NON-REIMBURSABLE	21,993.00	1.20
54243 - ADMINISTRATOR TAXES & BENEFITS NON-REIMBURSABLE	1,743.00	0.09
54299 - ADVERTISING & PR	8,850.91	0.48
54339 - HOME OFFICE NON-REIMBURSABLE	217,263.00	11.84
54417 - LEGAL NON-REIMBURSABLE A/R AND OTHER	2,267.50	0.12
54760 - MINOR MOVABLES	12,564.46	0.68
54765 - PRIOR YEAR EXPENSE	10,698.24	0.58
55175 - BUILDING IMPROVEMENTS, REPLACEMENTS AND SUPPLIES	54,611.16	2.98
57236 - PRESCRIPTION DRUGS MEDICAID	5,497.80	0.30
57700 - SUPPLIES AND EXPENSES RELATED TO COVID-19	79,666.98	4.34
Total Non-reimbursable Expenses	465,422.21	25.36
Total Operating Expenses	6,336,901.96	345.26
Net Income from Operations	(824,588.06)	(44.93)

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2021

	YTD Total	Per Diem
Add: Other Income		
41000 - INTEREST INCOME	1,004.78	0.05
41400 - MISCELLANEOUS INCOME	758,023.76	41.30
41500 - CARES ACT FUNDING	319,015.00	17.38
Total Other Income	1,078,043.54	58.74
Add		
40070 - RETRO INCOME - PRIOR YEAR	(6,154.09)	(0.34)
40072 - STATE RUG ISSUE ADJUSTMENTS	852.18	0.05
Total - Other Adjustments:	(5,301.91)	(0.29)
Less:		
54439 - CORPORATE TAXES STATE OF RI	400.00	0.02
Total Less	400.00	0.02
Net Income	247,753.57	13.50

198 WATERMAN AVENUE LLC

Balance Sheet

EASTGATE NURSING & REHABILITATION CENTER Month Ending 12/31/2021

Assets	
Current Assets	
10011 - CASH - CHECKING BANK RI GENERAL ACCOUNT - EG	121,926.28
10051 - CASH - CHECKING BANK RI DEBIT CARD ACCOUNT - EG	3,266.82
10071 - CASH - MONEY MARKET BANK RI - EG	102,459.70
11016 - CASH - PETTY CASH	200.00
11210 - ACCOUNTS RECEIVABLE	722,578.08
11216 - A/R - MEDICAID PENDING	90,560.93
11220 - A/R - MEDICAID & NHP STATE	(10,352.59)
11231 - A/R - ALL OTHER INSURANCE	(1,289.00)
11240 - A/R - OTHER	360.74
11250 - A/R - ALLOWANCE FOR DOUBTFUL ACCOUNTS	(100,000.00)
11330 - PREPAID INSURANCE	11,270.35
11340 - PREPAID EXPENSES & DEPOSITS	22,738.29
Total Current Assets	963,719.60
Fixed Assets	
Fixed Assets	
11410 - LAND	163,500.00
11420 - BUILDING	1,471,796.00
11430 - BUILDING IMPROVEMENTS	358,391.05
11440 - MAJOR MOVABLES	558,830.35
11460 - MOTOR VEHICLES	46,075.33
Total Fixed Assets	2,598,592.73
Accumulated Depreciation	
11520 - ACCUM DEPRECIATION - BUILDING	457,957.00
11530 - ACCUM DEPRECIATION - BUILDING IMPROVEMENTS	152,291.00
11540 - ACCUM DEPRECIATION - MAJOR MOVABLES	537,356.00
11560 - ACCUM DEPRECIATION - MOTOR VEHICLES	40,320.00
Total Accumulated Depreciation	1,187,924.00
Total Net Fixed Assets	1,410,668.73
Other Assets	
11350 - DEFERRED FEES	28,935.00
11740 - ACCUM AMORTIZATION - DEFERRED FEES	(28,935.00)
Total Other Assets	0.00
Total Assets	2,374,388.33

198 WATERMAN AVENUE LLC

Balance Sheet

EASTGATE NURSING & REHABILITATION CENTER Month Ending 12/31/2021

Liabilities and Equity	
Liabilities	
Current Liabilities	
20000 - ACCOUNTS PAYABLE	2,795,603.59
22180 - ACCRUED SALARIES & WAGES PAYABLE	54,071.36
22181 - ACCRUED SICK & VACATION	90,809.00
22200 - ACCRUED FICA (EMPLOYER)	3,996.45
22240 - ACCRUED RI DES	581.13
22241 - ACCRUED FUTA	313.44
22245 - N/T EMPLOYEE MEDICAL REIMB DEDUCTION	1,397.25
22258 - PENSION PLAN PAYABLE	3,912.04
22259 - ACCRUED PROVIDER ASSESSMENT	69,708.06
22260 - ACCRUED EXPENSES	411,790.00
22310 - ACCRUED TAXES	13,893.75
22312 - ACCRUED LEGAL EXPENSES	24,974.43
22527 - HHS Stimulus funds expense/lost revenue not yet incurred	187,063.00
22531 - State of RI Back to Business Grant Funds	5,000.00
Total Current Liabilities	3,663,113.50
Long Term Liabilities	
22030 - N/P - D. M. RYAN	141,215.29
22100 - L/P - HCLTD	103,000.00
22501 - MORTGAGE PAYABLE BANK RI	1,345,274.74
22515 - NOTE PAYABLE BANK RI 10/2018 VAN & NURSE CALL SYSTEM - EG	29,875.02
22517 - CAPITAL LEASE KONICA COPIER - RHC,EHC,MHC,SK,HH&EG	8,312.92
Total Long Term Liabilities	1,627,677.97
Total Liabilities	5,290,791.47
Equity	
Retained Earnings	(3,334,403.14)
Partner's Equity	418,000.00
Total Equity	(2,916,403.14)
Total Liabilities and Equity	2,374,388.33

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2022

	YTD Total	Per Diem
Income		
Income from Operations		
Income from Nursing Services		
40010 - PRIVATE PAY	555,765.00	28.78
40011 - OTHER LIKE MEDICAID	330,745.00	17.13
40015 - MANAGED CARE	668,080.00	34.60
40017 - OPTUM SKILLED CAPITATION	79,920.00	4.14
40019 - MEDICAID PENDING	99,450.00	5.15
40020 - FEDERAL MEDICARE SKILLED	357,360.00	18.51
40030 - MEDICAID	4,085,795.00	211.60
40032 - HOSPICE	183,990.00	9.53
40033 - C/A HOSPICE	(36,649.90)	(1.90)
40035 - C/A MEDICAID	(955,914.33)	(49.51)
40037 - C/A MANAGED CARE	212,503.36	11.01
40038 - C/A MEDICARE	340,099.86	17.61
40039 - C/A OTHER LIKE MEDICAID	(76,053.00)	(3.94)
40041 - C/A MEDICAID PENDING	(13,488.71)	(0.70)
40044 - C/A MEDICARE A 2% PAYMENT REDUCTION	(7,984.96)	(0.41)
40060 - C/A MANAGED CARE COPAY WITH MEDICIAD BACKUP	(6,611.63)	(0.34)
40069 - RETRO INCOME - CURRENT YEAR	(881.82)	(0.05)
40088 - PRESCRIPTION DRUGS OTHER INSURANCE	310.58	0.02
40089 - C/A PRESCRIPTION DRUGS OTHER INSURANCE	(310.58)	(0.02)
40102 - PRESCRIPTION DRUGS MANAGED CARE	114,164.46	5.91
40103 - C/A PRESCRIPTION DRUGS MANAGED CARE	(114,164.46)	(5.91)
40114 - PRESCRIPTION DRUGS MEDICAID	15,180.64	0.79
40117 - PRESCRIPTION DRUGS MEDICARE	62,066.70	3.21
40118 - C/A PRESCRIPTION DRUGS MEDICARE	(62,066.70)	(3.21)
40119 - C/A PRESCRIPTION DRUGS MEDICAID	(15,180.64)	(0.79)
40125 - NURSING SUPPLIES MEDICAID	19.84	0.00
40126 - C/A NURSING SUPPLIES MEDICAID	(19.84)	(0.00)
40141 - OCCUPATIONAL THERAPY MEDICARE A	166,015.42	8.60
40142 - OCCUPATIONAL THERAPY MEDICARE B	62,832.14	3.25
40143 - C/A OCCUPATIONAL THERAPY MEDICARE A	(166,015.42)	(8.60)
40144 - C/A OCCUPATIONAL THERAPY MEDICARE B	(40,607.13)	(2.10)
40145 - OCCUPATIONAL THERAPY MEDICAID	976.92	0.05
40146 - C/A OCCUPATIONAL THERAPY MEDICAID	(976.92)	(0.05)
40200 - OCCUPATIONAL THERAPY MANAGED CARE	84,407.84	4.37
40201 - C/A OCCUPATIONAL THERAPY MANAGED CARE	(84,407.84)	(4.37)
40202 - OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM	58,630.00	3.04
40203 - C/A OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM	(50,245.00)	(2.60)
40204 - OCCUPATIONAL THERAPY BC/BS	61,880.00	3.20
40205 - C/A OCCUPATIONAL THERAPY BC/BS	(30,940.00)	(1.60)
40206 - OCCUPATIONAL THERAPY OTHER INSURANCE	19,032.82	0.99
40207 - C/A OCCUPATIONAL THERAPY OTHER INSURANCE	(10,867.83)	(0.56)
40210 - PHYSICAL THERAPY MANAGED CARE	79,251.08	4.10

	YTD Total	Per Diem
40211 - C/A PHYSICAL THERAPY MANAGED CARE	(79,251.08)	(4.10)
40212 - PHYSICAL THERAPY UNITED HEALTH/OPTUM	67,080.00	3.47
40213 - C/A PHYSICAL THERAPY UNITED HEALTH/OPTUM	(56,485.00)	(2.93)
40214 - PHYSICAL THERAPY BC/BS	83,200.00	4.31
40215 - C/A PHYSICAL THERAPY BC/BS	(41,600.00)	(2.15)
40216 - PHYSICAL THERAPY OTHER INSURANCE	29,887.28	1.55
40217 - C/A PHYSICAL THERAPY OTHER INSURANCE	(17,065.13)	(0.88)
40220 - SPEECH THERAPY MANAGED CARE	48,562.72	2.52
40221 - C/A SPEECH THERAPY MANAGED CARE	(48,562.72)	(2.52)
40222 - SPEECH THERAPY UNITED HEALTH/OPTUM	28,860.00	1.49
40223 - C/A SPEECH THERAPY UNITED HEALTH/OPTUM	(22,685.00)	(1.17)
40224 - SPEECH THERAPY BC/BS	36,790.00	1.91
40225 - C/A SPEECH THERAPY BC/BS	(18,395.00)	(0.95)
40226 - SPEECH THERAPY OTHER INSURANCE	33,372.66	1.73
40227 - C/A SPEECH THERAPY OTHER INSURANCE	(19,055.59)	(0.99)
40301 - PHYSICAL THERAPY MEDICARE A	165,544.66	8.57
40302 - PHYSICAL THERAPY MEDICARE B	119,740.86	6.20
40303 - C/A PHYSICAL THERAPY MEDICARE A	(165,544.66)	(8.57)
40304 - C/A PHYSICAL THERAPY MEDICARE B	(75,558.89)	(3.91)
40305 - PHYSICAL THERAPY MEDICAID	5,799.12	0.30
40306 - C/A PHYSICAL THERAPY MEDICAID	(5,799.12)	(0.30)
40310 - OPTUM THERAPY CAPITATION	57,410.00	2.97
40322 - C/A MEDICARE B 2% PAYMENT REDUCTION	(3,983.38)	(0.21)
40331 - SPEECH THERAPY MEDICARE A	112,032.56	5.80
40332 - SPEECH THERAPY MEDICARE B	43,989.74	2.28
40333 - C/A SPEECH THERAPY MEDICARE A	(112,032.56)	(5.80)
40334 - C/A SPEECH THERAPY MEDICARE B	(24,363.10)	(1.26)
40336 - C/A HMO THERAPY B COPAY WITH MEDICAID BACKUP	(1,425.00)	(0.07)
40337 - LAB FEES MEDICARE A	9,426.28	0.49
40338 - C/A LAB FEES MEDICARE A	(9,426.28)	(0.49)
40430 - LAB FEES MANAGED CARE	18,401.48	0.95
40431 - C/A LAB FEES MANAGED CARE	(18,401.48)	(0.95)
40440 - X-RAY MANAGED CARE	15,262.62	0.79
40441 - C/A X-RAY MANAGED CARE	(15,262.62)	(0.79)
40590 - X-RAY MEDICARE A	8,257.34	0.43
40591 - C/A X-RAY MEDICARE A	(8,257.34)	(0.43)
42202 - NURSING SUPPLIES UNITED HEALTH/OPTUM	10,080.40	0.52
42203 - C/A NURSING SUPPLIES UNITED HEALTH/OPTUM	(10,080.40)	(0.52)
42216 - AMBULANCE OPTUM	960.00	0.05
42217 - C/A AMBULANCE OPTUM	(480.00)	(0.02)
Total Nursing Service Income	6,106,033.32	316.23

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2022

	YTD Total	Per Diem
Operating Expenses		
Pass Through Items		
54424 - INSURANCE ALL OTHER	194,745.00	10.09
54501 - PERSONAL PROPERTY TAX - TANGIBLE, VEHICLE AND FIRE	16,170.50	0.84
54511 - REAL ESTATE TAXES	39,595.52	2.05
55132 - GAS	20,476.69	1.06
55142 - ELECTRIC	40,919.24	2.12
Total Pass Through Items	311,906.95	16.15
Other Property Related Expenses		
54463 - INTEREST & FINANCE CHARGES	1,317.92	0.07
54473 - INTEREST - NOTES & L/P	4,746.94	0.25
54523 - INTEREST MORTGAGE	46,477.96	2.41
54543 - LEASE OF EQUIPMENT	8,711.55	0.45
54563 - DEPRECIATION BUILDING	49,068.00	2.54
54573 - DEPRECIATION BUILDING IMPROVEMENTS	35,838.00	1.86
54583 - DEPRECIATION EQUIPMENT	6,136.00	0.32
54663 - DEPRECIATION MOTOR VEHICLES	5,755.00	0.30
Total Other Property Related Expenses	158,051.37	8.19
Direct Labor Expenses		
54155 - MEDICAL DIRECTOR	14,400.00	0.75
54405 - PAYROLL TAXES - FICA	192,823.63	9.99
54415 - PAYROLL TAXES - RI DES	17,364.50	0.90
54416 - PAYROLL TAXES - FUTA	3,450.99	0.18
54425 - INSURANCE WORKER'S COMPENSATION	63,609.30	3.29
54715 - HEALTH INSURANCE	400,992.20	20.77
54735 - GROUP LIFE INSURANCE	1,461.00	0.08
54775 - OTHER EMPLOYEE BENEFITS	9,439.35	0.49
55214 - SALARIES - DIETARY	285,280.92	14.77
55315 - SALARIES - LAUNDRY	66,782.40	3.46
55425 - SALARIES - HOUSEKEEPING	105,540.88	5.47
55435 - SALARIES - MAINTENANCE	92,242.83	4.78
56074 - P/S CNA	341,549.65	17.69
56084 - P/S LPN	100,051.54	5.18
56094 - SALARIES - RN	559,704.36	28.99
56104 - SALARIES - LPN	216,310.93	11.20
56114 - SALARIES - CNA	641,963.21	33.25
56124 - P/S RN	122,296.64	6.33
56164 - SALARIES - RN OBRA	98,257.40	5.09
56215 - SALARIES - MED TECH	193,879.47	10.04
56254 - SALARIES - DNS	110,834.85	5.74
56325 - SALARIES - PHYSICAL THERAPY MEDICAID	2,899.56	0.15
56554 - P/S - OBRA	10,564.32	0.55
57154 - SALARIES - OCCUPATIONAL THERAPY MEDICAID	488.47	0.03

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2022

	YTD Total	Per Diem
57310 - SALARIES - SOC SERV CERT	151,679.53	7.86
57515 - SALARIES - ACTIVITIES	84,443.82	4.37
Total Direct Labor Expenses	3,888,311.75	201.37
Other Operating Expenses		
54105 - P/S - ADMINISTRATION	7,223.38	0.37
54109 - HEALTH INSURANCE - MANAGEMENT	65,956.98	3.42
54115 - SALARIES - ADMINISTRATOR	85,934.81	4.45
54215 - SALARIES - OTHER ADMINISTRATIVE	194,325.39	10.06
54255 - OFFICE SUPPLIES	17,719.34	0.92
54256 - BANK SERVICE CHARGE	802.28	0.04
54265 - COMMUNICATIONS	20,840.95	1.08
54275 - TRAVEL & MOTOR VEHICLES	1,155.72	0.06
54286 - EDUCATION AND SEMINARS IN STATE	2,040.00	0.11
54295 - ADVERTISING - HELP WANTED	2,026.13	0.10
54305 - LICENSES & DUES	5,387.41	0.28
54334 - HOME OFFICE LABOR AND ALL OTHER	168,228.00	8.71
54355 - COMPUTERIZED PAYROLL & DATA PROCESSESSING	107,111.66	5.55
54365 - ACCOUNTING AND AUDITING FEES	4,875.00	0.25
54495 - MISCELLANEOUS EXPENSE	405.88	0.02
54515 - SALES & USE TAX	23.76	0.00
55155 - WATER & SEWERAGE	31,249.24	1.62
55165 - MAINTENANCE SUPPLIES	8,596.51	0.45
55185 - P/S MAINTENANCE & REPAIRS	76,052.44	3.94
55195 - MAINTENANCE CONTRACTS	54,328.74	2.81
55196 - HAZARDOUS WASTE	650.00	0.03
55224 - RAW FOOD	150,991.98	7.82
55234 - DIETARY CONSULTANT	24,592.00	1.27
55294 - DIETARY SUPPLIES	24,045.00	1.25
55395 - LAUNDRY SUPPLIES	15,174.39	0.79
55495 - HOUSEKEEPING SUPPLIES	23,920.71	1.24
56240 - SUPPLEMENTS	13,209.17	0.68
56244 - NURSING SUPPLIES HOUSE	96,073.39	4.98
56294 - NURSING SUPPLIES MEDICAID	9.92	0.00
56334 - OXYGEN HOUSE	3,976.58	0.21
56434 - PAYROLL TAXES - MANAGEMENT	24,424.99	1.26
56444 - OTHER BENEFITS - MANAGEMENT	(2,356.00)	(0.12)
56454 - INSURANCE WORKER'S COMPENSATION - MANAGEMENT	583.01	0.03
57125 - PHARMACY CONSULTANT	6,523.72	0.34
57585 - ACTIVITIES SUPPLIES	3,984.43	0.21
57595 - ACTIVITIES OTHER	7,802.71	0.40
Total Other Operating Expenses	1,247,889.62	64.63
Provider Assessment		
50470 - PROVIDER ASSESSMENT - PRIVATE	121,347.44	6.28

	YTD Total	Per Diem
50471 - PROVIDER ASSESSMENT - MEDICARE	42,433.88	2.20
50472 - PROVIDER ASSESSMENT - MEDICAID	172,143.44	8.92
Total Provider Assessment	335,924.76	17.40
Non-Medicaid Expenses		
54266 - MOBILE/CELL PHONE	88.56	0.00
56274 - NURSING SUPPLIES MEDICARE A	913.19	0.05
56285 - NURSING SUPPLIES UNITED HEALTH/OPTUM	325.81	0.02
56287 - NURSING SUPPLIES MANAGED CARE	492.72	0.03
56301 - SALARIES - PHYSICAL THERAPY MANAGED CARE	39,625.57	2.05
56303 - SALARIES - PHYSICAL THERAPY OTHER INSURANCE	3,553.65	0.18
56306 - SALARIES - PHYSICAL THERAPY BC/BS	18,560.08	0.96
56307 - SALARIES - PHYSICAL THERAPY UNITED HEALTH/OPTUM B	15,569.31	0.81
56310 - SALARIES - PHYSICAL THERAPY HOUSE/INDIRECT	89,673.02	4.64
56315 - SALARIES - PHYSICAL THERAPY MEDICARE A	21,012.85	1.09
56316 - SALARIES - PHYSICAL THERAPY MEDICARE B	19,868.35	1.03
56354 - AMBULANCE MEDICAID	2,246.36	0.12
56375 - AMBULANCE MANAGED CARE	3,874.04	0.20
57116 - SALARIES - OCCUPATIONAL THERAPY HOUSE/INDIRECT	33,798.68	1.75
57117 - SALARIES - SPEECH THERAPY HOUSE/INDIRECT	33,631.55	1.74
57126 - SALARIES - OCCUPATIONAL THERAPY MEDICARE A	22,387.24	1.16
57127 - SALARIES - OCCUPATIONAL THERAPY MEDICARE B	10,701.47	0.55
57128 - SALARIES - OCCUPATIONAL THERAPY MANAGED CARE	42,203.84	2.19
57129 - SALARIES - OCCUPATIONAL THERAPY OTHER INSURANCE	2,811.49	0.15
57131 - SALARIES - OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM B	12,498.00	0.65
57132 - SALARIES - OCCUPATIONAL THERAPY BC/BS B	14,384.00	0.74
57156 - SALARIES - SPEECH THERAPY MEDICARE A	15,671.59	0.81
57157 - SALARIES - SPEECH THERAPY MEDICARE B	7,177.14	0.37
57158 - SALARIES - SPEECH THERAPY MANAGED CARE	24,281.40	1.26
57159 - SALARIES - SPEECH THERAPY OTHER INSURANCE	4,399.39	0.23
57161 - SALARIES - SPEECH THERAPY UNITED HEALTH/OPTUM	8,404.03	0.44
57162 - SALARIES - SPEECH THERAPY BC/BS	9,445.84	0.49
57175 - P/S SPEECH THERAPY MEDICARE A	340.00	0.02
57176 - P/S SPEECH THERAPY MEDICARE B	340.00	0.02
57192 - X-RAY MANAGE CARE	7,631.31	0.40
57193 - LAB FEES MANAGE CARE	9,200.74	0.48
57207 - LAB FEES MEDICARE A	4,713.14	0.24
57228 - PRESCRIPTION DRUGS MANAGED CARE	57,082.23	2.96
57229 - PRESCRIPTION DRUGS OTHER INSURANCE	155.29	0.01
57235 - PRESCRIPTION DRUGS MEDICARE	31,033.35	1.61
57237 - X-RAY MEDICARE A	4,149.96	0.21
57242 - AMBULANCE MEDICARE A	3,660.99	0.19
57252 - AMBULANCE PRIVATE & OTHER	313.34	0.02
57259 - PAYROLL TAXES - THERAPY	38,380.95	1.99
57260 - HEALTH INSURANCE - THERAPY	24,669.34	1.28

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2022

	YTD Total	Per Diem
57261 - OTHER BENEFITS - THERAPY	138.00	0.01
57262 - INSURANCE WORKER'S COMPENSATION - THERAPY	10,259.69	0.53
Total Non-Medicaid Expenses	649,667.50	33.65
Non-reimbursable Expenses		
51499 - BAD DEBT EXPENSE	11,499.79	0.60
54125 - SALARIES - ADMINISTRATOR NON-REIMBURSABLE	34,542.00	1.79
54243 - ADMINISTRATOR TAXES & BENEFITS NON-REIMBURSABLE	2,740.00	0.14
54260 - RX-EKIT & OTHER	20.43	0.00
54299 - ADVERTISING & PR	5,770.20	0.30
54339 - HOME OFFICE NON-REIMBURSABLE	260,118.00	13.47
54417 - LEGAL NON-REIMBURSABLE A/R AND OTHER	15,912.58	0.82
54499 - PENALTIES	7,900.75	0.41
54760 - MINOR MOVABLES	4,331.17	0.22
54765 - PRIOR YEAR EXPENSE	1,855.72	0.10
55175 - BUILDING IMPROVEMENTS, REPLACEMENTS AND SUPPLIES	45,109.24	2.34
57236 - PRESCRIPTION DRUGS MEDICAID	7,590.48	0.39
57700 - SUPPLIES AND EXPENSES RELATED TO COVID-19	3,913.95	0.20
Total Non-reimbursable Expenses	401,304.31	20.78
Total Operating Expenses	6,993,056.26	362.17
Net Income from Operations	(887,022.94)	(45.94)

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2022

	YTD Total	Per Diem
Add: Other Income		
40600 - GUEST AND EMPLOYEE MEALS	80.00	0.00
41000 - INTEREST INCOME	320.78	0.02
41400 - MISCELLANEOUS INCOME	22,532.06	1.17
41500 - CARES ACT FUNDING	187,063.00	9.69
Total Other Income	209,995.84	10.88
Add		
40070 - RETRO INCOME - PRIOR YEAR	6,900.59	0.36
40072 - STATE RUG ISSUE ADJUSTMENTS	6,288.73	0.33
Total - Other Adjustments:	13,189.32	0.68
Less:		
54439 - CORPORATE TAXES STATE OF RI	1,800.00	0.09
Total Less	1,800.00	0.09
Net Income	(665,637.78)	(34.47)

198 WATERMAN AVENUE LLC

Balance Sheet

EASTGATE NURSING & REHABILITATION CENTER Month Ending 12/31/2022

Assets	
Current Assets	
10011 - CASH - CHECKING BANK RI GENERAL ACCOUNT - EG	220,934.90
10051 - CASH - CHECKING BANK RI DEBIT CARD ACCOUNT - EG	477.87
10071 - CASH - MONEY MARKET BANK RI - EG	42,769.15
11016 - CASH - PETTY CASH	200.00
11210 - ACCOUNTS RECEIVABLE	901,085.60
11216 - A/R - MEDICAID PENDING	55,931.97
11220 - A/R - MEDICAID & NHP STATE	(10,352.59)
11231 - A/R - ALL OTHER INSURANCE	(1,289.00)
11240 - A/R - OTHER	7,905.93
11250 - A/R - ALLOWANCE FOR DOUBTFUL ACCOUNTS	(100,000.00)
11330 - PREPAID INSURANCE	15,008.03
11340 - PREPAID EXPENSES & DEPOSITS	7,196.05
Total Current Assets	1,139,867.91
Fixed Assets	
Fixed Assets	
11410 - LAND	163,500.00
11420 - BUILDING	1,471,796.00
11430 - BUILDING IMPROVEMENTS	358,391.05
11440 - MAJOR MOVABLES	558,830.35
11460 - MOTOR VEHICLES	46,075.33
Total Fixed Assets	2,598,592.73
Accumulated Depreciation	
11520 - ACCUM DEPRECIATION - BUILDING	507,025.00
11530 - ACCUM DEPRECIATION - BUILDING IMPROVEMENTS	188,129.00
11540 - ACCUM DEPRECIATION - MAJOR MOVABLES	543,492.00
11560 - ACCUM DEPRECIATION - MOTOR VEHICLES	46,075.00
Total Accumulated Depreciation	1,284,721.00
Total Net Fixed Assets	1,313,871.73
Other Assets	
11350 - DEFERRED FEES	28,935.00
11740 - ACCUM AMORTIZATION - DEFERRED FEES	(28,935.00)
Total Other Assets	0.00
Total Assets	2,453,739.64

198 WATERMAN AVENUE LLC

Balance Sheet

EASTGATE NURSING & REHABILITATION CENTER Month Ending 12/31/2022

Liabilities and Equity	
Liabilities	
Current Liabilities	
20000 - ACCOUNTS PAYABLE	3,900,087.10
22180 - ACCRUED SALARIES & WAGES PAYABLE	71,227.11
22181 - ACCRUED SICK & VACATION	90,809.00
22200 - ACCRUED FICA (EMPLOYER)	5,289.67
22240 - ACCRUED RI DES	792.05
22241 - ACCRUED FUTA	414.82
22245 - N/T EMPLOYEE MEDICAL REIMB DEDUCTION	926.69
22247 - N/T EMPLOYEE MANAGE FEE DEDUCTION	0.50
22259 - ACCRUED PROVIDER ASSESSMENT	84,780.66
22260 - ACCRUED EXPENSES	310,537.00
22310 - ACCRUED TAXES	13,931.30
22312 - ACCRUED LEGAL EXPENSES	24,974.43
Total Current Liabilities	4,503,770.33
Long Term Liabilities	
22030 - N/P - D. M. RYAN	141,215.29
22100 - L/P - HCLTD	103,000.00
22501 - MORTGAGE PAYABLE BANK RI	1,268,424.38
22515 - NOTE PAYABLE BANK RI 10/2018 VAN & NURSE CALL SYSTEM - EG	13,911.67
22517 - CAPITAL LEASE KONICA COPIER - RHC,EHC,MHC,SK,HH&EG	5,458.89
Total Long Term Liabilities	1,532,010.23
Total Liabilities	6,035,780.56
Equity	
Retained Earnings	(4,000,040.92)
Partner's Equity	418,000.00
Total Equity	(3,582,040.92)
Total Liabilities and Equity	2,453,739.64

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2023

	YTD Total	Per Diem
Income		
Income from Operations		
Income from Nursing Services		
40010 - PRIVATE PAY	953,025.00	43.97
40011 - OTHER LIKE MEDICAID	684,175.00	31.57
40015 - MANAGED CARE	647,625.00	29.88
40017 - OPTUM SKILLED CAPITATION	85,925.00	3.96
40019 - MEDICAID PENDING	156,100.00	7.20
40020 - FEDERAL MEDICARE SKILLED	603,750.00	27.86
40030 - MEDICAID	4,921,000.00	227.06
40032 - HOSPICE	170,800.00	7.88
40033 - C/A HOSPICE	(52,965.02)	(2.44)
40034 - C/A PRIVATE	384.45	0.02
40035 - C/A MEDICAID	(1,334,222.42)	(61.56)
40037 - C/A MANAGED CARE	60,219.86	2.78
40038 - C/A MEDICARE	454,893.66	20.99
40039 - C/A OTHER LIKE MEDICAID	(208,087.00)	(9.60)
40041 - C/A MEDICAID PENDING	(40,312.34)	(1.86)
40044 - C/A MEDICARE A 2% PAYMENT REDUCTION	(18,108.89)	(0.84)
40060 - C/A MANAGED CARE COPAY WITH MEDICIAD BACKUP	(1,834.02)	(0.08)
40069 - RETRO INCOME - CURRENT YEAR	(1,151.57)	(0.05)
40088 - PRESCRIPTION DRUGS OTHER INSURANCE	459.54	0.02
40089 - C/A PRESCRIPTION DRUGS OTHER INSURANCE	(459.54)	(0.02)
40102 - PRESCRIPTION DRUGS MANAGED CARE	93,573.60	4.32
40103 - C/A PRESCRIPTION DRUGS MANAGED CARE	(93,573.60)	(4.32)
40114 - PRESCRIPTION DRUGS MEDICAID	4,747.68	0.22
40117 - PRESCRIPTION DRUGS MEDICARE	139,158.76	6.42
40118 - C/A PRESCRIPTION DRUGS MEDICARE	(139,158.76)	(6.42)
40119 - C/A PRESCRIPTION DRUGS MEDICAID	(4,747.68)	(0.22)
40121 - NURSING SUPPLIES MEDICARE A	558.46	0.03
40123 - C/A NURSING SUPPLIES MEDICARE A	(558.46)	(0.03)
40125 - NURSING SUPPLIES MEDICAID	3,039.98	0.14
40126 - C/A NURSING SUPPLIES MEDICAID	(3,039.98)	(0.14)
40140 - OCCUPATIONAL THERAPY PRIVATE	518.32	0.02
40141 - OCCUPATIONAL THERAPY MEDICARE A	266,039.70	12.28
40142 - OCCUPATIONAL THERAPY MEDICARE B	87,244.06	4.03
40143 - C/A OCCUPATIONAL THERAPY MEDICARE A	(266,039.70)	(12.28)
40144 - C/A OCCUPATIONAL THERAPY MEDICARE B	(56,762.84)	(2.62)
40145 - OCCUPATIONAL THERAPY MEDICAID	3,206.16	0.15
40146 - C/A OCCUPATIONAL THERAPY MEDICAID	(3,206.16)	(0.15)
40200 - OCCUPATIONAL THERAPY MANAGED CARE	72,633.16	3.35
40201 - C/A OCCUPATIONAL THERAPY MANAGED CARE	(72,633.16)	(3.35)
40202 - OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM	133,730.00	6.17
40203 - C/A OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM	(117,285.00)	(5.41)
40204 - OCCUPATIONAL THERAPY BC/BS	123,760.00	5.71

	YTD Total	Per Diem
40205 - C/A OCCUPATIONAL THERAPY BC/BS	(61,945.00)	(2.86)
40206 - OCCUPATIONAL THERAPY OTHER INSURANCE	77,812.42	3.59
40207 - C/A OCCUPATIONAL THERAPY OTHER INSURANCE	(44,431.34)	(2.05)
40210 - PHYSICAL THERAPY MANAGED CARE	71,992.76	3.32
40211 - C/A PHYSICAL THERAPY MANAGED CARE	(71,992.76)	(3.32)
40212 - PHYSICAL THERAPY UNITED HEALTH/OPTUM	120,400.00	5.56
40213 - C/A PHYSICAL THERAPY UNITED HEALTH/OPTUM	(103,305.00)	(4.77)
40214 - PHYSICAL THERAPY BC/BS	155,090.00	7.16
40215 - C/A PHYSICAL THERAPY BC/BS	(78,650.00)	(3.63)
40216 - PHYSICAL THERAPY OTHER INSURANCE	61,552.86	2.84
40217 - C/A PHYSICAL THERAPY OTHER INSURANCE	(35,148.01)	(1.62)
40220 - SPEECH THERAPY MANAGED CARE	32,069.80	1.48
40221 - C/A SPEECH THERAPY MANAGED CARE	(32,069.80)	(1.48)
40222 - SPEECH THERAPY UNITED HEALTH/OPTUM	38,970.00	1.80
40223 - C/A SPEECH THERAPY UNITED HEALTH/OPTUM	(33,835.00)	(1.56)
40224 - SPEECH THERAPY BC/BS	55,380.00	2.56
40225 - C/A SPEECH THERAPY BC/BS	(27,690.00)	(1.28)
40226 - SPEECH THERAPY OTHER INSURANCE	27,618.60	1.27
40227 - C/A SPEECH THERAPY OTHER INSURANCE	(15,770.31)	(0.73)
40300 - PHYSICAL THERAPY PRIVATE	511.60	0.02
40301 - PHYSICAL THERAPY MEDICARE A	258,454.38	11.93
40302 - PHYSICAL THERAPY MEDICARE B	117,418.80	5.42
40303 - C/A PHYSICAL THERAPY MEDICARE A	(258,454.38)	(11.93)
40304 - C/A PHYSICAL THERAPY MEDICARE B	(75,701.08)	(3.49)
40305 - PHYSICAL THERAPY MEDICAID	3,164.44	0.15
40306 - C/A PHYSICAL THERAPY MEDICAID	(3,164.44)	(0.15)
40310 - OPTUM THERAPY CAPITATION	61,250.00	2.83
40322 - C/A MEDICARE B 2% PAYMENT REDUCTION	(6,079.35)	(0.28)
40328 - SPEECH THERAPY MEDICAID	859.60	0.04
40329 - C/A SPEECH THERAPY MEDICAID	(859.60)	(0.04)
40331 - SPEECH THERAPY MEDICARE A	135,762.48	6.26
40332 - SPEECH THERAPY MEDICARE B	36,424.26	1.68
40333 - C/A SPEECH THERAPY MEDICARE A	(135,762.48)	(6.26)
40334 - C/A SPEECH THERAPY MEDICARE B	(21,199.76)	(0.98)
40336 - C/A HMO THERAPY B COPAY WITH MEDICAID BACKUP	(2,469.92)	(0.11)
40337 - LAB FEES MEDICARE A	20,864.66	0.96
40338 - C/A LAB FEES MEDICARE A	(20,864.66)	(0.96)
40430 - LAB FEES MANAGED CARE	19,423.76	0.90
40431 - C/A LAB FEES MANAGED CARE	(19,423.76)	(0.90)
40440 - X-RAY MANAGED CARE	11,336.26	0.52
40441 - C/A X-RAY MANAGED CARE	(11,336.26)	(0.52)
40590 - X-RAY MEDICARE A	15,396.62	0.71
40591 - C/A X-RAY MEDICARE A	(15,396.62)	(0.71)
42202 - NURSING SUPPLIES UNITED HEALTH/OPTUM	15,171.64	0.70
42203 - C/A NURSING SUPPLIES UNITED HEALTH/OPTUM	(15,171.64)	(0.70)

	YTD Total	Per Diem
42206 - NURSING SUPPLIES OTHER INSURANCE	259.88	0.01
42207 - C/A NURSING SUPPLIES OTHER INSURANCE	(259.88)	(0.01)
Total Nursing Service Income	7,498,625.02	345.99

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2023

	YTD Total	Per Diem
Operating Expenses		
Pass Through Items		
54424 - INSURANCE ALL OTHER	188,879.00	8.71
54501 - PERSONAL PROPERTY TAX - TANGIBLE, VEHICLE AND FIRE	17,614.96	0.81
54511 - REAL ESTATE TAXES	36,866.44	1.70
55132 - GAS	26,856.88	1.24
55142 - ELECTRIC	34,112.39	1.57
Total Pass Through Items	304,329.67	14.04
Other Property Related Expenses		
54463 - INTEREST & FINANCE CHARGES	1,974.69	0.09
54473 - INTEREST - NOTES & L/P	5,111.92	0.24
54523 - INTEREST MORTGAGE	43,694.92	2.02
54533 - RENT	1,993.41	0.09
54543 - LEASE OF EQUIPMENT	8,421.51	0.39
54563 - DEPRECIATION BUILDING	49,068.00	2.26
54573 - DEPRECIATION BUILDING IMPROVEMENTS	33,077.00	1.53
54583 - DEPRECIATION EQUIPMENT	7,470.00	0.34
Total Other Property Related Expenses	150,811.45	6.96
Direct Labor Expenses		
54155 - MEDICAL DIRECTOR	14,400.00	0.66
54405 - PAYROLL TAXES - FICA	216,214.53	9.98
54415 - PAYROLL TAXES - RI DES	19,148.70	0.88
54416 - PAYROLL TAXES - FUTA	3,575.82	0.16
54425 - INSURANCE WORKER'S COMPENSATION	70,606.54	3.26
54445 - QUALITY ASSURANCE	2,780.00	0.13
54715 - HEALTH INSURANCE	367,683.48	16.97
54735 - GROUP LIFE INSURANCE	1,555.50	0.07
54775 - OTHER EMPLOYEE BENEFITS	12,492.83	0.58
55214 - SALARIES - DIETARY	310,708.08	14.34
55315 - SALARIES - LAUNDRY	67,275.05	3.10
55425 - SALARIES - HOUSEKEEPING	133,814.81	6.17
55435 - SALARIES - MAINTENANCE	95,448.06	4.40
56074 - P/S CNA	481,716.03	22.23
56084 - P/S LPN	30,835.47	1.42
56094 - SALARIES - RN	529,806.92	24.45
56104 - SALARIES - LPN	322,510.34	14.88
56114 - SALARIES - CNA	817,462.80	37.72
56124 - P/S RN	74,680.65	3.45
56164 - SALARIES - RN OBRA	109,083.59	5.03
56215 - SALARIES - MED TECH	166,347.27	7.68
56254 - SALARIES - DNS	114,972.00	5.30
56325 - SALARIES - PHYSICAL THERAPY MEDICAID	1,582.23	0.07
56554 - P/S - OBRA	7,795.15	0.36

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2023

	YTD Total	Per Diem
57154 - SALARIES - OCCUPATIONAL THERAPY MEDICAID	1,603.06	0.07
57184 - SALARIES - SPEECH THERAPY MEDICAID	429.80	0.02
57310 - SALARIES - SOC SERV CERT	163,120.09	7.53
57515 - SALARIES - ACTIVITIES	96,492.80	4.45
Total Direct Labor Expenses	4,234,141.60	195.36
Other Operating Expenses		
54105 - P/S - ADMINISTRATION	8,509.39	0.39
54109 - HEALTH INSURANCE - MANAGEMENT	88,145.50	4.07
54115 - SALARIES - ADMINISTRATOR	85,695.06	3.95
54215 - SALARIES - OTHER ADMINISTRATIVE	207,256.28	9.56
54255 - OFFICE SUPPLIES	16,847.53	0.78
54256 - BANK SERVICE CHARGE	944.50	0.04
54265 - COMMUNICATIONS	15,651.70	0.72
54275 - TRAVEL & MOTOR VEHICLES	1,059.84	0.05
54286 - EDUCATION AND SEMINARS IN STATE	1,335.00	0.06
54295 - ADVERTISING - HELP WANTED	3,997.41	0.18
54305 - LICENSES & DUES	5,683.79	0.26
54334 - HOME OFFICE LABOR AND ALL OTHER	168,228.00	7.76
54355 - COMPUTERIZED PAYROLL & DATA PROCESSESSING	119,302.22	5.50
54365 - ACCOUNTING AND AUDITING FEES	5,725.00	0.26
54495 - MISCELLANEOUS EXPENSE	87.22	0.00
54515 - SALES & USE TAX	25.66	0.00
55155 - WATER & SEWERAGE	38,472.65	1.78
55165 - MAINTENANCE SUPPLIES	11,067.92	0.51
55185 - P/S MAINTENANCE & REPAIRS	37,263.68	1.72
55195 - MAINTENANCE CONTRACTS	59,990.94	2.77
55196 - HAZARDOUS WASTE	650.00	0.03
55224 - RAW FOOD	178,114.94	8.22
55234 - DIETARY CONSULTANT	22,869.50	1.06
55294 - DIETARY SUPPLIES	23,373.36	1.08
55325 - LINEN & BEDDING	2,370.07	0.11
55395 - LAUNDRY SUPPLIES	16,386.72	0.76
55495 - HOUSEKEEPING SUPPLIES	30,086.73	1.39
56240 - SUPPLEMENTS	14,926.79	0.69
56244 - NURSING SUPPLIES HOUSE	107,930.40	4.98
56294 - NURSING SUPPLIES MEDICAID	1,519.99	0.07
56334 - OXYGEN HOUSE	4,781.57	0.22
56434 - PAYROLL TAXES - MANAGEMENT	25,958.21	1.20
56444 - OTHER BENEFITS - MANAGEMENT	(2,854.00)	(0.13)
56454 - INSURANCE WORKER'S COMPENSATION - MANAGEMENT	618.05	0.03
57125 - PHARMACY CONSULTANT	6,809.00	0.31
57585 - ACTIVITIES SUPPLIES	4,753.33	0.22
57595 - ACTIVITIES OTHER	9,850.38	0.45
Total Other Operating Expenses	1,323,434.33	61.06

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2023

	YTD Total	Per Diem
Provider Assessment		
50470 - PROVIDER ASSESSMENT - PRIVATE	145,854.25	6.73
50471 - PROVIDER ASSESSMENT - MEDICARE	61,703.34	2.85
50472 - PROVIDER ASSESSMENT - MEDICAID	197,272.77	9.10
Total Provider Assessment	404,830.36	18.68
Non-Medicaid Expenses		
56264 - NURSING SUPPLIES PRIVATE	162.05	0.01
56274 - NURSING SUPPLIES MEDICARE A	1,017.53	0.05
56285 - NURSING SUPPLIES UNITED HEALTH/OPTUM	475.60	0.02
56286 - NURSING SUPPLIES OTHER INSURANCE	129.94	0.01
56287 - NURSING SUPPLIES MANAGED CARE	755.42	0.03
56301 - SALARIES - PHYSICAL THERAPY MANAGED CARE	35,996.39	1.66
56303 - SALARIES - PHYSICAL THERAPY OTHER INSURANCE	8,892.41	0.41
56305 - SALARIES - PHYSICAL THERAPY PRIVATE	255.80	0.01
56306 - SALARIES - PHYSICAL THERAPY BC/BS	31,364.06	1.45
56307 - SALARIES - PHYSICAL THERAPY UNITED HEALTH/OPTUM B	23,812.30	1.10
56310 - SALARIES - PHYSICAL THERAPY HOUSE/INDIRECT	105,984.62	4.89
56315 - SALARIES - PHYSICAL THERAPY MEDICARE A	33,657.62	1.55
56316 - SALARIES - PHYSICAL THERAPY MEDICARE B	17,260.16	0.80
56354 - AMBULANCE MEDICAID	1,048.20	0.05
56375 - AMBULANCE MANAGED CARE	2,386.75	0.11
57116 - SALARIES - OCCUPATIONAL THERAPY HOUSE/INDIRECT	43,636.21	2.01
57117 - SALARIES - SPEECH THERAPY HOUSE/INDIRECT	24,207.86	1.12
57126 - SALARIES - OCCUPATIONAL THERAPY MEDICARE A	34,408.34	1.59
57127 - SALARIES - OCCUPATIONAL THERAPY MEDICARE B	12,231.30	0.56
57128 - SALARIES - OCCUPATIONAL THERAPY MANAGED CARE	36,316.56	1.68
57129 - SALARIES - OCCUPATIONAL THERAPY OTHER INSURANCE	10,933.59	0.50
57130 - SALARIES - OCCUPATIONAL THERAPY PRIVATE	259.15	0.01
57131 - SALARIES - OCCUPATIONAL THERAPY UNITED HEALTH/OPTUM B	26,559.08	1.23
57132 - SALARIES - OCCUPATIONAL THERAPY BC/BS B	25,221.07	1.16
57156 - SALARIES - SPEECH THERAPY MEDICARE A	18,429.02	0.85
57157 - SALARIES - SPEECH THERAPY MEDICARE B	6,289.51	0.29
57158 - SALARIES - SPEECH THERAPY MANAGED CARE	16,034.90	0.74
57159 - SALARIES - SPEECH THERAPY OTHER INSURANCE	3,898.03	0.18
57161 - SALARIES - SPEECH THERAPY UNITED HEALTH/OPTUM	8,554.92	0.39
57162 - SALARIES - SPEECH THERAPY BC/BS	12,926.16	0.60
57175 - P/S SPEECH THERAPY MEDICARE A	345.00	0.02
57192 - X-RAY MANAGE CARE	5,668.13	0.26
57193 - LAB FEES MANAGE CARE	9,711.88	0.45
57207 - LAB FEES MEDICARE A	10,432.33	0.48
57228 - PRESCRIPTION DRUGS MANAGED CARE	46,713.77	2.16
57229 - PRESCRIPTION DRUGS OTHER INSURANCE	223.69	0.01
57235 - PRESCRIPTION DRUGS MEDICARE	69,572.98	3.21

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2023

	YTD Total	Per Diem
57237 - X-RAY MEDICARE A	7,698.31	0.36
57242 - AMBULANCE MEDICARE A	3,904.75	0.18
57251 - OTC DRUGS MEDICARE A/MANANGED CARE	1,635.87	0.08
57252 - AMBULANCE PRIVATE & OTHER	962.68	0.04
57259 - PAYROLL TAXES - THERAPY	43,826.96	2.02
57260 - HEALTH INSURANCE - THERAPY	70,646.61	3.26
57261 - OTHER BENEFITS - THERAPY	258.00	0.01
57262 - INSURANCE WORKER'S COMPENSATION - THERAPY	12,245.69	0.57
Total Non-Medicaid Expenses	826,951.20	38.16
Non-reimbursable Expenses		
51499 - BAD DEBT EXPENSE	182,401.05	8.42
54125 - SALARIES - ADMINISTRATOR NON-REIMBURSABLE	40,770.00	1.88
54243 - ADMINISTRATOR TAXES & BENEFITS NON-REIMBURSABLE	3,229.00	0.15
54260 - RX-EKIT & OTHER	187.01	0.01
54289 - BUSINESS MEETINGS	1,136.07	0.05
54299 - ADVERTISING & PR	7,671.47	0.35
54339 - HOME OFFICE NON-REIMBURSABLE	360,334.00	16.63
54509 - DONATIONS (CHARITABLE)	150.00	0.01
54760 - MINOR MOVABLES	25,207.09	1.16
54765 - PRIOR YEAR EXPENSE	928.10	0.04
55175 - BUILDING IMPROVEMENTS, REPLACEMENTS AND SUPPLIES	123,781.65	5.71
57236 - PRESCRIPTION DRUGS MEDICAID	2,425.81	0.11
Total Non-reimbursable Expenses	748,221.25	34.52
Total Operating Expenses	7,992,719.86	368.79
Net Income from Operations	(494,094.84)	(22.80)

198 WATERMAN AVENUE LLC
Statement of Income
Year To Date 12/31/2023

	YTD Total	Per Diem
Add: Other Income		
40600 - GUEST AND EMPLOYEE MEALS	206.00	0.01
41000 - INTEREST INCOME	2,559.06	0.12
41400 - MISCELLANEOUS INCOME	422,249.64	19.48
41550 - State of RI SFRF (ARPA) Grant Income	273,070.60	12.60
Total Other Income	698,085.30	32.21
Add		
40070 - RETRO INCOME - PRIOR YEAR	(15,122.74)	(0.70)
40071 - EOHHS COC SETTLEMENT THROUGH 10/31/2018	72,237.06	3.33
40072 - STATE RUG ISSUE ADJUSTMENTS	(4,852.45)	(0.22)
Total - Other Adjustments:	52,261.87	2.41
Less:		
54439 - CORPORATE TAXES STATE OF RI	(1,000.00)	(0.05)
Total Less	(1,000.00)	(0.05)
Net Income	257,252.33	11.87

198 WATERMAN AVENUE LLC

Balance Sheet

EASTGATE NURSING & REHABILITATION CENTER Month Ending 12/31/2023

Assets	
Current Assets	
10011 - CASH - CHECKING BANK RI GENERAL ACCOUNT - EG	295,552.61
10051 - CASH - CHECKING BANK RI DEBIT CARD ACCOUNT - EG	1,525.93
10071 - CASH - MONEY MARKET BANK RI - EG	128,775.37
11016 - CASH - PETTY CASH	200.00
11210 - ACCOUNTS RECEIVABLE	808,449.05
11216 - A/R - MEDICAID PENDING	116,047.66
11220 - A/R - MEDICAID & NHP STATE	(10,352.59)
11231 - A/R - ALL OTHER INSURANCE	(2,220.00)
11240 - A/R - OTHER	405,399.45
11250 - A/R - ALLOWANCE FOR DOUBTFUL ACCOUNTS	(100,000.00)
11330 - PREPAID INSURANCE	2,841.00
11340 - PREPAID EXPENSES & DEPOSITS	8,832.20
Total Current Assets	1,655,050.68
Fixed Assets	
Fixed Assets	
11410 - LAND	163,500.00
11420 - BUILDING	1,471,796.00
11430 - BUILDING IMPROVEMENTS	358,391.05
11440 - MAJOR MOVABLES	572,171.42
11460 - MOTOR VEHICLES	46,075.33
11480 - NEW CONSTRUCTION	27,631.51
Total Fixed Assets	2,639,565.31
Accumulated Depreciation	
11520 - ACCUM DEPRECIATION - BUILDING	556,093.00
11530 - ACCUM DEPRECIATION - BUILDING IMPROVEMENTS	221,206.00
11540 - ACCUM DEPRECIATION - MAJOR MOVABLES	550,962.00
11560 - ACCUM DEPRECIATION - MOTOR VEHICLES	46,075.00
Total Accumulated Depreciation	1,374,336.00
Total Net Fixed Assets	1,265,229.31
Other Assets	
11350 - DEFERRED FEES	28,935.00
11740 - ACCUM AMORTIZATION - DEFERRED FEES	(28,935.00)
Total Other Assets	0.00
Total Assets	2,920,279.99

198 WATERMAN AVENUE LLC

Balance Sheet

EASTGATE NURSING & REHABILITATION CENTER Month Ending 12/31/2023

Liabilities and Equity	
Liabilities	
Current Liabilities	
20000 - ACCOUNTS PAYABLE	4,366,688.48
22180 - ACCRUED SALARIES & WAGES PAYABLE	83,383.83
22181 - ACCRUED SICK & VACATION	90,809.00
22200 - ACCRUED FICA (EMPLOYER)	6,179.95
22240 - ACCRUED RI DES	844.67
22241 - ACCRUED FUTA	484.07
22258 - PENSION PLAN PAYABLE	2,003.06
22259 - ACCRUED PROVIDER ASSESSMENT	86,312.37
22260 - ACCRUED EXPENSES	142,400.00
22310 - ACCRUED TAXES	13,610.15
22312 - ACCRUED LEGAL EXPENSES	17,050.50
Total Current Liabilities	4,809,766.08
Long Term Liabilities	
22030 - N/P - D. M. RYAN	141,215.29
22100 - L/P - HCLTD	103,000.00
22501 - MORTGAGE PAYABLE BANK RI	1,188,790.98
22517 - CAPITAL LEASE KONICA COPIER - RHC,EHC,MHC,SK,HH&EG	2,296.23
Total Long Term Liabilities	1,435,302.50
Total Liabilities	6,245,068.58
Equity	
Retained Earnings	(3,742,788.59)
Partner's Equity	418,000.00
Total Equity	(3,324,788.59)
Total Liabilities and Equity	2,920,279.99

Tab H



June 27, 2024

RE: Michael Bigney Portfolio

Dear Michael,

Please accept this letter as confirmation that the value of your portfolio managed by Barry Investment Advisors exceeds $7.5 million as of today's date.

If you have any questions, please contact us at (508) 992-8600.

Sincerely,

Katherine Taylor
Vice President, Director of Operations

128 Union Street, Suite 507
New Bedford, MA 02740

Date:_____

198 Waterman Avenue LLC
d/b/a Eastgate Nursing & Rehabilitation Center
588 Pawtucket Avenue
Pawtucket, Rhode Island 02860

Re: Loan Commitment Letter

This Loan Commitment (the "Agreement") is entered into as of the __ day of ___, between Health Concepts, Ltd. (the "Lender") and 198 Waterman Avenue LLC (the "Borrower"). This Agreement establishes a line of credit from Lender to Borrower to provide Borrower sufficient liquid funds to operate the nursing facility, commonly known as Eastgate Nursing & Rehabilitation Center (the "Facility"), at the licensed capacity for a minimum of Thirty (30) days.

ARTICLE I: THE LOAN

1.1 Borrowing and Use. The Lender agrees to loan to the Borrower, and the Borrower agrees to borrow from the Lender, in accordance with the terms of this Agreement, on a non-restoring line of credit basis, the principal sum of tip to Six Hundred Twenty Five Thousand Dollars ($625,000.00) (the "Loan"), and the Borrower shall repay the Loan pursuant to this Agreement and the note. The proceeds of the Loan shall be used by the Borrower for the operation of the Facility.

1.2 Evidence of Indebtedness. The Loan shall be evidenced by a $625,000.00 Non-Restoring Line of Credit Promissory Note in the form approved by Lender and which shall be executed and delivered by the Borrower prior to any draw pursuant to this commitment (the "Note").

1.3 Interest and Service Fees. The outstanding principal amount of the Loan shall bear interest at a rate per annum equal to Four and One-Half (4.50) Percent.

1.4 Borrowing Fees. The Borrower shall be responsible for all its own out of pocket closing costs (i.e., Borrower's counsel fees, financial advisor fees and other closing costs).

1 .5 Payments. Borrower shall only be required to make payments in accordance with the terms hereof and in the Note; however, the Lender and Borrower agree that repayment is subject to and to the extent of cash flow availability from Facility operations of Borrower. The Loan may be prepaid by the Borrower at any time without premium or penalty.

1.6 Loan Disbursement. Subject to Paragraph 1.8 below and the conditions stated in Article IV, the Borrower may access and borrow and repay without penalty or premium from the date hereof such sums of the Loan as necessary to operate the Facility at licensed capacity for a minimum of Thirty (30) days (such advances, made from time to time hereafter, being hereinafter collectively referred to as the "Loan Proceeds"), which sums, as documented in the Lender's records, in the aggregate outstanding amount shall not exceed at any time Six Hundred Twenty Five Thousand Dollars ($625,000.00).

1.8 Borrowing Procedure. Upon request by telephone from a duly authorized manager of the Borrower, representing that the Borrower does not have sufficient cash flow available to operate the Facility for a minimum of Thirty (30) days and the Borrower desires to borrow money pursuant to the Loan set forth in this Agreement, the Lender will lend and forthwith credit to the Facility's operating account, which is to be provided to Lender pursuant to Article IV, such an advance of the loan proceeds as shall be sufficient to provide sufficient cash flow to operate the Facility for a minimum of Thirty (30) days, which shall be in the minimum disbursement amount of Ten Thousand Dollars ($10,000.00), or the unadvanced balance of the maximum amount of the Loan, subject to the terms and provisions of this Agreement. The Borrower shall forward to the Lender by facsimile or electronic mail on the same day as the telephone request a written confirmation of such request.

ARTICLE II: PLEDGE AND DEFAULT

2.1 Security. The Note referenced herein upon execution shall be a valid and binding obligation of the Borrower payable from funds of the Borrower. The Borrower's obligation to make payments under the Note is subject to and to the extent of available cash flow from Facility operations.

2.2 Waiver. No delay or omission on the part of the Lender in exercising any right under the Note or hereunder shall operate as a waiver of such right or of any other right under the Note or hereunder. A waiver on any one occasion shall not be construed as a bar to or waiver of any right or remedy on any future occasion.

2.3 Collection and Enforcement Costs. The Borrower will pay all reasonable costs of collection, reasonable legal expenses, and reasonable attorneys fees incurred or paid by the Lender in collecting or enforcing the Note or this Agreement on default, except to the extent that a court of competent jurisdiction has determined that such costs, expenses and fees were not reasonably incurred.

2.4 Late Payments. If any payment due from the Borrower to the Lender shall not be paid in full when and as due, additional interest charges shall be made as a late payment fee which will be charged to the Borrower and due to the Lender. The late payment fee shall be five percent (5%) of the amount of the payment or portion thereof which is late and will be charged every fifteen days until the payment in question is received, or such lesser amount as shall be the maximum additional interest permitted by state law. The late payment fee shall not constitute a penalty or liquidated damages but shall constitute interest due on the Note and is intended to compensate the Lender for costs and expenses incurred by it on account of each late payment, including but not limited to interest costs and accounting expenses.

ARTICLE III: REPRESENTATIONS AND WARRANTIES

3.1 Representations and Warranties. The Borrower, as consideration for the making of the Loan by the Lender, represents and warrants as follows:

(a) it is a limited liability company duly organized and existing under the laws of the State of Rhode Island;
(b) it is authorized to enter into this Agreement, to make the Loan and to issue the Note;

(c) the Loan, the Note and this Agreement have each been duly authorized by the Members of the Borrower and, when delivered at or prior to the time the Loan is made, will constitute valid and binding obligations, enforceable in accordance with their terms;

(d) there is no litigation or other actions, events, conditions, or proceedings, pending or threatened, against or affecting the Borrower, in any court or before any government body that, if decided adversely to the Borrower, would materially adversely affect the properties, activities, financial condition or economic outlook of the Borrower or its ability to repay the Loan;

(e) the Borrower has not (1) applied for or consent to the appointment of a receiver, trustee or liquidator of itself or any of its property, (2) admitted in writing its inability to pay its debts as they mature, except as provided in the Agreement, (3) made a general assignment for the benefit of creditors, (4) been adjudicated as bankrupt or insolvent or (5) filed a voluntary petition in bankruptcy, insolvency or readjustment of debt, or an answer admitting the material allegations of a petition filed against itself in any such proceedings.

ARTICLE IV: CONDITIONS OF LOAN

The obligation of the Lender to make the Loan hereunder and any future advances thereof is subject to the following conditions precedent:

4.1 The representation and warranties set forth in Article III hereof shall be true and correct on and as of the date hereof and the date the Loan, and each advance thereunder, is made.

4.2 The Borrower shall have executed and/or delivered to the Lender, upon the execution of this Agreement, the following:

(a) The Note;
(b) Any other documents required by the terms hereof;
(c) A certificate or certified copy of a Resolution of the Borrower certifying to the votes of the Borrower's Members authorizing the receipt of the Loan, and the execution and delivery of this Agreement, the Note and any documents related thereto.

4.3 The Borrower shall have received the requisite license from the Rhode Island Department of Health Office of Facilities Regulation to operate the Facility.

4.4 The Borrower shall have executed the requisite Management Agreement with Lender, which Agreement shall be in full force and effect.

ARTICLE V: EVENTS OF DEFAULT

5.1 Subject to applicable notice provisions of this Agreement and the Note, the occurrence of any of the following events shall be and constitute an immediate Event of Default under the Note and hereunder, without notice or demand of any kind whatsoever:

(a) Failure of the borrower to make any payment under the Note when due and in accordance with its terms;

(b) Failure of Borrower to maintain Rhode Island Department of Health Office of Facilities Regulation License;

(c) Failure of the Borrower to observe or comply with any other obligation or covenant under the Note or this Agreement; or
(d) The occurrence of any other "Event of Default" stated in the Note.

5.2 Upon the occurrence and continuation of an Event of Default, and in addition to the rights and remedies in favor of the Lender provided in Section 2.4 herein, the Lender may take any and all action, at law or in equity, as it may deem appropriate to enforce this Agreement and the Note.

ARTICLE VI: COMPLIANCE AND REPORTS

6.1 Compliance. The Borrower represents and covenants that at and from the time of the disbursement of the loan proceeds by the Lender to the Borrower, it shall be in compliance with all State and Federal requirements for operation of the Facility; and

6.2 Reports. The Borrower shall provide the Lender such other information or reports that the Lender deems appropriate.

ARTICLE VII: MISCELLANEOUS

7.1 Amendment: Waiver: Discharge. This Agreement may be amended, waived or discharged only by an instrument in writing signed by the parties hereto and only after approval of such amendment; waiver or discharge by the Lender.

7.2 Governing Law. This Agreement shall be construed in accordance with the laws of the State of Rhode Island, and is binding upon and inures to the benefit of the parties hereto and their respective successors.

7.3 Counterparts. This Agreement, which may be executed in a number of counterparts, each of which shall be deemed an original, constitutes the entire agreement and understanding between the parties, and supersedes all prior agreements and understandings relating hereto.

Health Concepts, Ltd.

By:_____
Michael Bigney, President

198 Waterman Avenue LLC

By:_____
Michael Bigney, President

Tab I

LOAN AMORTIZATION SCHEDULE - Eastgate Nursing & Rehabilitation Center

ENTER VALUES	
Loan amount	$1,250,000.00
Annual interest rate	7.50%
Loan period in years	20
Number of payments per year	12
Start date of loan	1/1/2025
Optional extra payments	

LOAN SUMMARY	
Scheduled payment	$10,069.91
Scheduled number of payments	240
Actual number of payments	241
Total early payments	$0.00
Total interest	$1,198,604.22
LENDER NAME	198 Waterman Avenue LLC

PMT NO	PAYMENT DATE	BEGINNING BALANCE	SCHEDULED PAYMENT	EXTRA PAYMENT	TOTAL PAYMENT	PRINCIPAL	INTEREST	ENDING BALANCE	CUMULATIVE INTEREST
1	1/1/2025	$1,250,000.00	$800.00	$0.00	$800.00	-$7,012.50	$7,812.50	$1,257,012.50	$7,812.50
2	2/1/2025	$1,257,012.50	$10,069.91	$0.00	$10,069.91	$2,213.59	$7,856.33	$1,254,798.91	$15,668.83
3	3/1/2025	$1,254,798.91	$10,069.91	$0.00	$10,069.91	$2,227.42	$7,842.49	$1,252,571.49	$23,511.32
4	4/1/2025	$1,252,571.49	$10,069.91	$0.00	$10,069.91	$2,241.34	$7,828.57	$1,250,330.15	$31,339.89
5	5/1/2025	$1,250,330.15	$10,069.91	$0.00	$10,069.91	$2,255.35	$7,814.56	$1,248,074.80	$39,154.46
6	6/1/2025	$1,248,074.80	$10,069.91	$0.00	$10,069.91	$2,269.45	$7,800.47	$1,245,805.35	$46,954.92
7	7/1/2025	$1,245,805.35	$10,069.91	$0.00	$10,069.91	$2,283.63	$7,786.28	$1,243,521.72	$54,741.21
8	8/1/2025	$1,243,521.72	$10,069.91	$0.00	$10,069.91	$2,297.90	$7,772.01	$1,241,223.81	$62,513.22
9	9/1/2025	$1,241,223.81	$10,069.91	$0.00	$10,069.91	$2,312.27	$7,757.65	$1,238,911.55	$70,270.87
10	10/1/2025	$1,238,911.55	$10,069.91	$0.00	$10,069.91	$2,326.72	$7,743.20	$1,236,584.83	$78,014.06
11	11/1/2025	$1,236,584.83	$10,069.91	$0.00	$10,069.91	$2,341.26	$7,728.66	$1,234,243.57	$85,742.72
12	12/1/2025	$1,234,243.57	$10,069.91	$0.00	$10,069.91	$2,355.89	$7,714.02	$1,231,887.68	$93,456.74
13	1/1/2026	$1,231,887.68	$10,069.91	$0.00	$10,069.91	$2,370.62	$7,699.30	$1,229,517.06	$101,156.04
14	2/1/2026	$1,229,517.06	$10,069.91	$0.00	$10,069.91	$2,385.43	$7,684.48	$1,227,131.63	$108,840.52
15	3/1/2026	$1,227,131.63	$10,069.91	$0.00	$10,069.91	$2,400.34	$7,669.57	$1,224,731.29	$116,510.09
16	4/1/2026	$1,224,731.29	$10,069.91	$0.00	$10,069.91	$2,415.34	$7,654.57	$1,222,315.94	$124,164.66
17	5/1/2026	$1,222,315.94	$10,069.91	$0.00	$10,069.91	$2,430.44	$7,639.47	$1,219,885.50	$131,804.14
18	6/1/2026	$1,219,885.50	$10,069.91	$0.00	$10,069.91	$2,445.63	$7,624.28	$1,217,439.87	$139,428.42
19	7/1/2026	$1,217,439.87	$10,069.91	$0.00	$10,069.91	$2,460.92	$7,609.00	$1,214,978.95	$147,037.42
20	8/1/2026	$1,214,978.95	$10,069.91	$0.00	$10,069.91	$2,476.30	$7,593.62	$1,212,502.66	$154,631.04
21	9/1/2026	$1,212,502.66	$10,069.91	$0.00	$10,069.91	$2,491.77	$7,578.14	$1,210,010.88	$162,209.18
22	10/1/2026	$1,210,010.88	$10,069.91	$0.00	$10,069.91	$2,507.35	$7,562.57	$1,207,503.54	$169,771.75
23	11/1/2026	$1,207,503.54	$10,069.91	$0.00	$10,069.91	$2,523.02	$7,546.90	$1,204,980.52	$177,318.65
24	12/1/2026	$1,204,980.52	$10,069.91	$0.00	$10,069.91	$2,538.79	$7,531.13	$1,202,441.73	$184,849.78
25	1/1/2027	$1,202,441.73	$10,069.91	$0.00	$10,069.91	$2,554.65	$7,515.26	$1,199,887.08	$192,365.04
26	2/1/2027	$1,199,887.08	$10,069.91	$0.00	$10,069.91	$2,570.62	$7,499.29	$1,197,316.46	$199,864.33
27	3/1/2027	$1,197,316.46	$10,069.91	$0.00	$10,069.91	$2,586.69	$7,483.23	$1,194,729.77	$207,347.56
28	4/1/2027	$1,194,729.77	$10,069.91	$0.00	$10,069.91	$2,602.85	$7,467.06	$1,192,126.92	$214,814.62
29	5/1/2027	$1,192,126.92	$10,069.91	$0.00	$10,069.91	$2,619.12	$7,450.79	$1,189,507.80	$222,265.41
30	6/1/2027	$1,189,507.80	$10,069.91	$0.00	$10,069.91	$2,635.49	$7,434.42	$1,186,872.30	$229,699.84
31	7/1/2027	$1,186,872.30	$10,069.91	$0.00	$10,069.91	$2,651.96	$7,417.95	$1,184,220.34	$237,117.79
32	8/1/2027	$1,184,220.34	$10,069.91	$0.00	$10,069.91	$2,668.54	$7,401.38	$1,181,551.80	$244,519.17
33	9/1/2027	$1,181,551.80	$10,069.91	$0.00	$10,069.91	$2,685.22	$7,384.70	$1,178,866.59	$251,903.86
34	10/1/2027	$1,178,866.59	$10,069.91	$0.00	$10,069.91	$2,702.00	$7,367.92	$1,176,164.59	$259,271.78
35	11/1/2027	$1,176,164.59	$10,069.91	$0.00	$10,069.91	$2,718.89	$7,351.03	$1,173,445.70	$266,622.81
36	12/1/2027	$1,173,445.70	$10,069.91	$0.00	$10,069.91	$2,735.88	$7,334.04	$1,170,709.82	$273,956.85
37	1/1/2028	$1,170,709.82	$10,069.91	$0.00	$10,069.91	$2,752.98	$7,316.94	$1,167,956.84	$281,273.78

PMT NO	PAYMENT DATE	BEGINNING BALANCE	SCHEDULED PAYMENT	EXTRA PAYMENT	TOTAL PAYMENT	PRINCIPAL	INTEREST	ENDING BALANCE	CUMULATIVE INTEREST
38	2/1/2028	$1,167,956.84	$10,069.91	$0.00	$10,069.91	$2,770.18	$7,299.73	$1,165,186.66	$288,573.51
39	3/1/2028	$1,165,186.66	$10,069.91	$0.00	$10,069.91	$2,787.50	$7,282.42	$1,162,399.16	$295,855.93
40	4/1/2028	$1,162,399.16	$10,069.91	$0.00	$10,069.91	$2,804.92	$7,264.99	$1,159,594.24	$303,120.92
41	5/1/2028	$1,159,594.24	$10,069.91	$0.00	$10,069.91	$2,822.45	$7,247.46	$1,156,771.79	$310,368.39
42	6/1/2028	$1,156,771.79	$10,069.91	$0.00	$10,069.91	$2,840.09	$7,229.82	$1,153,931.70	$317,598.21
43	7/1/2028	$1,153,931.70	$10,069.91	$0.00	$10,069.91	$2,857.84	$7,212.07	$1,151,073.86	$324,810.28
44	8/1/2028	$1,151,073.86	$10,069.91	$0.00	$10,069.91	$2,875.70	$7,194.21	$1,148,198.15	$332,004.50
45	9/1/2028	$1,148,198.15	$10,069.91	$0.00	$10,069.91	$2,893.68	$7,176.24	$1,145,304.48	$339,180.73
46	10/1/2028	$1,145,304.48	$10,069.91	$0.00	$10,069.91	$2,911.76	$7,158.15	$1,142,392.72	$346,338.89
47	11/1/2028	$1,142,392.72	$10,069.91	$0.00	$10,069.91	$2,929.96	$7,139.95	$1,139,462.76	$353,478.84
48	12/1/2028	$1,139,462.76	$10,069.91	$0.00	$10,069.91	$2,948.27	$7,121.64	$1,136,514.48	$360,600.48
49	1/1/2029	$1,136,514.48	$10,069.91	$0.00	$10,069.91	$2,966.70	$7,103.22	$1,133,547.78	$367,703.70
50	2/1/2029	$1,133,547.78	$10,069.91	$0.00	$10,069.91	$2,985.24	$7,084.67	$1,130,562.54	$374,788.37
51	3/1/2029	$1,130,562.54	$10,069.91	$0.00	$10,069.91	$3,003.90	$7,066.02	$1,127,558.64	$381,854.39
52	4/1/2029	$1,127,558.64	$10,069.91	$0.00	$10,069.91	$3,022.67	$7,047.24	$1,124,535.97	$388,901.63
53	5/1/2029	$1,124,535.97	$10,069.91	$0.00	$10,069.91	$3,041.57	$7,028.35	$1,121,494.40	$395,929.98
54	6/1/2029	$1,121,494.40	$10,069.91	$0.00	$10,069.91	$3,060.57	$7,009.34	$1,118,433.83	$402,939.32
55	7/1/2029	$1,118,433.83	$10,069.91	$0.00	$10,069.91	$3,079.70	$6,990.21	$1,115,354.13	$409,929.53
56	8/1/2029	$1,115,354.13	$10,069.91	$0.00	$10,069.91	$3,098.95	$6,970.96	$1,112,255.17	$416,900.50
57	9/1/2029	$1,112,255.17	$10,069.91	$0.00	$10,069.91	$3,118.32	$6,951.59	$1,109,136.85	$423,852.09
58	10/1/2029	$1,109,136.85	$10,069.91	$0.00	$10,069.91	$3,137.81	$6,932.11	$1,105,999.05	$430,784.20
59	11/1/2029	$1,105,999.05	$10,069.91	$0.00	$10,069.91	$3,157.42	$6,912.49	$1,102,841.62	$437,696.69
60	12/1/2029	$1,102,841.62	$10,069.91	$0.00	$10,069.91	$3,177.15	$6,892.76	$1,099,664.47	$444,589.45
61	1/1/2030	$1,099,664.47	$10,069.91	$0.00	$10,069.91	$3,197.01	$6,872.90	$1,096,467.46	$451,462.35
62	2/1/2030	$1,096,467.46	$10,069.91	$0.00	$10,069.91	$3,216.99	$6,852.92	$1,093,250.46	$458,315.27
63	3/1/2030	$1,093,250.46	$10,069.91	$0.00	$10,069.91	$3,237.10	$6,832.82	$1,090,013.36	$465,148.09
64	4/1/2030	$1,090,013.36	$10,069.91	$0.00	$10,069.91	$3,257.33	$6,812.58	$1,086,756.03	$471,960.67
65	5/1/2030	$1,086,756.03	$10,069.91	$0.00	$10,069.91	$3,277.69	$6,792.23	$1,083,478.34	$478,752.90
66	6/1/2030	$1,083,478.34	$10,069.91	$0.00	$10,069.91	$3,298.18	$6,771.74	$1,080,180.17	$485,524.64
67	7/1/2030	$1,080,180.17	$10,069.91	$0.00	$10,069.91	$3,318.79	$6,751.13	$1,076,861.38	$492,275.76
68	8/1/2030	$1,076,861.38	$10,069.91	$0.00	$10,069.91	$3,339.53	$6,730.38	$1,073,521.85	$499,006.15
69	9/1/2030	$1,073,521.85	$10,069.91	$0.00	$10,069.91	$3,360.40	$6,709.51	$1,070,161.44	$505,715.66
70	10/1/2030	$1,070,161.44	$10,069.91	$0.00	$10,069.91	$3,381.41	$6,688.51	$1,066,780.04	$512,404.17
71	11/1/2030	$1,066,780.04	$10,069.91	$0.00	$10,069.91	$3,402.54	$6,667.38	$1,063,377.50	$519,071.54
72	12/1/2030	$1,063,377.50	$10,069.91	$0.00	$10,069.91	$3,423.81	$6,646.11	$1,059,953.69	$525,717.65
73	1/1/2031	$1,059,953.69	$10,069.91	$0.00	$10,069.91	$3,445.20	$6,624.71	$1,056,508.49	$532,342.36
74	2/1/2031	$1,056,508.49	$10,069.91	$0.00	$10,069.91	$3,466.74	$6,603.18	$1,053,041.75	$538,945.54
75	3/1/2031	$1,053,041.75	$10,069.91	$0.00	$10,069.91	$3,488.40	$6,581.51	$1,049,553.35	$545,527.05
76	4/1/2031	$1,049,553.35	$10,069.91	$0.00	$10,069.91	$3,510.21	$6,559.71	$1,046,043.14	$552,086.76
77	5/1/2031	$1,046,043.14	$10,069.91	$0.00	$10,069.91	$3,532.15	$6,537.77	$1,042,511.00	$558,624.53
78	6/1/2031	$1,042,511.00	$10,069.91	$0.00	$10,069.91	$3,554.22	$6,515.69	$1,038,956.78	$565,140.22
79	7/1/2031	$1,038,956.78	$10,069.91	$0.00	$10,069.91	$3,576.44	$6,493.48	$1,035,380.34	$571,633.70
80	8/1/2031	$1,035,380.34	$10,069.91	$0.00	$10,069.91	$3,598.79	$6,471.13	$1,031,781.55	$578,104.83
81	9/1/2031	$1,031,781.55	$10,069.91	$0.00	$10,069.91	$3,621.28	$6,448.63	$1,028,160.27	$584,553.47
82	10/1/2031	$1,028,160.27	$10,069.91	$0.00	$10,069.91	$3,643.91	$6,426.00	$1,024,516.36	$590,979.47
83	11/1/2031	$1,024,516.36	$10,069.91	$0.00	$10,069.91	$3,666.69	$6,403.23	$1,020,849.67	$597,382.69
84	12/1/2031	$1,020,849.67	$10,069.91	$0.00	$10,069.91	$3,689.60	$6,380.31	$1,017,160.07	$603,763.01
85	1/1/2032	$1,017,160.07	$10,069.91	$0.00	$10,069.91	$3,712.66	$6,357.25	$1,013,447.40	$610,120.26
86	2/1/2032	$1,013,447.40	$10,069.91	$0.00	$10,069.91	$3,735.87	$6,334.05	$1,009,711.53	$616,454.30

PMT NO	PAYMENT DATE	BEGINNING BALANCE	SCHEDULED PAYMENT	EXTRA PAYMENT	TOTAL PAYMENT	PRINCIPAL	INTEREST	ENDING BALANCE	CUMULATIVE INTEREST
87	3/1/2032	$1,009,711.53	$10,069.91	$0.00	$10,069.91	$3,759.22	$6,310.70	$1,005,952.32	$622,765.00
88	4/1/2032	$1,005,952.32	$10,069.91	$0.00	$10,069.91	$3,782.71	$6,287.20	$1,002,169.60	$629,052.20
89	5/1/2032	$1,002,169.60	$10,069.91	$0.00	$10,069.91	$3,806.35	$6,263.56	$998,363.25	$635,315.76
90	6/1/2032	$998,363.25	$10,069.91	$0.00	$10,069.91	$3,830.14	$6,239.77	$994,533.10	$641,555.53
91	7/1/2032	$994,533.10	$10,069.91	$0.00	$10,069.91	$3,854.08	$6,215.83	$990,679.02	$647,771.36
92	8/1/2032	$990,679.02	$10,069.91	$0.00	$10,069.91	$3,878.17	$6,191.74	$986,800.85	$653,963.11
93	9/1/2032	$986,800.85	$10,069.91	$0.00	$10,069.91	$3,902.41	$6,167.51	$982,898.44	$660,130.61
94	10/1/2032	$982,898.44	$10,069.91	$0.00	$10,069.91	$3,926.80	$6,143.12	$978,971.64	$666,273.73
95	11/1/2032	$978,971.64	$10,069.91	$0.00	$10,069.91	$3,951.34	$6,118.57	$975,020.30	$672,392.30
96	12/1/2032	$975,020.30	$10,069.91	$0.00	$10,069.91	$3,976.04	$6,093.88	$971,044.26	$678,486.18
97	1/1/2033	$971,044.26	$10,069.91	$0.00	$10,069.91	$4,000.89	$6,069.03	$967,043.37	$684,555.20
98	2/1/2033	$967,043.37	$10,069.91	$0.00	$10,069.91	$4,025.89	$6,044.02	$963,017.48	$690,599.23
99	3/1/2033	$963,017.48	$10,069.91	$0.00	$10,069.91	$4,051.06	$6,018.86	$958,966.42	$696,618.08
100	4/1/2033	$958,966.42	$10,069.91	$0.00	$10,069.91	$4,076.37	$5,993.54	$954,890.05	$702,611.62
101	5/1/2033	$954,890.05	$10,069.91	$0.00	$10,069.91	$4,101.85	$5,968.06	$950,788.20	$708,579.69
102	6/1/2033	$950,788.20	$10,069.91	$0.00	$10,069.91	$4,127.49	$5,942.43	$946,660.71	$714,522.11
103	7/1/2033	$946,660.71	$10,069.91	$0.00	$10,069.91	$4,153.29	$5,916.63	$942,507.42	$720,438.74
104	8/1/2033	$942,507.42	$10,069.91	$0.00	$10,069.91	$4,179.24	$5,890.67	$938,328.18	$726,329.41
105	9/1/2033	$938,328.18	$10,069.91	$0.00	$10,069.91	$4,205.36	$5,864.55	$934,122.81	$732,193.97
106	10/1/2033	$934,122.81	$10,069.91	$0.00	$10,069.91	$4,231.65	$5,838.27	$929,891.17	$738,032.23
107	11/1/2033	$929,891.17	$10,069.91	$0.00	$10,069.91	$4,258.10	$5,811.82	$925,633.07	$743,844.05
108	12/1/2033	$925,633.07	$10,069.91	$0.00	$10,069.91	$4,284.71	$5,785.21	$921,348.36	$749,629.26
109	1/1/2034	$921,348.36	$10,069.91	$0.00	$10,069.91	$4,311.49	$5,758.43	$917,036.88	$755,387.69
110	2/1/2034	$917,036.88	$10,069.91	$0.00	$10,069.91	$4,338.43	$5,731.48	$912,698.44	$761,119.17
111	3/1/2034	$912,698.44	$10,069.91	$0.00	$10,069.91	$4,365.55	$5,704.37	$908,332.89	$766,823.53
112	4/1/2034	$908,332.89	$10,069.91	$0.00	$10,069.91	$4,392.83	$5,677.08	$903,940.06	$772,500.61
113	5/1/2034	$903,940.06	$10,069.91	$0.00	$10,069.91	$4,420.29	$5,649.63	$899,519.77	$778,150.24
114	6/1/2034	$899,519.77	$10,069.91	$0.00	$10,069.91	$4,447.92	$5,622.00	$895,071.85	$783,772.24
115	7/1/2034	$895,071.85	$10,069.91	$0.00	$10,069.91	$4,475.72	$5,594.20	$890,596.14	$789,366.44
116	8/1/2034	$890,596.14	$10,069.91	$0.00	$10,069.91	$4,503.69	$5,566.23	$886,092.45	$794,932.66
117	9/1/2034	$886,092.45	$10,069.91	$0.00	$10,069.91	$4,531.84	$5,538.08	$881,560.61	$800,470.74
118	10/1/2034	$881,560.61	$10,069.91	$0.00	$10,069.91	$4,560.16	$5,509.75	$877,000.45	$805,980.49
119	11/1/2034	$877,000.45	$10,069.91	$0.00	$10,069.91	$4,588.66	$5,481.25	$872,411.79	$811,461.75
120	12/1/2034	$872,411.79	$10,069.91	$0.00	$10,069.91	$4,617.34	$5,452.57	$867,794.44	$816,914.32
121	1/1/2035	$867,794.44	$10,069.91	$0.00	$10,069.91	$4,646.20	$5,423.72	$863,148.24	$822,338.04
122	2/1/2035	$863,148.24	$10,069.91	$0.00	$10,069.91	$4,675.24	$5,394.68	$858,473.01	$827,732.71
123	3/1/2035	$858,473.01	$10,069.91	$0.00	$10,069.91	$4,704.46	$5,365.46	$853,768.55	$833,098.17
124	4/1/2035	$853,768.55	$10,069.91	$0.00	$10,069.91	$4,733.86	$5,336.05	$849,034.69	$838,434.22
125	5/1/2035	$849,034.69	$10,069.91	$0.00	$10,069.91	$4,763.45	$5,306.47	$844,271.24	$843,740.69
126	6/1/2035	$844,271.24	$10,069.91	$0.00	$10,069.91	$4,793.22	$5,276.70	$839,478.02	$849,017.38
127	7/1/2035	$839,478.02	$10,069.91	$0.00	$10,069.91	$4,823.18	$5,246.74	$834,654.84	$854,264.12
128	8/1/2035	$834,654.84	$10,069.91	$0.00	$10,069.91	$4,853.32	$5,216.59	$829,801.52	$859,480.71
129	9/1/2035	$829,801.52	$10,069.91	$0.00	$10,069.91	$4,883.66	$5,186.26	$824,917.86	$864,666.97
130	10/1/2035	$824,917.86	$10,069.91	$0.00	$10,069.91	$4,914.18	$5,155.74	$820,003.69	$869,822.71
131	11/1/2035	$820,003.69	$10,069.91	$0.00	$10,069.91	$4,944.89	$5,125.02	$815,058.79	$874,947.73
132	12/1/2035	$815,058.79	$10,069.91	$0.00	$10,069.91	$4,975.80	$5,094.12	$810,083.00	$880,041.85
133	1/1/2036	$810,083.00	$10,069.91	$0.00	$10,069.91	$5,006.90	$5,063.02	$805,076.10	$885,104.87
134	2/1/2036	$805,076.10	$10,069.91	$0.00	$10,069.91	$5,038.19	$5,031.73	$800,037.91	$890,136.59
135	3/1/2036	$800,037.91	$10,069.91	$0.00	$10,069.91	$5,069.68	$5,000.24	$794,968.23	$895,136.83

PMT NO	PAYMENT DATE	BEGINNING BALANCE	SCHEDULED PAYMENT	EXTRA PAYMENT	TOTAL PAYMENT	PRINCIPAL	INTEREST	ENDING BALANCE	CUMULATIVE INTEREST
136	4/1/2036	$794,968.23	$10,069.91	$0.00	$10,069.91	$5,101.36	$4,968.55	$789,866.87	$900,105.38
137	5/1/2036	$789,866.87	$10,069.91	$0.00	$10,069.91	$5,133.25	$4,936.67	$784,733.62	$905,042.05
138	6/1/2036	$784,733.62	$10,069.91	$0.00	$10,069.91	$5,165.33	$4,904.59	$779,568.29	$909,946.64
139	7/1/2036	$779,568.29	$10,069.91	$0.00	$10,069.91	$5,197.61	$4,872.30	$774,370.68	$914,818.94
140	8/1/2036	$774,370.68	$10,069.91	$0.00	$10,069.91	$5,230.10	$4,839.82	$769,140.58	$919,658.75
141	9/1/2036	$769,140.58	$10,069.91	$0.00	$10,069.91	$5,262.79	$4,807.13	$763,877.79	$924,465.88
142	10/1/2036	$763,877.79	$10,069.91	$0.00	$10,069.91	$5,295.68	$4,774.24	$758,582.12	$929,240.12
143	11/1/2036	$758,582.12	$10,069.91	$0.00	$10,069.91	$5,328.78	$4,741.14	$753,253.34	$933,981.26
144	12/1/2036	$753,253.34	$10,069.91	$0.00	$10,069.91	$5,362.08	$4,707.83	$747,891.26	$938,689.09
145	1/1/2037	$747,891.26	$10,069.91	$0.00	$10,069.91	$5,395.59	$4,674.32	$742,495.66	$943,363.41
146	2/1/2037	$742,495.66	$10,069.91	$0.00	$10,069.91	$5,429.32	$4,640.60	$737,066.35	$948,004.01
147	3/1/2037	$737,066.35	$10,069.91	$0.00	$10,069.91	$5,463.25	$4,606.66	$731,603.10	$952,610.67
148	4/1/2037	$731,603.10	$10,069.91	$0.00	$10,069.91	$5,497.40	$4,572.52	$726,105.70	$957,183.19
149	5/1/2037	$726,105.70	$10,069.91	$0.00	$10,069.91	$5,531.75	$4,538.16	$720,573.95	$961,721.35
150	6/1/2037	$720,573.95	$10,069.91	$0.00	$10,069.91	$5,566.33	$4,503.59	$715,007.62	$966,224.94
151	7/1/2037	$715,007.62	$10,069.91	$0.00	$10,069.91	$5,601.12	$4,468.80	$709,406.50	$970,693.74
152	8/1/2037	$709,406.50	$10,069.91	$0.00	$10,069.91	$5,636.12	$4,433.79	$703,770.38	$975,127.53
153	9/1/2037	$703,770.38	$10,069.91	$0.00	$10,069.91	$5,671.35	$4,398.56	$698,099.03	$979,526.09
154	10/1/2037	$698,099.03	$10,069.91	$0.00	$10,069.91	$5,706.80	$4,363.12	$692,392.23	$983,889.21
155	11/1/2037	$692,392.23	$10,069.91	$0.00	$10,069.91	$5,742.46	$4,327.45	$686,649.77	$988,216.66
156	12/1/2037	$686,649.77	$10,069.91	$0.00	$10,069.91	$5,778.35	$4,291.56	$680,871.41	$992,508.23
157	1/1/2038	$680,871.41	$10,069.91	$0.00	$10,069.91	$5,814.47	$4,255.45	$675,056.94	$996,763.67
158	2/1/2038	$675,056.94	$10,069.91	$0.00	$10,069.91	$5,850.81	$4,219.11	$669,206.14	$1,000,982.78
159	3/1/2038	$669,206.14	$10,069.91	$0.00	$10,069.91	$5,887.38	$4,182.54	$663,318.76	$1,005,165.32
160	4/1/2038	$663,318.76	$10,069.91	$0.00	$10,069.91	$5,924.17	$4,145.74	$657,394.59	$1,009,311.06
161	5/1/2038	$657,394.59	$10,069.91	$0.00	$10,069.91	$5,961.20	$4,108.72	$651,433.39	$1,013,419.77
162	6/1/2038	$651,433.39	$10,069.91	$0.00	$10,069.91	$5,998.46	$4,071.46	$645,434.93	$1,017,491.23
163	7/1/2038	$645,434.93	$10,069.91	$0.00	$10,069.91	$6,035.95	$4,033.97	$639,398.98	$1,021,525.20
164	8/1/2038	$639,398.98	$10,069.91	$0.00	$10,069.91	$6,073.67	$3,996.24	$633,325.31	$1,025,521.45
165	9/1/2038	$633,325.31	$10,069.91	$0.00	$10,069.91	$6,111.63	$3,958.28	$627,213.68	$1,029,479.73
166	10/1/2038	$627,213.68	$10,069.91	$0.00	$10,069.91	$6,149.83	$3,920.09	$621,063.85	$1,033,399.81
167	11/1/2038	$621,063.85	$10,069.91	$0.00	$10,069.91	$6,188.27	$3,881.65	$614,875.59	$1,037,281.46
168	12/1/2038	$614,875.59	$10,069.91	$0.00	$10,069.91	$6,226.94	$3,842.97	$608,648.64	$1,041,124.44
169	1/1/2039	$608,648.64	$10,069.91	$0.00	$10,069.91	$6,265.86	$3,804.05	$602,382.78	$1,044,928.49
170	2/1/2039	$602,382.78	$10,069.91	$0.00	$10,069.91	$6,305.02	$3,764.89	$596,077.76	$1,048,693.38
171	3/1/2039	$596,077.76	$10,069.91	$0.00	$10,069.91	$6,344.43	$3,725.49	$589,733.33	$1,052,418.87
172	4/1/2039	$589,733.33	$10,069.91	$0.00	$10,069.91	$6,384.08	$3,685.83	$583,349.25	$1,056,104.70
173	5/1/2039	$583,349.25	$10,069.91	$0.00	$10,069.91	$6,423.98	$3,645.93	$576,925.27	$1,059,750.63
174	6/1/2039	$576,925.27	$10,069.91	$0.00	$10,069.91	$6,464.13	$3,605.78	$570,461.14	$1,063,356.42
175	7/1/2039	$570,461.14	$10,069.91	$0.00	$10,069.91	$6,504.53	$3,565.38	$563,956.60	$1,066,921.80
176	8/1/2039	$563,956.60	$10,069.91	$0.00	$10,069.91	$6,545.19	$3,524.73	$557,411.42	$1,070,446.53
177	9/1/2039	$557,411.42	$10,069.91	$0.00	$10,069.91	$6,586.09	$3,483.82	$550,825.32	$1,073,930.35
178	10/1/2039	$550,825.32	$10,069.91	$0.00	$10,069.91	$6,627.26	$3,442.66	$544,198.07	$1,077,373.01
179	11/1/2039	$544,198.07	$10,069.91	$0.00	$10,069.91	$6,668.68	$3,401.24	$537,529.39	$1,080,774.25
180	12/1/2039	$537,529.39	$10,069.91	$0.00	$10,069.91	$6,710.36	$3,359.56	$530,819.03	$1,084,133.80
181	1/1/2040	$530,819.03	$10,069.91	$0.00	$10,069.91	$6,752.30	$3,317.62	$524,066.74	$1,087,451.42
182	2/1/2040	$524,066.74	$10,069.91	$0.00	$10,069.91	$6,794.50	$3,275.42	$517,272.24	$1,090,726.84
183	3/1/2040	$517,272.24	$10,069.91	$0.00	$10,069.91	$6,836.96	$3,232.95	$510,435.28	$1,093,959.79
184	4/1/2040	$510,435.28	$10,069.91	$0.00	$10,069.91	$6,879.69	$3,190.22	$503,555.58	$1,097,150.01

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185	5/1/2040	$503,555.58	$10,069.91	$0.00	$10,069.91	$6,922.69	$3,147.22	$496,632.89	$1,100,297.23
186	6/1/2040	$496,632.89	$10,069.91	$0.00	$10,069.91	$6,965.96	$3,103.96	$489,666.93	$1,103,401.19
187	7/1/2040	$489,666.93	$10,069.91	$0.00	$10,069.91	$7,009.50	$3,060.42	$482,657.43	$1,106,461.61
188	8/1/2040	$482,657.43	$10,069.91	$0.00	$10,069.91	$7,053.31	$3,016.61	$475,604.13	$1,109,478.22
189	9/1/2040	$475,604.13	$10,069.91	$0.00	$10,069.91	$7,097.39	$2,972.53	$468,506.74	$1,112,450.74
190	10/1/2040	$468,506.74	$10,069.91	$0.00	$10,069.91	$7,141.75	$2,928.17	$461,364.99	$1,115,378.91
191	11/1/2040	$461,364.99	$10,069.91	$0.00	$10,069.91	$7,186.38	$2,883.53	$454,178.61	$1,118,262.44
192	12/1/2040	$454,178.61	$10,069.91	$0.00	$10,069.91	$7,231.30	$2,838.62	$446,947.31	$1,121,101.06
193	1/1/2041	$446,947.31	$10,069.91	$0.00	$10,069.91	$7,276.49	$2,793.42	$439,670.81	$1,123,894.48
194	2/1/2041	$439,670.81	$10,069.91	$0.00	$10,069.91	$7,321.97	$2,747.94	$432,348.84	$1,126,642.42
195	3/1/2041	$432,348.84	$10,069.91	$0.00	$10,069.91	$7,367.73	$2,702.18	$424,981.11	$1,129,344.60
196	4/1/2041	$424,981.11	$10,069.91	$0.00	$10,069.91	$7,413.78	$2,656.13	$417,567.32	$1,132,000.73
197	5/1/2041	$417,567.32	$10,069.91	$0.00	$10,069.91	$7,460.12	$2,609.80	$410,107.20	$1,134,610.53
198	6/1/2041	$410,107.20	$10,069.91	$0.00	$10,069.91	$7,506.74	$2,563.17	$402,600.46	$1,137,173.70
199	7/1/2041	$402,600.46	$10,069.91	$0.00	$10,069.91	$7,553.66	$2,516.25	$395,046.80	$1,139,689.95
200	8/1/2041	$395,046.80	$10,069.91	$0.00	$10,069.91	$7,600.87	$2,469.04	$387,445.93	$1,142,158.99
201	9/1/2041	$387,445.93	$10,069.91	$0.00	$10,069.91	$7,648.38	$2,421.54	$379,797.55	$1,144,580.53
202	10/1/2041	$379,797.55	$10,069.91	$0.00	$10,069.91	$7,696.18	$2,373.73	$372,101.37	$1,146,954.27
203	11/1/2041	$372,101.37	$10,069.91	$0.00	$10,069.91	$7,744.28	$2,325.63	$364,357.09	$1,149,279.90
204	12/1/2041	$364,357.09	$10,069.91	$0.00	$10,069.91	$7,792.68	$2,277.23	$356,564.40	$1,151,557.13
205	1/1/2042	$356,564.40	$10,069.91	$0.00	$10,069.91	$7,841.39	$2,228.53	$348,723.02	$1,153,785.66
206	2/1/2042	$348,723.02	$10,069.91	$0.00	$10,069.91	$7,890.40	$2,179.52	$340,832.62	$1,155,965.18
207	3/1/2042	$340,832.62	$10,069.91	$0.00	$10,069.91	$7,939.71	$2,130.20	$332,892.91	$1,158,095.38
208	4/1/2042	$332,892.91	$10,069.91	$0.00	$10,069.91	$7,989.33	$2,080.58	$324,903.57	$1,160,175.96
209	5/1/2042	$324,903.57	$10,069.91	$0.00	$10,069.91	$8,039.27	$2,030.65	$316,864.31	$1,162,206.61
210	6/1/2042	$316,864.31	$10,069.91	$0.00	$10,069.91	$8,089.51	$1,980.40	$308,774.79	$1,164,187.01
211	7/1/2042	$308,774.79	$10,069.91	$0.00	$10,069.91	$8,140.07	$1,929.84	$300,634.72	$1,166,116.85
212	8/1/2042	$300,634.72	$10,069.91	$0.00	$10,069.91	$8,190.95	$1,878.97	$292,443.77	$1,167,995.82
213	9/1/2042	$292,443.77	$10,069.91	$0.00	$10,069.91	$8,242.14	$1,827.77	$284,201.63	$1,169,823.59
214	10/1/2042	$284,201.63	$10,069.91	$0.00	$10,069.91	$8,293.65	$1,776.26	$275,907.98	$1,171,599.85
215	11/1/2042	$275,907.98	$10,069.91	$0.00	$10,069.91	$8,345.49	$1,724.42	$267,562.49	$1,173,324.28
216	12/1/2042	$267,562.49	$10,069.91	$0.00	$10,069.91	$8,397.65	$1,672.27	$259,164.84	$1,174,996.55
217	1/1/2043	$259,164.84	$10,069.91	$0.00	$10,069.91	$8,450.13	$1,619.78	$250,714.70	$1,176,616.33
218	2/1/2043	$250,714.70	$10,069.91	$0.00	$10,069.91	$8,502.95	$1,566.97	$242,211.75	$1,178,183.29
219	3/1/2043	$242,211.75	$10,069.91	$0.00	$10,069.91	$8,556.09	$1,513.82	$233,655.66	$1,179,697.12
220	4/1/2043	$233,655.66	$10,069.91	$0.00	$10,069.91	$8,609.57	$1,460.35	$225,046.10	$1,181,157.46
221	5/1/2043	$225,046.10	$10,069.91	$0.00	$10,069.91	$8,663.38	$1,406.54	$216,382.72	$1,182,564.00
222	6/1/2043	$216,382.72	$10,069.91	$0.00	$10,069.91	$8,717.52	$1,352.39	$207,665.20	$1,183,916.39
223	7/1/2043	$207,665.20	$10,069.91	$0.00	$10,069.91	$8,772.01	$1,297.91	$198,893.19	$1,185,214.30
224	8/1/2043	$198,893.19	$10,069.91	$0.00	$10,069.91	$8,826.83	$1,243.08	$190,066.36	$1,186,457.38
225	9/1/2043	$190,066.36	$10,069.91	$0.00	$10,069.91	$8,882.00	$1,187.91	$181,184.36	$1,187,645.30
226	10/1/2043	$181,184.36	$10,069.91	$0.00	$10,069.91	$8,937.51	$1,132.40	$172,246.84	$1,188,777.70
227	11/1/2043	$172,246.84	$10,069.91	$0.00	$10,069.91	$8,993.37	$1,076.54	$163,253.47	$1,189,854.24
228	12/1/2043	$163,253.47	$10,069.91	$0.00	$10,069.91	$9,049.58	$1,020.33	$154,203.89	$1,190,874.58
229	1/1/2044	$154,203.89	$10,069.91	$0.00	$10,069.91	$9,106.14	$963.77	$145,097.75	$1,191,838.35
230	2/1/2044	$145,097.75	$10,069.91	$0.00	$10,069.91	$9,163.05	$906.86	$135,934.70	$1,192,745.21
231	3/1/2044	$135,934.70	$10,069.91	$0.00	$10,069.91	$9,220.32	$849.59	$126,714.37	$1,193,594.80
232	4/1/2044	$126,714.37	$10,069.91	$0.00	$10,069.91	$9,277.95	$791.96	$117,436.42	$1,194,386.77
233	5/1/2044	$117,436.42	$10,069.91	$0.00	$10,069.91	$9,335.94	$733.98	$108,100.49	$1,195,120.75

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234	6/1/2044	$108,100.49	$10,069.91	$0.00	$10,069.91	$9,394.29	$675.63	$98,706.20	$1,195,796.38
235	7/1/2044	$98,706.20	$10,069.91	$0.00	$10,069.91	$9,453.00	$616.91	$89,253.20	$1,196,413.29
236	8/1/2044	$89,253.20	$10,069.91	$0.00	$10,069.91	$9,512.08	$557.83	$79,741.12	$1,196,971.12
237	9/1/2044	$79,741.12	$10,069.91	$0.00	$10,069.91	$9,571.53	$498.38	$70,169.58	$1,197,469.50
238	10/1/2044	$70,169.58	$10,069.91	$0.00	$10,069.91	$9,631.36	$438.56	$60,538.23	$1,197,908.06
239	11/1/2044	$60,538.23	$10,069.91	$0.00	$10,069.91	$9,691.55	$378.36	$50,846.68	$1,198,286.43
240	12/1/2044	$50,846.68	$10,069.91	$0.00	$10,069.91	$9,752.12	$317.79	$41,094.55	$1,198,604.22

Tab J

"Burrillville Health Center Associates" d/b/a Bayberry Commons
"198 Waterman Avenue LLC" d/b/a Eastgate Nursing & Rehabilitation Center
"Elmwood Health Center, Inc." d/b/a Elmwood Nursing & Rehabilitation Center
"Allen's Health Center, Inc." d/b/a South Kingstown Nursing & Rehabilitation Center
"Village House Convalescent Home, Inc." d/b/a Village House Nursing & Rehabilitation Center
"Warwick Health Center Inc." d/b/a West Shore Health Center
"Health Concepts, Ltd." d/b/a Health Concepts, Ltd.

Appendix F 1. D Ownership
Tab L

Michael Bigney 10 Linden Drive Providence RI, 02906	70%
Stephanie Ryan 1 Strathmore Place Cranston RI, 02905	10%
Kelly Arnold 435 Red Chimney Drive Warwick RI, 02886	10%
Christopher Ryan 923 Snake Hill Road North Scituate, RI 02857	10%

Appendix F 1. F Ownership in Subcontractor
The applicant proposes to engage Health Concepts, Ltd. To manage the 6 facilities. The shareholders post transaction of Health Concepts, Ltd. Are as follows:

Michael Bigney 10 Linden Drive Providence RI, 02906	70%
Stephanie Ryan 1 Strathmore Place Cranston RI, 02905	10%
Kelly Arnold 435 Red Chimney Drive Warwick RI, 02886	10%
Christopher Ryan 923 Snake Hill Road North Scituate, RI 02857	10%

Tab K

Health Concepts, Ltd.
CMP's since 2018

Name of Entity	State CMP assessed	CMP Reason:	CMP amount	CMP Date:
Bayberry Commons	RI	survey results	$ 21,393	4/10/2020
Village House	RI	med error	$ 35,432	2/18/2020
Allen's Health Center Inc	RI	survey results	$ 7,803	10/2018
Warwick Healh Centre Inc	RI	survey results	$ 10,150	7/2018
Warwick Healh Centre Inc	RI	survey results	$ 33,320	1/2021
Eastgate Nursing	RI	complaint survey	$ 12,155	Jun-22
Elmwood Health Center *	RI	complaint survey	$ 25,800	Jun-22

* (removed after appeal in August 2022)

OIG Self report

Elmwood Health Center
October 16,2020
excluded employee on LEIE list
employee used 2 different spellings of her last name on various documents
overpayment returned $100,948

OSHA

no fines

Tab L

"Burrillville Health Center Associates" d/b/a Bayberry Commons
"198 Waterman Avenue LLC" d/b/a Eastgate Nursing & Rehabilitation Center
"Elmwood Health Center, Inc." d/b/a Elmwood Nursing & Rehabilitation Center
"Allen's Health Center, Inc." d/b/a South Kingstown Nursing & Rehabilitation Center
"Village House Convalescent Home, Inc." d/b/a Village House Nursing & Rehabilitation Center
"Warwick Health Center Inc." d/b/a West Shore Health Center
"Health Concepts, Ltd." d/b/a Health Concepts, Ltd.

Appendix G
Tab L

Michael Bigney

Home Address:	10 Linden Drive Providence RI 02906
Business Address:	588 Pawtucket Ave, Pawtucket RI 02860
Principal Occupation:	Chief Executive Office/Chief Financial Officer
Position in Institution:	President
Percentage of Equity	70%

Stephanie Ryan

Home Address:	1 Strathmore Place, Cranston RI 02905
Business Address:	588 Pawtucket Ave, Pawtucket RI 02860
Principal Occupation:	Director of Operations
Position in Institution:	Secretary
Percentage of Equity	10%

Kelly Arnold

Home Address:	435 Red Chimney Drive, Warwick RI 02886
Business Address:	588 Pawtucket Ave, Pawtucket, RI 02860
Principal Occupation:	Chief Operating Officer
Position in Institution:	Vice President
Percentage of Equity	10%

Christopher Ryan

Home Address:	923 Snake Hill Road, North Scituate RI 02857
Business Address:	588 Pawtucket Ave, Pawtucket, RI 02860
Principal Occupation:	Director of Strategic Planning
Position in Institution:	Treasurer
Percentage of Equity	10%